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CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETINGS

April 14, 2026

WEBVTT

1
00:00:15.600 --> 00:00:19.130
Boardroom: Hello! Good evening!

2
00:00:21.800 --> 00:00:23.650
Boardroom: Good evening, everyone!

3
00:00:25.510 --> 00:00:30.739
Boardroom: I'm calling to order the Berkeley City Council meeting. Today is Tuesday, April 14th.

4
00:00:30.900 --> 00:00:34.080
Boardroom: 2026, and it is 6.05 PM.

5
00:00:34.390 --> 00:00:39.729
Boardroom: Can you please take the role, Clerk? Okay. Councilmember Kesarwani?

6
00:00:39.730 --> 00:00:40.510
Rashi Kesarwani: Here.

7
00:00:41.040 --> 00:00:43.160
Boardroom: Taplin?

8
00:00:45.780 --> 00:00:47.120
Boardroom: Councilmember Taplin?

9
00:00:49.650 --> 00:00:52.650
Boardroom: I see he's on… This is my son.

10
00:00:53.560 --> 00:00:55.160
Boardroom: Added.

11

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00:00:56.900 --> 00:01:01.649
Boardroom: Let's see… We can contact him,

12
00:01:08.700 --> 00:01:14.930
Boardroom: Let's see… Councilmember Bartlett is… Currently absent.

13
00:01:16.300 --> 00:01:18.200
Boardroom: Councilmember Tragum?

14
00:01:19.050 --> 00:01:23.120
Boardroom: Cleasant. O'Keefe? Here. Blackaby? Here.

15
00:01:23.240 --> 00:01:24.709
Boardroom: Luna Parra? Here.

16
00:01:24.900 --> 00:01:26.570
Boardroom: Humbert, present.

17
00:01:26.680 --> 00:01:33.910
Boardroom: And Mayor Ishii. Here. Councilmember Taplin, are you… present, on the Zoom.

18
00:01:34.090 --> 00:01:35.379
Boardroom: Can you hear us?

19
00:01:37.570 --> 00:01:40.140
Boardroom: Okay.

20
00:01:41.260 --> 00:01:45.220
Boardroom: Well, we'll see if he… if he's able to join.

21
00:01:45.750 --> 00:01:52.349
Boardroom: There's a quorum present, in Councilmember…

22
00:01:52.520 --> 00:01:56.300
Boardroom: Kesarwani is, participating under the just…

23
00:01:56.500 --> 00:02:00.179
Boardroom: participating remotely under the Just Cause exception in the Brown Act.

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24
00:02:00.440 --> 00:02:06.399
Boardroom: A quorum of the council is participating in person at the physical meeting location that was noticed.

25
00:02:08.500 --> 00:02:16.400
Boardroom: Councilmember, Kesarwani, if you could provide a general description of the circumstances relating to your need to appear remotely.

26
00:02:16.590 --> 00:02:23.630
Boardroom: But please do not disclose any medical diagnosis, disability, or other confidential medical information.

27
00:02:25.540 --> 00:02:28.040
Rashi Kesarwani: My reason is a family care need.

28
00:02:28.260 --> 00:02:35.390
Boardroom: Okay. And, Councilmember Taplin… is here. Councilmember Taplin, if you could provide a…

29
00:02:35.590 --> 00:02:41.610
Boardroom: Brief, general description of the circumstances relating to your need to appear remotely.

30
00:02:43.680 --> 00:02:50.710
Boardroom: Such as a contagious illness, family caregiving need, Can you hear us?

31
00:02:52.340 --> 00:02:55.680
Boardroom: Not at this time, okay.

32
00:02:55.810 --> 00:03:08.140
Boardroom: Councilmember Kesarwani, if you could publicly disclose, whether there are any individuals 18 years of age or older present in the room from which you are participating, and if so, their relationship to you.

33
00:03:09.800 --> 00:03:14.130
Rashi Kesarwani: There are no individuals present in the room in which I'm participating in.

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34
00:03:14.130 --> 00:03:27.650
Boardroom: Okay. And Councilmembers, Kastarwani and Taplin, will participate, through both audio and visual technology for the duration of the meeting. Councilmember Taplin, are you able to…

35
00:03:28.050 --> 00:03:29.209
Boardroom: To hear us?

36
00:03:29.940 --> 00:03:31.280
Terry Taplin: Yes, can you hear me?

37
00:03:31.280 --> 00:03:45.069
Boardroom: Okay, if you could provide a brief description of your circumstances relating to your need to appear remotely, such as family caregiving need or, contagious illness, or something similar as allowed by the Brown Act.

38
00:03:45.850 --> 00:03:47.180
Terry Taplin: Family caretaking.

39
00:03:47.570 --> 00:04:00.910
Boardroom: family caregiving need. Thank you very much. And if you, Councilmember Taplin could publicly disclose if there is anybody 18 years of age or older in the room from which you are participating, and if so, the nature of their relationship to you.

40
00:04:01.480 --> 00:04:02.470
Terry Taplin: There is none.

41
00:04:02.720 --> 00:04:10.020
Boardroom: Okay, thank you, thank you very much. We can… we can proceed, Madam Mayor. Thank you so much, Mr. City Clerk.

42
00:04:10.020 --> 00:04:24.930
Boardroom: We are in the first meeting of April, and so we will read the land acknowledgement. We're taking turns as council members reading the land acknowledgement, and this time it is Councilmember Brent Blackaby's turn. Great, thanks, Madam Mayor.

43
00:04:24.970 --> 00:04:37.440
Boardroom: This is the land acknowledgement statement. The City of Berkeley recognizes that the community we live in was built on the

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territory of Huchun, the ancestral and unceded land of the Chochenyo-speaking Ohlone people.

44
00:04:37.440 --> 00:04:49.150
Boardroom: The ancestors and descendants of the sovereign Verona Band of Alameda County. This land was and continues to be of great importance to all of the Ohlone tribes and descendants of the Verona Band.

45
00:04:49.310 --> 00:04:54.589
Boardroom: As we begin our meeting tonight, we acknowledge and honor the original inhabitants of Berkeley.

46
00:04:54.610 --> 00:05:03.910
Boardroom: The documented 5,000-year history of a vibrant community at the West Berkeley Shell Mound, and the Ohlone people who continue to reside in the East Bay.

47
00:05:03.910 --> 00:05:15.749
Boardroom: We recognize that Berkeley's residents have, and continue to benefit from the use and occupation of this unceded, stolen land since the City of Berkeley's incorporation in 1878.

48
00:05:15.860 --> 00:05:29.529
Boardroom: As stewards of the laws regulating the City of Berkeley, it is not only vital that we recognize the history of this land, but also recognize that the Ohlone people are present members of Berkeley and other East Bay communities today.

49
00:05:29.670 --> 00:05:38.849
Boardroom: The City of Berkeley will continue to build relationships with the Lijan tribe and to create meaningful actions that uphold the intention of this land acknowledgement.

50
00:05:39.430 --> 00:05:56.439
Boardroom: Thank you so much, Councilmember. So, for our ceremonial items this evening, we have two adjournments in memory. We are actually going to start with Cynthia Brantley-Pierce first, who is a community activist, and I believe we have one of our council members who's going to read,

51
00:05:56.610 --> 00:05:57.890
Boardroom: Something for that.

52
00:05:58.730 --> 00:06:12.079

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Rashi Kesarwani: Thank you very much, Madam Mayor. It is my honor to read our adjournment in memory of Cynthia Brantley-Pierce. We are adjourning tonight's meeting in memory of Cynthia Brantley Pierce.

53
00:06:13.500 --> 00:06:19.440
Boardroom: If folks are here for her, you're welcome to come up to the podium to receive it if you'd like.

54
00:06:21.160 --> 00:06:25.899
Rashi Kesarwani: And, Cynthia was born April 15th, 1964,

55
00:06:26.140 --> 00:06:45.679
Rashi Kesarwani: As tomorrow marks her 62nd birthday, we hold her memory close this evening in celebration of a life defined by purpose and passion. Many here know of Cindy as a formidable political fundraiser who helped power the campaigns of California State Senator Lonnie Hancock.

56
00:06:45.680 --> 00:06:58.730
Rashi Kesarwani: Assemblymember Nancy Skinner, Congresswoman Lynn Woolsey, and East Bay Regional Parks District Director Elizabeth Eccles. She dedicated her career to closing the gender gap in our legislatures.

57
00:06:58.730 --> 00:07:12.900
Rashi Kesarwani: Championing pro-choice Democratic women, and playing a pivotal role in the early success of Close the Gap California, a nonprofit organization dedicated to advancing women in the California legislature.

58
00:07:12.920 --> 00:07:21.819
Rashi Kesarwani: More recently, and despite her cancer diagnosis in 2019, Cindy's commitment to our democracy never wavered.

59
00:07:21.900 --> 00:07:35.260
Rashi Kesarwani: She volunteered regularly with the local chapter of Flip the Vote, and turned her 60th birthday celebration into a massive fundraiser for the cause that drew hundreds to her beautiful backyard.

60
00:07:35.620 --> 00:07:52.859
Rashi Kesarwani: Closer to home, she was a staunch supporter of the Berkeley Public Schools, lending her expertise to the PTAs at Berkeley Arts Magnet, King Middle School, and Berkeley High, while also fighting for the passage of local bond measures to support the school district.

61

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00:07:53.110 --> 00:08:06.499
Rashi Kesarwani: Perhaps the greatest testament to Cindy's legacy is her children, Clayton and Will, who are in the chambers tonight. They carry her spirit and passions forward through their own work.

62
00:08:06.540 --> 00:08:25.420
Rashi Kesarwani: Clayton as a lawyer with the ACLU working on voter rights, and Will working with the Movement Voter Project. Cindy was a devoted mother, wife, sister, daughter, and dear friend to many of us. She was a community builder and a tireless advocate for change.

63
00:08:25.420 --> 00:08:29.890
Rashi Kesarwani: We honor and celebrate her exceptional life and will miss her dearly.

64
00:08:32.049 --> 00:08:33.250
Rashi Kesarwani: Thank you.

65
00:08:33.700 --> 00:08:37.380
Boardroom: Thank you so much, and I think we have a couple of folks who are going to speak.

66
00:08:37.990 --> 00:08:48.550
Boardroom: Only two of us are going to speak now, but I was asked to be one of them, because I think Cindy might have been

67
00:08:48.760 --> 00:09:04.269
Boardroom: Well, she and I worked together for a number of years, and I think she had just moved here, and I was one of her first clients. She, of course, became a friend and a force to be reckoned with in this entire community.

68
00:09:04.380 --> 00:09:13.400
Boardroom: As Rashi said, Cynthia lived a life of passion and purpose, and she was the most focused person I ever knew.

69
00:09:13.640 --> 00:09:16.590
Boardroom: She had two great passions, really.

70
00:09:16.770 --> 00:09:20.280
Boardroom: One was that women's voices be heard.

71

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00:09:20.410 --> 00:09:21.990
Boardroom: unrepresented.

72
00:09:22.090 --> 00:09:28.340
Boardroom: When decisions were made about the community. And the other was her family.

73
00:09:28.650 --> 00:09:33.930
Boardroom: And her, I'll say her extended family and community.

74
00:09:35.240 --> 00:09:51.560
Boardroom: She had several houses on one lot, something we're looking at doing now, more of at Berkeley, with family members living there. It was beautiful, it was a community, and many people involved in Berkeley's

75
00:09:52.680 --> 00:09:54.700
Boardroom: future were there.

76
00:09:54.940 --> 00:10:01.439
Boardroom: I hope… I'm really honored to be here.

77
00:10:01.980 --> 00:10:02.890
Boardroom: I…

78
00:10:03.560 --> 00:10:16.340
Boardroom: Hope her family understands how much she loved them, and how much all of us love her and them as they continue their journeys in our community.

79
00:10:19.260 --> 00:10:36.789
Boardroom: Good evening. My name is Betsy Cotton, and I'm the former Executive Director for Close the Gap California, an organization focused on creating gender parity in the state legislature by 2028. I'm honored to have the opportunity to speak tonight about my colleague and friend, Cynthia Brantley-Pierce.

80
00:10:36.900 --> 00:10:43.159
Boardroom: Who was one of our organization's early fundraisers, and instrumental in propelling the organization forward.

81
00:10:43.490 --> 00:10:49.469

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Boardroom: Cynthia was also the go-to fundraiser for Democratic pro-choice women in the Bay Area.

82
00:10:49.610 --> 00:10:52.880
Boardroom: There was no one better at political fundraising than Cynthia.

83
00:10:53.110 --> 00:10:54.369
Boardroom: She was smart.

84
00:10:54.480 --> 00:11:01.310
Boardroom: organized, and most importantly, knew how to get a crowd in the room. There was no saying no to Cynthia.

85
00:11:02.070 --> 00:11:06.140
Boardroom: I'm particularly grateful that Cynthia chose to share her talents with Close the Gap.

86
00:11:06.300 --> 00:11:11.889
Boardroom: We were a young organization with a big mission to get to gender parity in the California legislature.

87
00:11:12.160 --> 00:11:20.250
Boardroom: In recent years, gender representation in the California legislature had slipped dramatically to less than 25%.

88
00:11:20.450 --> 00:11:22.899
Boardroom: And we were determined to reverse this trend.

89
00:11:23.400 --> 00:11:33.100
Boardroom: With Cynthia taking charge of our fundraising, Close the Gap grew exponentially, allowing the organization to hire much-needed recruiters and get our name out across the state.

90
00:11:33.310 --> 00:11:34.530
Boardroom: And it paid off.

91
00:11:34.700 --> 00:11:43.290
Boardroom: California has now reached gender parity in the State Senate, and we are on track to achieve gender parity in the State Assembly in 2026.

92

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00:11:43.570 --> 00:11:46.959
Boardroom: None of this could be achieved without Cynthia's skill and leadership.

93
00:11:47.740 --> 00:11:56.470
Boardroom: I had the opportunity to work with Cynthia last year on a gubernatorial event between her treatments. She got to work and made the event a huge success.

94
00:11:56.570 --> 00:12:01.090
Boardroom: Showing up with a large network of women from the communities she's developed over the years.

95
00:12:01.540 --> 00:12:08.839
Boardroom: I'm struck by the impact of deeply principled changemakers like Cynthia, who spend their lives working to make the world a better place.

96
00:12:09.030 --> 00:12:17.100
Boardroom: I know that all of us in the East Bay and across the Bay Area will miss her example of professionalism, commitment.

97
00:12:17.310 --> 00:12:19.879
Boardroom: Passion, and most of all, friendship.

98
00:12:20.100 --> 00:12:20.950
Boardroom: Thank you.

99
00:12:43.910 --> 00:12:44.810
Boardroom: Okay, we're gonna do

100
00:12:48.290 --> 00:12:49.300
Boardroom: That is okay.

101
00:12:51.690 --> 00:13:02.290
Boardroom: What do you guys want to get? Yeah, that's right. No, you can take it.

102
00:13:05.640 --> 00:13:09.020
Boardroom: Make sure you can see the camera.

103

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00:13:15.320 --> 00:13:16.190
Boardroom: Sorry.

104
00:13:17.290 --> 00:13:20.760
Boardroom: Apparently, this is my first day with the phone.

105
00:13:22.150 --> 00:13:24.019
Boardroom: Thank you. Thank you.

106
00:13:38.770 --> 00:13:56.059
Boardroom: And, Mayor, I see that, Councilmember Bartlett has joined, so we just need to do the Just Cause exemption script for, Councilmember Bartlett as well. Councilmember Bartlett is participating remotely under the Just Cause exemption, and Councilmember Bartlett, if you could provide a

107
00:13:56.440 --> 00:14:02.280
Boardroom: Brief description of the circumstances relating to your need to appear remotely, at this time.

108
00:14:02.960 --> 00:14:06.149
Ben Bartlett: Yes, under doctor's orders, I'm remanded to the home.

109
00:14:06.150 --> 00:14:07.030
Boardroom: Okay.

110
00:14:07.140 --> 00:14:17.279
Boardroom: And if you… could you disclose if there is anybody 18 years of age or older in the room with you, and if so, what is their relationship to you?

111
00:14:17.690 --> 00:14:21.570
Ben Bartlett: There's a professional nanny in the adjacent room with my 6-year-old.

112
00:14:21.570 --> 00:14:22.340
Boardroom: Okay.

113
00:14:22.700 --> 00:14:25.109
Boardroom: Thank you very much.

114

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00:14:25.370 --> 00:14:26.040
Ben Bartlett: Thank you.

115
00:14:26.350 --> 00:14:45.030
Boardroom: Oh, okay. We can proceed. Thank you. We have another adjournment in memory that Councilmember Trejup will read. Thank you so much to Councilmember Kesarwani for reading the previous one. Go ahead, Councilmember. For Winston Burton. And so Winston's family or friends, if you're here, you're welcome to also come up to the podium.

116
00:14:49.200 --> 00:14:50.310
Boardroom: Thank you.

117
00:14:51.480 --> 00:15:04.170
Boardroom: Winston Edward Burton, a devoted father, community advocate, and lifelong educator, passed away on January 26th at age 77, after a long battle with diabetes.

118
00:15:06.200 --> 00:15:11.770
Boardroom: A proud father of three, grandfather of 4, And great-grandfather of two.

119
00:15:12.270 --> 00:15:22.169
Boardroom: Winston loved his family deeply, and dedicated his life to serving others, especially those on the margins of the Berkeley community.

120
00:15:22.660 --> 00:15:32.640
Boardroom: Born in Philadelphia, and I'll never forget his torrent reminder, whenever I did anything wrong, or not up to a standard, that

121
00:15:32.740 --> 00:15:33.959
Boardroom: You can take…

122
00:15:34.160 --> 00:15:42.550
Boardroom: me out of Philly, but you can't take Philly out of me, he would say. He began his career as a cab driver.

123
00:15:42.650 --> 00:15:48.919
Boardroom: Before becoming an electronics instructor and pioneering workforce training program.

124

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00:15:49.590 --> 00:16:05.320
Boardroom: From launching a program for single mothers in electronics to developing employment initiatives for displaced workers, refugees, and unhoused individuals, his work spanned decades and changed countless lives.

125
00:16:06.200 --> 00:16:14.169
Boardroom: After moving to the Bay Area in 1982, Winston dedicated himself to expanding opportunity for others.

126
00:16:14.460 --> 00:16:17.560
Boardroom: He began with Advocates for Women in Hayward.

127
00:16:17.660 --> 00:16:25.340
Boardroom: Then, in 1983, developed and led the Refugee Employment Program for Catholic Charities of Oakland.

128
00:16:25.700 --> 00:16:32.380
Boardroom: In 1988, he became Employment Coordinator and Program Director at Boss.

129
00:16:33.250 --> 00:16:44.119
Boardroom: Building Opportunities for Self-Sustainability, where he focused on creating job training and employment pathways for unhoused individuals across Alameda County.

130
00:16:44.230 --> 00:16:50.090
Boardroom: Work that reflected his lifelong commitment to dignity, equity, and community impact.

131
00:16:50.610 --> 00:16:53.809
Boardroom: Winston also became a leader in community service.

132
00:16:54.390 --> 00:16:56.930
Boardroom: Working with organizations like BOSS,

133
00:16:57.770 --> 00:17:04.150
Boardroom: but also serving on numerous local boards, including the Berkeley Public Library Board of Trustees.

134
00:17:04.400 --> 00:17:10.940

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Boardroom: and the NWACP Berkeley Chapter, Where I got to work with him when he was its president.

135
00:17:11.250 --> 00:17:14.170
Boardroom: He was also a musician in his youth.

136
00:17:14.400 --> 00:17:20.139
Boardroom: A devoted sports fan, a beloved organizer of family and community gatherings.

137
00:17:20.609 --> 00:17:27.870
Boardroom: He believed in bringing people together across differences with honesty, humor, and respect.

138
00:17:29.450 --> 00:17:41.820
Boardroom: He is survived by his three sons, grandchildren, great-grandchildren, and extended family, who are here today, and all of whom carry forward his legacy of compassion, equity.

139
00:17:41.930 --> 00:17:43.290
Boardroom: and community.

140
00:17:43.930 --> 00:17:46.049
Boardroom: May his soul rest in power.

141
00:17:46.530 --> 00:17:50.989
Boardroom: May his legacy continue to inspire the Berkeley community.

142
00:17:51.460 --> 00:17:56.730
Boardroom: our beloved Berkeley community that he loved so dearly.

143
00:17:58.330 --> 00:17:59.670
Boardroom: Thank you,

144
00:18:00.560 --> 00:18:07.499
Boardroom: My dad taught me a lot of things, but most of all, he taught me to never give up, and that nothing is ever easy.

145
00:18:07.890 --> 00:18:21.940

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Boardroom: He would fight with a DMV or Kaiser for hours, on hold, and always stay on the line rather than receiving a callback, because it was faster. Very persistent, immovable, like a stone in a riverbed.

146
00:18:22.330 --> 00:18:28.880
Boardroom: He taught me how important it was to stay level-headed in every situation, or as he called it, the middle path.

147
00:18:29.880 --> 00:18:34.300
Boardroom: Here are a few of my favorite parables, he would say, that are now instilled in me.

148
00:18:34.430 --> 00:18:38.300
Boardroom: And hopefully, They will stay with all of you as well.

149
00:18:39.110 --> 00:18:47.590
Boardroom: Anytime I was frustrated or anxious about something, he would tell me, a journey of a thousand miles begins with a single step.

150
00:18:47.750 --> 00:18:51.839
Boardroom: Or his version, by the yard is hard, but an inch is a cinch.

151
00:18:52.970 --> 00:18:59.260
Boardroom: Neither too high or too low. Sometimes when you stop, The faster you go.

152
00:19:01.040 --> 00:19:02.790
Boardroom: If you're trying to get ahead.

153
00:19:03.330 --> 00:19:06.139
Boardroom: Don't let the sun catch you lying in the bed.

154
00:19:08.730 --> 00:19:12.429
Boardroom: Or my favorite, and most calcified within my conscious being.

155
00:19:12.700 --> 00:19:14.779
Boardroom: Once a job is once begun.

156
00:19:14.910 --> 00:19:16.920
Boardroom: Do it well until it's done.

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157
00:19:17.200 --> 00:19:19.269
Boardroom: Be it big, or be it small.

158
00:19:19.450 --> 00:19:21.519
Boardroom: Do it well, or not at all.

159
00:19:22.350 --> 00:19:28.700
Boardroom: Last but not least, his favorite and shortest quote, obstacle… Popsicle.

160
00:19:31.090 --> 00:19:34.559
Boardroom: For a long time, I didn't understand the meaning of this.

161
00:19:34.750 --> 00:19:39.170
Boardroom: But as I grow older, to me it means no excuses.

162
00:19:39.740 --> 00:19:43.930
Boardroom: All I ask is you remember my father for the man he was.

163
00:19:44.430 --> 00:19:47.930
Boardroom: And what he has done for you and the community. Thank you.

164
00:20:12.400 --> 00:20:15.350
Boardroom: Also, I kneel down.

165
00:20:42.700 --> 00:20:43.790
Boardroom: Sometimes working.

166
00:21:01.190 --> 00:21:05.050
Boardroom: Thank you all, so much. I appreciate

167
00:21:05.540 --> 00:21:10.010
Boardroom: Everyone's, being respectful while we do, the ceremonial matters.

168
00:21:10.250 --> 00:21:15.580
Boardroom: Very sad when we lose people in our community, especially those who have been so involved.

169

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

00:21:15.900 --> 00:21:21.099
Boardroom: We will now move on to City Manager comments.

170
00:21:21.290 --> 00:21:23.650
Boardroom: I don't have any comments tonight, Madam Mayor, thank you.

171
00:21:24.560 --> 00:21:29.699
Boardroom: Thank you. Alright, we will now take public comment on non-agenda matters.

172
00:21:33.440 --> 00:21:36.180
Boardroom: Okay, so we'll pick, 5…

173
00:21:36.880 --> 00:21:42.729
Boardroom: Cards, here in person, and then we'll go to the first

174
00:21:43.060 --> 00:21:55.000
Boardroom: 5 hands raised, on the Zoom, and each speaker will have, one minute each. And again, this is only for items that are not

175
00:21:55.580 --> 00:21:57.070
Boardroom: on the agenda.

176
00:21:59.230 --> 00:22:02.090
Boardroom: Can we confirm that people online can hear us?

177
00:22:03.120 --> 00:22:03.810
Boardroom: Oh.

178
00:22:04.010 --> 00:22:05.940
Boardroom: You can hear? Okay.

179
00:22:06.310 --> 00:22:07.440
Boardroom: Alright, thank you.

180
00:22:09.620 --> 00:22:10.350
Boardroom: Wait.

181
00:22:12.130 --> 00:22:18.170

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Boardroom: For, for… it's on… no, if it's on the agenda, you don't need a card. Okay, so the,

182
00:22:18.390 --> 00:22:24.769
Boardroom: the five… In person, Speakers, and you can come up in any order.

183
00:22:25.240 --> 00:22:37.050
Boardroom: We have, Ravi Bath, we have Perant, PJ Singh… Amrik Singh.

184
00:22:37.310 --> 00:22:39.320
Boardroom: And Jared Essig?

185
00:22:39.590 --> 00:22:44.999
Boardroom: So you can come up in any order to talk on items that are not on the agenda.

186
00:22:50.410 --> 00:22:52.629
Boardroom: And you have 1 minute each.

187
00:22:54.310 --> 00:23:00.170
Boardroom: If you, if you could, you can come and line up here if, if you'd like to… Good evening.

188
00:23:01.500 --> 00:23:06.960
Boardroom: Madam Mayor, City Council members, I'm here again to talk about…

189
00:23:07.470 --> 00:23:16.429
Boardroom: how important it is to tell stories. We heard two stories, wonderful individuals are being celebrated, because they've done such a great job.

190
00:23:17.190 --> 00:23:21.070
Boardroom: And I'm here to request that When we celebrate

191
00:23:21.430 --> 00:23:27.390
Boardroom: We need to make sure that we celebrate those individuals, who have…

192
00:23:27.910 --> 00:23:32.659

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Boardroom: accurate stories. Stories is what makes us who we are.

193
00:23:33.020 --> 00:23:38.190
Boardroom: And I am requesting you to… Consider.

194
00:23:38.980 --> 00:23:46.050
Boardroom: how Kalabagai Way was named. It's very disheartening to our community, and I have spent 14 months

195
00:23:46.970 --> 00:23:52.370
Boardroom: Finding the evidence which doesn't support the narrative that was presented to the city.

196
00:23:52.490 --> 00:23:55.170
Boardroom: And we are willing to share the evidence.

197
00:23:55.390 --> 00:23:59.700
Boardroom: And, we want to work with you, to restore.

198
00:23:59.900 --> 00:24:01.819
Boardroom: this history. Thank you. Thank you.

199
00:24:07.430 --> 00:24:09.239
Boardroom: Come on up, if your name was called.

200
00:24:09.870 --> 00:24:12.979
Boardroom: And if your name was called, you can also line up over here.

201
00:24:18.330 --> 00:24:28.119
Boardroom: Only Mayor and members of the Council, my name is Ravi Bhart. I'm here to express the sentiments of my community that has been discarded

202
00:24:28.320 --> 00:24:32.359
Boardroom: by the city decision of naming portion of Chattuck Avenue as

203
00:24:32.530 --> 00:24:37.460
Boardroom: And request the city correct the historical inaccuracy.

204
00:24:37.880 --> 00:24:47.039

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Boardroom: The current designation is based on the narrative that portrays Kalap Gai as a social activist who suffered discrimination as an immigrant from India. However.

205
00:24:47.140 --> 00:25:02.389
Boardroom: Factual documentation suggests a different history. Our research indicates that she was the spouse of Vaishnam Bhagai, a colonial supply, and lived a life of significant privilege and social life with substantial property and market investments.

206
00:25:02.560 --> 00:25:06.509
Boardroom: Furthermore, noting the recent resolution to name the park

207
00:25:06.900 --> 00:25:22.790
Boardroom: Recently dedicated to Cesar Chavez, I request that the city apply the same standard. I urge you to rename Calab Gaiwei after an individual who authentically devoted their life to fighting discrimination and… Thank you. Thanks so much.

208
00:25:30.380 --> 00:25:40.899
Boardroom: Good afternoon, City Councilors, Mayor, City Manager. My name's Jared Essek. I'm here to speak to you about accessibility for government services.

209
00:25:41.150 --> 00:25:48.549
Boardroom: You know, I'm… I was here, you know, about a decade ago, and I recently came back.

210
00:25:48.670 --> 00:26:00.749
Boardroom: And I looked for a map of Berkeley, and it was very hard to find. This is available in your visitor center on Addison, but it took me 2 hours to find this. I went to City Hall, I went to the Civic Center on Center Street.

211
00:26:00.950 --> 00:26:10.660
Boardroom: And no one even knew where the visitor center was. Someone looked it up eventually and pointed me there. Eventually, I got a map of Berkeley. But…

212
00:26:11.820 --> 00:26:21.969
Boardroom: Then I came back and looked for, the location and the agenda for the City Council meeting, and also, both in the City Hall and the Civic Center, no one knew what the agenda was.

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213
00:26:22.120 --> 00:26:26.419
Boardroom: or where the meeting was. In fact, you don't even have a city employee in the lobby.

214
00:26:26.480 --> 00:26:44.189
Boardroom: You have a security contractor, and they did a very good job, actually, but you need a city employee as a concierge or ombudsman, otherwise it's not accessible, and I question whether you even meet California experts. This might be in Legal Assembly, for all I know. Thank you so much.

215
00:26:46.780 --> 00:26:48.190
Boardroom: Our last speaker.

216
00:26:52.930 --> 00:26:59.180
Boardroom: Thank you. I stand with the PJ and Ravinder Wars comments. Thank you.

217
00:27:00.100 --> 00:27:01.190
Boardroom: Thank you.

218
00:27:04.060 --> 00:27:14.799
Boardroom: Okay, so that… That was… Okay. Now we'll go to the…

219
00:27:15.170 --> 00:27:18.030
Boardroom: Speakers, with their hands raised.

220
00:27:18.310 --> 00:27:23.819
Boardroom: This is for… Public comments for items not on the agenda.

221
00:27:24.160 --> 00:27:28.709
Boardroom: We have 3 hands raised. First is, Joseph.

222
00:27:35.860 --> 00:27:42.700
Joseph from Chadcord: people, think TempleOS is a joke because of the graphics, but as a matter of fact, that's God's, plan, because, like,

223
00:27:43.590 --> 00:27:55.109
Joseph from Chadcord: I have to explain this over and over, right? Oh, why does He continue to fix your graphics, right? No, God wants it 640x480 forever. And, only 16 colors, though, because,

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224
00:27:55.110 --> 00:28:12.730
Joseph from Chadcord: Let me explain the logic. My mom taught preschool, and they used to do crayon colorings, right? And, she said it was kind of weird, like, as soon as the kids made something with colors, for some reason they'd take a black crayon and put it all over, and, like, you'd get a really ugly thing covered with black.

225
00:28:12.900 --> 00:28:20.570
Joseph from Chadcord: And, she just said, she just was wondering, maybe it's a feeling of power or something, you know, black is a… it can overwrite the other colors and stuff.

226
00:28:20.570 --> 00:28:34.199
Joseph from Chadcord: But, so, like, inevitably, when you give the kids a black crayon, they're gonna, like, cover the whole thing with black. And so she used to take away the black crayon. And, that's, that's kind of the logic here. God's favorite game is Donkey Kong, right? So, like,

227
00:28:34.200 --> 00:28:38.880
Joseph from Chadcord: It's like, dude, you give them that high resolution and stuff, then what do they do?

228
00:28:39.070 --> 00:28:47.199
Boardroom: Thank you. Okay. We also have another… the next raised hand is also a speaker named Joseph.

229
00:28:47.980 --> 00:28:50.119
Boardroom: Joseph, you should be able to unmute.

230
00:28:53.500 --> 00:28:54.819
Joseph: Hello, can you hear me?

231
00:28:55.190 --> 00:28:55.860
Boardroom: Yes.

232
00:28:56.210 --> 00:29:01.400
Joseph: Yes, my name is Joseph Fouad Rafiklu. I am a proud Azerbaijani immigrant.

233
00:29:01.520 --> 00:29:14.300

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Joseph: And I would like to talk to you about a problem that has been plaguing our city. My family owns a Medicare business where we help facilitate Medicare to people who need it. And our city is being overrun.

234
00:29:14.430 --> 00:29:21.840
Joseph: by Armenian rats, who come in and use fake Medicare businesses to destroy our systems.

235
00:29:21.980 --> 00:29:26.180
Joseph: and take over our country. We need to stop the Armenian…

236
00:29:27.450 --> 00:29:30.379
Boardroom: Okay. Next is, Della Luna.

237
00:29:34.210 --> 00:29:44.109
Della Luna (she/her) Huichun: Yeah, I guess I'll start by speaking on that. I wish whoever was in charge of that could be faster on getting those bogus calls out of here, because they can be offensive and racist quite easily.

238
00:29:44.170 --> 00:29:59.179
Della Luna (she/her) Huichun: I wanted to speak about the pedestrian crosswalk at the Ashby Bart. Construction started, I guess, finished, over 6 weeks ago, but all the cones were taken down, and the crosswalk has not been painted or finished, and I'm requesting that you put construction cones

239
00:29:59.950 --> 00:30:06.340
Della Luna (she/her) Huichun: to indicate that there is a crosswalk for the drivers. I feel like pedestrians are quite confident in that space.

240
00:30:06.480 --> 00:30:12.150
Della Luna (she/her) Huichun: But the drivers not seeing the crosswalk is quite dangerous for the pedestrians.

241
00:30:12.810 --> 00:30:25.509
Della Luna (she/her) Huichun: Secondly, at the last meeting, there was a lot of, like, trying to direct public comment or speed it up, but that is part of the process, and this body needs to acknowledge that when you put something on the agenda, that means you're going to listen to public comment.

242
00:30:25.580 --> 00:30:34.839

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Della Luna (she/her) Huichun: So, it doesn't have to be directed, or redirected, or get everyone in line, and faster, faster, faster, all of that is unnecessary. If there's no time for something, then put it on another agenda.

243
00:30:35.010 --> 00:30:45.899
Della Luna (she/her) Huichun: And it… the… changing what gets put on the agenda will impact the public comment, rather than trying to speed direct it, one by one, every person. That energy should not happen.

244
00:30:46.670 --> 00:30:47.920
Boardroom: Thank you.

245
00:30:48.550 --> 00:30:51.700
Boardroom: And then we have, Pauline.

246
00:30:52.680 --> 00:30:54.579
Boardroom: Pauline, you should be able to unmute.

247
00:30:56.920 --> 00:31:17.050
Pauline Bondonno: Hi, thank you very much, Honorable Mayor and City Council. My name is Pauline Bondano-Cross, and I own a Community Health Educate… I'm the Executive Director of Community Health Education Institute. I wanted to comment on Item 13 on, the voting this evening. Item 13 will not…

248
00:31:17.050 --> 00:31:21.260
Boardroom: On the agenda, we'll be taking up comments on the consent calendar soon.

249
00:31:21.540 --> 00:31:22.930
Pauline Bondonno: Oh, okay, thank you.

250
00:31:26.530 --> 00:31:27.979
Boardroom: That, that's it.

251
00:31:29.630 --> 00:31:32.650
Boardroom: Alright, thank you.

252
00:31:33.340 --> 00:31:38.860
Boardroom: We are now going to move on to public common by employee unions, which happens as the first regular meeting of the month.

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253
00:31:39.210 --> 00:31:41.450
Boardroom: And I believe I saw Maureen.

254
00:31:47.310 --> 00:31:49.970
Boardroom: I brought a few friends with me in case I need some more time.

255
00:31:50.080 --> 00:31:53.020
Boardroom: 5 minutes is the max for this portion.

256
00:31:53.810 --> 00:32:00.730
Boardroom: Good evening, and thank you for the opportunity to speak. My name is Amore Langmom, and I'm the president of the Berkeley Firefighters Local 1227.

257
00:32:02.070 --> 00:32:07.419
Boardroom: Tonight, I want to use my time to speak on the notice of proposed position eliminations I received last Friday.

258
00:32:08.790 --> 00:32:16.760
Boardroom: In total, 20 positions have been proposed for elimination, along with the closure of Fire Station 4.

259
00:32:17.910 --> 00:32:22.560
Boardroom: I want to make the case tonight for why this is an incredibly dangerous position for the city to take.

260
00:32:23.720 --> 00:32:27.609
Boardroom: I also want to highlight something that should not be lost in this conversation.

261
00:32:28.340 --> 00:32:33.849
Boardroom: Over the last 18 years, the citizens of Berkeley have given the city a clear mandate to fund public safety.

262
00:32:35.130 --> 00:32:42.280
Boardroom: They passed two dedicated fire department tax measures, Measure GG in 2008, and Measure FF in 2020.

263
00:32:42.730 --> 00:32:46.040
Boardroom: Bringing in nearly $16.2 million annually.

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264
00:32:47.320 --> 00:32:56.670
Boardroom: That is the public telling the city repeatedly that they value this service. Tonight's proposal moves in opposition of direct direction of that mandate.

265
00:32:57.860 --> 00:33:00.939
Boardroom: These cuts rolled the department back 20 years.

266
00:33:01.360 --> 00:33:06.810
Boardroom: These proposed cuts don't just reduce the fire department, they roll it back 20 years in a city that is

267
00:33:07.060 --> 00:33:09.930
Boardroom: Grown dramatically in every direction since then.

268
00:33:10.350 --> 00:33:15.929
Boardroom: The call volume in the same period of time has gone from 11,000 incidents per year to 17,500.

269
00:33:16.760 --> 00:33:19.560
Boardroom: The city is growing, and we are moving backward.

270
00:33:19.750 --> 00:33:25.950
Boardroom: Berkeley is the second most densely populated city in California's top 50, behind only San Francisco.

271
00:33:26.940 --> 00:33:32.340
Boardroom: We are adding 500 new housing units every year, roughly 1% of total housing stock annually.

272
00:33:33.110 --> 00:33:37.169
Boardroom: Population swells to over 150,000 when UC is in session.

273
00:33:37.520 --> 00:33:42.139
Boardroom: That's more people, more calls, more incidents, fewer firefighters.

274
00:33:43.590 --> 00:33:46.519
Boardroom: Station 4 is not a low-volume luxury.

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275
00:33:46.890 --> 00:33:51.089
Boardroom: Agent 4 ran 1,538 calls in 2025.

276
00:33:51.420 --> 00:33:57.769
Boardroom: That includes 28 fires, 966 medical emergencies, and 17 cardiac arrests.

277
00:33:58.500 --> 00:34:03.930
Boardroom: 47% of the time, citywide, there are multiple simultaneous incidents.

278
00:34:04.180 --> 00:34:07.160
Boardroom: Units are already committed when the next call drops.

279
00:34:07.460 --> 00:34:12.680
Boardroom: Engines 2, 5, and 6 are already at or above recommended maximum call limit.

280
00:34:13.409 --> 00:34:21.189
Boardroom: Station 4's 1,538 annual calls don't disappear when you close it. They get pushed onto companies that are already maxed out.

281
00:34:22.380 --> 00:34:23.880
Boardroom: The life safety math.

282
00:34:24.480 --> 00:34:29.040
Boardroom: Every minute of delay in cardiac arrest reduces survival by 7-10%.

283
00:34:30.139 --> 00:34:33.110
Boardroom: Our home fires reach flashover in 9 to 6 minutes.

284
00:34:33.620 --> 00:34:36.730
Boardroom: Fires double in size every 30 to 60 seconds.

285
00:34:37.260 --> 00:34:45.780
Boardroom: Traumatic injuries, responses… response over 20… 12… I'm sorry, 12 minutes are linked to nearly double the fatality rate.

286
00:34:46.000 --> 00:34:48.330

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Boardroom: Compared to response under 7 minutes.

287
00:34:48.679 --> 00:34:53.179
Boardroom: These are not abstractions. Engine 4 responded to 17 cardiac arrests last year alone.

288
00:34:54.750 --> 00:35:03.009
Boardroom: The citizens said the resource… if we need to add resources, not cut them. In 2023, the city paid for an independent standards of coverage study.

289
00:35:03.390 --> 00:35:10.889
Boardroom: City Hate's conclusion, Berkeley Fire Department is organized for yesterday's mission, and is struggling to meet today's demand.

290
00:35:11.630 --> 00:35:19.210
Boardroom: Their recommendation at four-person staffing, tallies 4 of 7 engine companies and both truck companies.

291
00:35:19.730 --> 00:35:29.730
Boardroom: Four-person crews complete fire ground tasks 5.1 minutes faster, 25% faster on life safety tasks, like fire attack and search and rescue.

292
00:35:32.910 --> 00:35:41.620
Boardroom: The bottom line, the citizens of Berkeley have voted twice in 18 years to fund the department. They have given the city a $16.2 million a year

293
00:35:41.760 --> 00:35:42.540
Boardroom: mandate.

294
00:35:42.670 --> 00:35:46.800
Boardroom: I'm asking the city reject the proposed position eliminations and the closure

295
00:35:54.450 --> 00:35:56.490
Boardroom: The closure of Fire Station 4.

296
00:35:57.700 --> 00:36:02.659
Boardroom: In fact, the City Manager to find another path forward. Thank you.

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297
00:36:22.040 --> 00:36:26.290
Boardroom: Thank you. Is there anyone else here from a union that wants to speak?

298
00:36:28.430 --> 00:36:30.740
Boardroom: Or maybe sometimes folks are online.

299
00:36:33.130 --> 00:36:34.479
Boardroom: No other designated.

300
00:36:34.710 --> 00:36:36.020
Boardroom: representatives.

301
00:36:36.260 --> 00:36:38.470
Boardroom: Thank you, and thank you all for being here.

302
00:36:40.100 --> 00:36:42.739
Boardroom: Okay, we're moving on to the consent calendar.

303
00:36:43.150 --> 00:36:48.410
Boardroom: So, I will start off to see if my council colleagues have comments.

304
00:36:49.640 --> 00:36:51.959
Boardroom: Starting with Councilmember Humbert.

305
00:36:52.480 --> 00:37:11.289
Boardroom: Thank you, Madam Mayor. And I'm making reference to the item on the action calendar number 18, which is a Mills Act contract for 2845 Woolsey, which was continued from March 24, 2026, the agenda for that meeting.

306
00:37:11.430 --> 00:37:16.639
Boardroom: I'd like to request unanimous support for the item being returned to the consent calendar.

307
00:37:17.000 --> 00:37:29.109
Boardroom: Based on conversation with staff, I feel comfortable with the Mills Act contract being approved. The application came in before the

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pause, and the LPC's lack of action appears to have been the result of some absences.

308
00:37:29.370 --> 00:37:41.549
Boardroom: As well as uncertainty created by the pause in how to dispose of Mills Act applications already in progress. For fairness's sake, I think it's reasonable to approve this one, understanding that once all outstanding

309
00:37:41.550 --> 00:37:52.989
Boardroom: Applications received before the cutoff are processed, we won't be reviewing or approving any more for the foreseeable future, so I'd ask unanimous consent to place that back on consent.

310
00:37:54.350 --> 00:38:01.469
Boardroom: Thank you. I see no… Opposition to that, so…

311
00:38:03.200 --> 00:38:09.200
Boardroom: Okay, we will move that to consent then. Thank you. And then I have just one more comment on the consent calendar.

312
00:38:09.380 --> 00:38:16.260
Boardroom: $250 contribution… to…

313
00:38:17.920 --> 00:38:33.529
Boardroom: Number 15, which is sponsored by Councilmember Bartlett, the celebration, for Sylvia Mendez, the Spring Cultural Celebration. $250 from our office account. Thank you. Thank you very much. Moving on to Councilmember Blackaby.

314
00:38:34.990 --> 00:38:38.249
Boardroom: Thanks, Madam Mayor. Just, two brief comments.

315
00:38:38.580 --> 00:38:47.820
Boardroom: Similarly, on item 14, the Kala Art, relinquishment, we'd like to, relinquish $250 from the District 6 account.

316
00:38:48.140 --> 00:38:55.829
Boardroom: And item 15 on the Sylvia Mendez Spring Cultural Celebration. Similarly, we want to relinquish, $250.

317
00:38:55.960 --> 00:38:58.379

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Boardroom: And I wanted to thank,

318
00:38:58.610 --> 00:39:16.449
Boardroom: Councilmember Kastarwani and team for bringing item 13, the referral to establish a citywide local density bonus program to facilitate lower-cost ownership homes, the condo item. I'm really interested in hearing back from staff on what might be possible there, and I wanted to thank Councilmember Kastarwani for bringing it. Thank you.

319
00:39:16.900 --> 00:39:19.720
Boardroom: Thank you very much. Councilmember Tragub?

320
00:39:20.640 --> 00:39:37.620
Boardroom: Thank you so much, Madam Mayor, and thank you to City staff for all your work, to bring, a number of, items on consent. I'm very happy to support item number 4, which is the downtown

321
00:39:37.950 --> 00:39:43.099
Boardroom: Berkeley Association bid renewal, this vital, well, or funding…

322
00:39:43.210 --> 00:40:03.139
Boardroom: Funding allocation, GAAP funding allocation. This vital organization is making so much good happen in our beloved downtown, from continuously keeping up with our businesses and property owners, to keeping our downtown clean and cared for, to relentlessly and creatively beautifying it. Thank you so much, John and the entire DBA staff.

323
00:40:03.220 --> 00:40:08.409
Boardroom: As well as our Economic Development Department for your ongoing support and help.

324
00:40:08.650 --> 00:40:12.539
Boardroom: On item 12, which is, to…

325
00:40:12.620 --> 00:40:30.490
Boardroom: startup process to rename Cesar Chavez Park. I'm happy to support this item. I believe it creates a path for thoughtful community engagement while ensuring that we continue to honor the legacy of farm workers, and their essential contributions, and…

326
00:40:30.570 --> 00:40:45.290

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Boardroom: I think of farm workers like, the father of my life partner, a Manong who immigrated from the Philippines to start a life here for him and his family and support them.

327
00:40:46.940 --> 00:40:54.080
Boardroom: On item 13, I, would like to thank,

328
00:40:54.790 --> 00:41:04.949
Boardroom: Councilmember Kesarvani, and my co-sponsors, for this item, which relates to, making it

329
00:41:05.080 --> 00:41:07.920
Boardroom: Easier to,

330
00:41:09.070 --> 00:41:24.339
Boardroom: move stout projects, including in our downtown, forward. I'm supporting this item because it is our duty to explore all viable solutions to make sure that our precious downtown,

331
00:41:24.640 --> 00:41:28.710
Boardroom: Properties are not sitting vacant and abandoned.

332
00:41:29.050 --> 00:41:31.150
Boardroom: This is a referral.

333
00:41:31.720 --> 00:41:38.640
Boardroom: And… I look forward to staff returning with the information that the referral requests.

334
00:41:38.880 --> 00:41:43.000
Boardroom: This process will,

335
00:41:43.170 --> 00:41:49.580
Boardroom: I think, continue to benefit from all the thoughtful community engagement that we received.

336
00:41:49.760 --> 00:41:52.630
Boardroom: And I look forward to seeing it when it comes back.

337
00:41:52.810 --> 00:42:02.249

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Boardroom: On items 14 and 15, I'm happy to contribute $150 from my Council office budget to support these important community initiatives.

338
00:42:02.620 --> 00:42:10.879
Boardroom: And lastly, on item 17, Which is, support for amendments to the Berkeley Green Code.

339
00:42:12.280 --> 00:42:19.440
Boardroom: I, I'm grateful to Councilmember Luna Parra and Taplin as my co-sponsors.

340
00:42:19.690 --> 00:42:35.460
Boardroom: And I'm grateful to, staff, particularly Jordan and, the, Office of, Environment, Environmental Sustainability for your work on this item.

341
00:42:36.120 --> 00:42:50.930
Boardroom: These amendments will help, ensure that Berkeley continues to be a climate leader, when it comes to, green buildings, including, both new and existing construction.

342
00:42:51.060 --> 00:43:03.169
Boardroom: It also includes opportunities to streamline the permitting of green features, such as heat pumps, and to make it easier for residents and builders alike to adopt more sustainable technologies.

343
00:43:04.070 --> 00:43:15.700
Boardroom: I'm pleased to see this item moving forward in a way… in a way that advances our sustainability goals, while also making implementation more practical and accessible.

344
00:43:15.840 --> 00:43:23.649
Boardroom: And I'm grateful to those who have called in or written in in support of this item, including the Sierra Club. Thank you.

345
00:43:24.780 --> 00:43:27.949
Boardroom: Thank you very much. Councilmember Lenapara.

346
00:43:28.610 --> 00:43:37.490
Boardroom: Thank you. I would like to donate $150, to item 14, and $250 to item 15.

347

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00:43:37.610 --> 00:43:46.560
Boardroom: And thank you to the authors. I also want to thank Mayor Ishii and the community for their work on Item 12 to rename the Cesar Chavez Park and align our holiday with the state's.

348
00:43:46.700 --> 00:43:51.039
Boardroom: And thank Vice Mayor Trey Gubb for his work on the green building codes. Thank you.

349
00:43:52.080 --> 00:43:55.089
Boardroom: Thank you very much. Councilmember Kesarwani?

350
00:43:57.170 --> 00:44:16.550
Rashi Kesarwani: Thank you very much, Madam Mayor. I'd like to be recorded as donating $100 to Kalah, and $100 for the Sylvia Mendez Spring Celebration, and I just wanted to thank my colleagues for their support of the local density bonus item to promote condo development. Thank you very much.

351
00:44:17.280 --> 00:44:20.080
Boardroom: Thank you, Councilmember Bartlett.

352
00:44:23.550 --> 00:44:25.769
Ben Bartlett: Hi, so,

353
00:44:25.770 --> 00:44:47.910
Ben Bartlett: Please. Excuse the background noise. The, I'd like to… $150 to item 14, the Color Arts Center, a beautiful place. Item, 13, really happy about the local density bonus for affordable condominium ownership. We heard that at the Landers Committee, that I chair, and I'm really pleased with the outcome, and look, thank you for

354
00:44:47.910 --> 00:44:56.650
Ben Bartlett: putting this forward, Councilor Kesarwani. The, I'd like to, of course, thank you all, and for supporting the Sylvia Mendez.

355
00:44:56.650 --> 00:45:15.680
Ben Bartlett: cultural celebration. It's, you know, it's a bilingual school, so this is a really good party every year. So, I'm gonna have, of course, add $250 to that for myself. Oh, I guess I have $1,000 for me. Gonna confirm this $1,000 for my budget here for this one. And then, also, Dolores Cooper, is a stalwart member of the community. This is item…

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356
00:45:15.880 --> 00:45:30.999
Ben Bartlett: item 16, and so the people came forward and asked us to… to consider naming this plaza over there, after Dolores Cooper. Dolores Cooper, of course, is the longtime head of Juneteenth, and has really made

357
00:45:31.000 --> 00:45:36.859
Ben Bartlett: maximum use of that location, and so it'd be a wonderful treasure if the Commission decides to name it after her.

358
00:45:36.860 --> 00:45:47.639
Ben Bartlett: And then, last but not least, I do want to call out, I couldn't speak earlier, Winston Burton was a lifelong friend of mine from childhood, and he was a wonderful human being, a powerful advocate.

359
00:45:47.640 --> 00:46:03.449
Ben Bartlett: a true Berkeley original, and he will be missed, and if his family's listening or still there, my prayers go out to you. And I just saw him in the hospital just 4 months ago, and I was really stunned that he didn't come out, come out of it the right way. And my prayers are with you. God bless Watson.

360
00:46:05.600 --> 00:46:08.919
Boardroom: Thank you, Councilmember. Councilmember O'Keefe.

361
00:46:10.370 --> 00:46:27.970
Boardroom: Thank you. Just briefly, I would like to be recorded as donating $200 for, items 14 and 15. Both seem like worthy causes. And, my only other comment is I really want to thank Councilmember Kesarwani for item 13. I think this is a…

362
00:46:28.080 --> 00:46:37.280
Boardroom: a really important… policy hole, for lack of a better word, that, this is a… It's very important.

363
00:46:38.010 --> 00:46:41.759
Boardroom: correction to be made, so thank you so much for bringing that item, and I'm happy to support it.

364
00:46:42.820 --> 00:46:50.760
Boardroom: Thank you very much. Councilmember Humbert, did you have something else you wanted to add? Yes, thank you, Madam Mayor. I missed, number 14.

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365
00:46:51.040 --> 00:46:53.809
Boardroom: Kalah, I guess is how you pronounce it, art.

366
00:46:53.950 --> 00:46:59.629
Boardroom: 2026, and would like to donate $250 from my office account to that item.

367
00:47:01.570 --> 00:47:22.850
Boardroom: Thank you. I'd also like to add $250 from my account for item number 14, and thank Councilmember Taplin for bringing it, and a thank you to Councilmember Bartley for bringing item 15, for the Sylvia Mendez Cultural Celebration, and also donate $250 for my office's discretionary funds for that item as well. Oh, I missed Councilmember Taplin. Go ahead, Councilmember.

368
00:47:23.240 --> 00:47:30.159
Terry Taplin: Thank you very much. I was a little late there. I would also like to relinquish 500.

369
00:47:30.320 --> 00:47:32.590
Terry Taplin: For item 15, thanks.

370
00:47:34.010 --> 00:47:52.250
Boardroom: Thank you very much, and also, since I know some of the folks are here, I really want to thank everyone who, we'd have conversations with about Cesar Chavez and the renaming of the various different holidays and sites within our city. We've had many community conversations over the last

371
00:47:52.250 --> 00:48:00.919
Boardroom: week, and I'm very grateful to everyone who's weighed in and given us their thoughts. So, thank you very much. I know this has been a really challenging,

372
00:48:01.060 --> 00:48:04.820
Boardroom: situation for the community. So, thank you.

373
00:48:04.930 --> 00:48:12.140
Boardroom: Okay. With that, I will see if there's any public comment on consent calendar and information items only.

374

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00:48:23.410 --> 00:48:28.759
Boardroom: Come on up! Just come forward, line up along the wall there, and you can come forward to speak, yes.

375
00:48:29.390 --> 00:48:31.029
Boardroom: One minute per speaker.

376
00:48:33.160 --> 00:48:36.879
Boardroom: Good evening, Madam Mayor, Council Members.

377
00:48:37.110 --> 00:48:46.999
Boardroom: And, city manager. I'm here, I go by Duran. I'm here to talk about item 13, Local Density bonus program.

378
00:48:47.200 --> 00:48:48.349
Boardroom: And,

379
00:48:48.560 --> 00:49:07.790
Boardroom: I believe you cannot legally establish a new local density bonus program while the mayor and the council actually actively enable a documented density fraud at 2425 Durant. I'd like to understand why you insist pass and uphold the permit while I was here

380
00:49:08.010 --> 00:49:17.130
Boardroom: testify that there's a, this, material fraud in terms of how they Apply the,

381
00:49:17.270 --> 00:49:34.049
Boardroom: permanent with 19 units, you give the high density bonus, while in reality, there's only 15 operation safety limits existing at the cost of a tenant's, life safety with preventable emergencies taking places already. And I've…

382
00:49:35.640 --> 00:49:38.120
Boardroom: Thank you. Thanks for your comment.

383
00:49:42.840 --> 00:49:49.840
Boardroom: Good evening, everybody. My name is Ursula Schultz, and I'm a Berkeley resident, and I'm speaking on item 13.

384
00:49:50.150 --> 00:49:57.340

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Boardroom: And the one thing I think is very useful about the recent projects with density bonuses is they require a minimum amount of reduced

385
00:49:57.500 --> 00:49:58.819
Boardroom: cost housing.

386
00:49:59.000 --> 00:50:02.040
Boardroom: The problem I see with the in-lieu fee.

387
00:50:02.300 --> 00:50:19.619
Boardroom: is it just reiterates the redlining that was there before. Because what's gonna happen? You're suggesting that these fees go to the Ashby BART station? I'm sorry, can you hear me? Yeah. And I don't think it's beneficial to the working families who need

388
00:50:19.860 --> 00:50:22.430
Boardroom: Housing in high-resource districts.

389
00:50:22.530 --> 00:50:26.529
Boardroom: Or are the small business employees who would like to live near their jobs?

390
00:50:26.820 --> 00:50:30.619
Boardroom: And the fees go elsewhere. Also, there's a…

391
00:50:30.810 --> 00:50:34.490
Boardroom: Percentage of the fees that are administratively consumed.

392
00:50:34.670 --> 00:50:41.309
Boardroom: So the condominium stay exclusive in the previously riad-lined neighborhoods remain so.

393
00:50:41.630 --> 00:50:46.990
Boardroom: Building market rate condominiums… you got it. Thank you. Thank you.

394
00:50:52.810 --> 00:50:55.149
Boardroom: I'm requesting 2 extra minutes.

395
00:50:57.710 --> 00:50:58.609
Boardroom: And Harvey?

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396
00:51:00.880 --> 00:51:08.769
Boardroom: Sorry, I couldn't see. Who's… who was the second person? Harvey. Oh, okay, thank you. Thank you very much.

397
00:51:09.460 --> 00:51:19.050
Boardroom: Good evening, my name is Michael Apti. I'm a Berkeley resident speaking to Item 13, the proposed citywide local density bonus for condominium development.

398
00:51:19.510 --> 00:51:21.630
Boardroom: This proposal asks that Council

399
00:51:21.870 --> 00:51:30.289
Boardroom: to allow condominium developers anywhere in Berkeley to elect to pay in new fees instead of building any affordable housing on-site.

400
00:51:30.670 --> 00:51:34.359
Boardroom: For every unit in the project, not some units, all of them.

401
00:51:35.090 --> 00:51:37.660
Boardroom: I want to raise 3 specific concerns.

402
00:51:37.980 --> 00:51:42.040
Boardroom: First, where the affordable housing… affordable housing goes.

403
00:51:42.260 --> 00:51:49.200
Boardroom: The proposal directs those fees into the City's Housing Trust Fund to be spent on affordable housing elsewhere.

404
00:51:49.320 --> 00:51:54.509
Boardroom: It explicitly names Aspe East parking lot in West Berkeley as a destination.

405
00:51:54.880 --> 00:52:01.470
Boardroom: West Berkeley is a historically lower-income, historically un… Underserved neighborhood.

406
00:52:01.820 --> 00:52:06.040
Boardroom: So the structural outcome is this. The market rate condominium

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407
00:52:06.330 --> 00:52:15.369
Boardroom: Development in Berkeley's wealthiest neighborhoods generates zero on-site affordable housing, while the affordable units get redirected to lower-income areas.

408
00:52:15.500 --> 00:52:22.459
Boardroom: The wealthy neighborhoods get exclusive market-rate condominiums. The affordable housing goes where it always has.

409
00:52:23.120 --> 00:52:26.470
Boardroom: Second, whether the affordable housing gets built at all.

410
00:52:26.680 --> 00:52:29.800
Boardroom: This is the part of the proposal I found most troubling.

411
00:52:29.970 --> 00:52:35.810
Boardroom: Nowhere in item 13 is there a specific dollar commitment A minimum funding requirement.

412
00:52:36.540 --> 00:52:40.560
Boardroom: Binding timeline for how the collective fees must be deployed.

413
00:52:40.830 --> 00:52:43.249
Boardroom: The proposal says fees can fund

414
00:52:43.700 --> 00:52:48.069
Boardroom: affordable housing elsewhere. Can, not shall, not must.

415
00:52:48.410 --> 00:52:53.899
Boardroom: The Council would be authorizing developers to avoid all on-site portability applications

416
00:52:54.010 --> 00:52:59.470
Boardroom: In exchange for fees, whose actual deployment to affordable housing is entirely discretionary.

417
00:53:00.350 --> 00:53:02.879
Boardroom: Third, what the data tells us.

418
00:53:03.140 --> 00:53:12.359

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Boardroom: Berkeley's own RENA records show us that in the last completed 8-year housing cycle, we built 228% of our market rate housing target.

419
00:53:13.070 --> 00:53:15.799
Boardroom: Only 28% of our low-income target.

420
00:53:16.140 --> 00:53:22.290
Boardroom: We do not have a market rate production problem. We have an affordable housing delivery failure.

421
00:53:23.330 --> 00:53:38.030
Boardroom: A city-wide policy that allows market-rate condo developers to avoid on-site affordable units in exchange for discretionary fees of unspecified destination does not address that failure. It institutionalizes it.

422
00:53:38.610 --> 00:53:46.650
Boardroom: Councilmember Keshelwani has been strong… a strong advocate for housing equity in this city. I respect that commitment.

423
00:53:47.370 --> 00:53:52.190
Boardroom: But I would ask her and Ms. Council to reconcile tonight's proposal with it.

424
00:53:52.800 --> 00:54:02.899
Boardroom: Genuine equity means affordable housing built in high-resource neighborhoods, not discretionary fees that may or may not fund housing somewhere else, someday.

425
00:54:03.110 --> 00:54:05.680
Boardroom: This proposal should not pass as written.

426
00:54:06.090 --> 00:54:06.920
Boardroom: Thank you.

427
00:54:07.470 --> 00:54:08.540
Boardroom: Thank you.

428
00:54:14.110 --> 00:54:17.709
Boardroom: Alright, everyone, and where's Julie? Alright, so…

429

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00:54:18.000 --> 00:54:20.959
Boardroom: Hi, everyone. Donald Simon, 3 minutes, please.

430
00:54:21.700 --> 00:54:27.989
Boardroom: Thank you all, and I do mean thank you, because after meeting with a lot of you, you have a pretty thankless job.

431
00:54:28.290 --> 00:54:39.739
Boardroom: You're responsible for the whole city, and it seems like no matter what you do, somebody's gonna give you heck for it. And you've gotta put up with a lot of stuff, and I think we saw a little bit of that earlier today. So…

432
00:54:40.830 --> 00:54:51.719
Boardroom: I do not mean this to be critical, I hope that it will be insightful. You've heard from others already about a glaring deficiency in this condo density bonus proposal.

433
00:54:51.830 --> 00:54:58.009
Boardroom: And I want to make sure it's very, very clear as to what the outcome is if you push this forward.

434
00:54:58.180 --> 00:55:02.779
Boardroom: You all identify as progressives, which is appropriate. This is Berkeley, California.

435
00:55:02.930 --> 00:55:09.200
Boardroom: You have rightfully identified the sins of the past, where practices such as redlining.

436
00:55:09.860 --> 00:55:15.929
Boardroom: Enforced a segregationist housing system where the wealthy live over here and the poor live over here.

437
00:55:16.200 --> 00:55:33.600
Boardroom: And I know this is the last thing you want, but if this thing goes forward, you will be creating the new Jim Crow of housing segregation right here in Berkeley. Now, why is that? Because in some meetings, I've seen that it's not clearly understood. The state has set a policy that to advance fair housing.

438
00:55:33.770 --> 00:55:45.190

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Boardroom: to promote the desegregation where we all live together as one, which is what everybody in Berkeley wants. They don't want this continued ghettoization, where the lower income are over here, and the wealthier over there.

439
00:55:45.260 --> 00:55:57.439
Boardroom: The state has set a policy with the state density bonus that gives developers what they want, which is the ability to build more than twice as high as what cities allow, but in exchange for that, they have to provide affordable units.

440
00:55:57.570 --> 00:56:11.849
Boardroom: But every time you raise height limits, whether it's with this density bonus or the CZU, you obviate and take away that incentive, because the developers get the height they want without having to include any on-site affordable units.

441
00:56:11.850 --> 00:56:25.670
Boardroom: Now, I understand that puts money into the city budget in times when we're running short. I understand that you think that it's going to increase property taxes, but it should not be done by enforcing, reinforcing the housing segregation that got us into this problem to begin with.

442
00:56:25.750 --> 00:56:43.590
Boardroom: We need to provide the mixing of people living together, and the only way history shows in Berkeley that you get lower-income people living in market-rate housing projects is when developers use the state density bonus, just as Patrick Kennedy is doing in the project on Virginia Street that you just recently approved.

443
00:56:44.140 --> 00:56:53.139
Boardroom: This was presented as a way to get the stalled projects in downtown going. So why is it being presented now as something that would be applied citywide?

444
00:56:53.260 --> 00:57:07.120
Boardroom: If you go forward with directing staff to develop an ordinance along these lines, or a proposal along these lines, you are going to reinforce the very housing segregation that you have stated it is your intention to eliminate, and that we all would back you on.

445
00:57:07.120 --> 00:57:14.630

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Boardroom: And so we… I'm asking you, on behalf of Save Berkeley Shops, and on behalf of myself as a Berkeley resident that has lived in this area.

446
00:57:14.630 --> 00:57:24.520
Boardroom: If you forward this, limit it to the downtown that it was designed to help accelerate, and do not allow it elsewhere. Thank you. Thank you.

447
00:57:30.680 --> 00:57:32.180
Boardroom: Next speaker, please.

448
00:57:37.650 --> 00:57:40.740
Boardroom: Hi, my name's Joel Meyerson, a Berkeley resident.

449
00:57:41.070 --> 00:57:58.950
Boardroom: Let's describe this local density bonus in simple terms that are not false comparisons to the state density bonus. Currently, if a developer wants to build in Berkeley and not include any on-site affordable housing, they need to pay an in-lieu fee based on the size of the project. The bigger the project, the higher the fee.

450
00:57:59.360 --> 00:58:00.960
Boardroom: Under the new plan.

451
00:58:01.500 --> 00:58:08.390
Boardroom: They get to pay the same fee, but they get to build a project that is at least twice as big, and not include any affordable housing.

452
00:58:08.690 --> 00:58:21.080
Boardroom: Effectively, this cuts the fee in half and doubles the size of the project, and the developer gets a number of concessions and a literally unlimited number of waivers, like waiving the height limit or whatever.

453
00:58:21.590 --> 00:58:32.340
Boardroom: This is not a density bonus. It is a density giveaway and a backdoor rezoning plan. This plan should not even be being considered, much less being sent to the city manager.

454
00:58:32.870 --> 00:58:33.779
Boardroom: Thank you.

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455
00:58:33.990 --> 00:58:35.819
Boardroom: Thank you.

456
00:58:40.070 --> 00:58:56.920
Boardroom: I vigorously support the Land Use Policy Committee's recommendation to, that refer to the City Manager to have affordable housing on-site through below-market rate condos. This is necessary.

457
00:58:56.930 --> 00:59:05.110
Boardroom: For both apartments and for condos to have economic diversity and other diversity in our community.

458
00:59:05.200 --> 00:59:14.420
Boardroom: And once that is done, no action should be taken until we have identified, the city has identified, a formula.

459
00:59:14.560 --> 00:59:15.350
Boardroom: that…

460
00:59:15.460 --> 00:59:24.890
Boardroom: to design so that there are below-market rate condos on site. Thank you. I'm gonna cede the rest of my time to Merle Siegel.

461
00:59:25.290 --> 00:59:26.439
Boardroom: Thank you.

462
00:59:27.950 --> 00:59:39.760
Boardroom: Good evening, council members. Thank you for this time. I just concur with the very eloquent speakers that spoke about the density bonus. I, too, see that if this

463
00:59:40.320 --> 00:59:50.159
Boardroom: change called the Local Density bonus goes through, it will further segregate our city, and I don't think any one of you want to be

464
00:59:50.160 --> 01:00:00.880
Boardroom: involved in that kind of resegregation or re-redlining of our city. Furthermore, I just wanted to say something about middle housing.

465
01:00:01.250 --> 01:00:16.019

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Boardroom: We passed the middle housing, and this would also be a boon to middle housing. In other words, people who are now making middle incomes could possibly afford to own something. Can you imagine how wonderful that would be for people?

466
01:00:16.020 --> 01:00:22.460
Boardroom: I can, because I was one of those people who could not afford anything when I had started my career.

467
01:00:22.460 --> 01:00:26.109
Boardroom: So I really suggest that you take another look at this.

468
01:00:26.110 --> 01:00:36.149
Boardroom: think about ways that those condos can create affordable condos. I think it would be a wonderful gift you could give to the City of Berkeley. Thank you.

469
01:00:36.560 --> 01:00:37.650
Boardroom: Thank you.

470
01:00:42.060 --> 01:00:58.600
Boardroom: Christopher Kroll, West Berkeley, I won't repeat everything you've already heard. I am actually shocked that this is on the consent calendar, and that none of you have raised any of these concerns that the people you have just heard have raised. Very viable issues. And it's not appropriate that this comes back

471
01:00:58.600 --> 01:01:11.639
Boardroom: in 6 months, after the staff has gone off and developed it. These issues should be developed on the action calendar now, today, before you approve sending it off. This is horrendous that you were doing this without even adequate public input.

472
01:01:13.310 --> 01:01:30.619
Boardroom: I guess that's all I have to say. You've heard, it's like, how will this program… why is this program for downtown? Is it for downtown? Is it a citywide program? The affordable housing will likely decrease if this program is passed. But the only way we're getting housing now, affordable housing, is through the density bonus, right? Or am I wrong?

473
01:01:30.920 --> 01:01:33.090
Boardroom: And this…

474

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01:01:33.260 --> 01:01:44.750
Boardroom: And why, again, this should not be on the consent calendar. There's so many issues that are unresolved, and you're gonna send this to the city manager, and the staff's gonna spend staff time building this program. Thank you.

475
01:01:49.670 --> 01:01:52.220
Boardroom: Can I come with my co-worker together, 2 minutes?

476
01:01:53.400 --> 01:01:54.180
Boardroom: Sure.

477
01:01:55.320 --> 01:02:05.520
Boardroom: Hi, Council Members and Mayor. My name is Mayomi Hamanaka, and, with Ellen Lake. We are co-executive Director for Art, Kala Art Institute.

478
01:02:05.670 --> 01:02:23.539
Boardroom: We're just here tonight to thank your support, and your support really helps us to do our programs, which supports local young artists and teens and adults who are really eager to create art and engage with the art and community, so thank you.

479
01:02:24.470 --> 01:02:35.809
Boardroom: Not too much more to add, except for a big thanks from Me Too for supporting Kalaw Art Institute. It's our 52nd year, and we've been in Berkeley since 1979 in the old Heinz Ketchup Factory building.

480
01:02:35.810 --> 01:02:45.099
Boardroom: Supporting arts and culture in West Berkeley, and all over Berkeley and beyond, and so it means a lot for, all of you to support our organization, and a special thanks to

481
01:02:45.100 --> 01:02:48.070
Boardroom: Councilmember Terry Taplin, and to all of you. Thank you.

482
01:02:50.950 --> 01:02:52.850
Boardroom: Thank you, thanks for coming.

483
01:02:56.710 --> 01:02:57.850
Boardroom: Good evening.

484

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01:02:58.450 --> 01:03:04.980
Boardroom: My name is Santiago Casal. I'm one of the founders of Latinos Unitas in Berkeley.

485
01:03:05.300 --> 01:03:12.040
Boardroom: And I'm also the founder and director of the Cesar Chavez Dolores Huerta Tribute Site.

486
01:03:12.470 --> 01:03:17.840
Boardroom: And solar calendar at Chavez Park, all names that are gonna change. I'd like to read this, statement.

487
01:03:18.140 --> 01:03:31.980
Boardroom: As part of the commemorative committee that originally spearheaded the naming of Chavez Park over 30 years ago, we sincerely appreciate the Mayor's item request to engage with the Chavez Huerta commemoration Period Partners.

488
01:03:32.180 --> 01:03:34.289
Boardroom: And Latinos and Neathers, the Berkeley.

489
01:03:34.490 --> 01:03:36.899
Boardroom: Regarding the renaming of Chavez Park.

490
01:03:37.140 --> 01:03:40.419
Boardroom: After the toxic news of March, 18th.

491
01:03:40.790 --> 01:03:43.729
Boardroom: and the abusive harm caused by Cesar Chavez.

492
01:03:44.040 --> 01:04:02.670
Boardroom: Most importantly, as outlined in the Mayor's direction to the City Manager and the Parks and Recreation Commission, we also support the name change, continuing to honor the legacy of labor organizing and solidarity among farm workers, and recognizing them as the backbone of America.

493
01:04:05.440 --> 01:04:13.850
Boardroom: Gracias. My name's Beatrice Leva-Cutler, and I'm part of the commemoration Committee, and also former Berkeley school board member.

494
01:04:13.850 --> 01:04:28.099

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Boardroom: We're a sanctuary city, embracing and advocating for our immigrant community, and we are proud of our farmers markets, which enliven and nourish our city every Saturday, Tuesday, and Thursday for decades. We support and are committed to the renaming to reflect this outcome.

495
01:04:28.100 --> 01:04:40.069
Boardroom: The farm worker movement continues. Please let us know if you have any questions regarding the commemorative committee, which broadly represents the city, BOC, and the community. Gracias.

496
01:04:41.890 --> 01:04:44.789
Boardroom: Muchas gracias. Thank you.

497
01:04:48.460 --> 01:04:50.660
Boardroom: William Pollock is gonna give me his minute.

498
01:04:51.380 --> 01:04:59.590
Boardroom: Councilmembers, I, I'm asking you to move, number 13 to the, action calendar, and the reason why is

499
01:04:59.590 --> 01:05:12.270
Boardroom: When we talked to the land use committees, a lot of people understood that there are issues that need to be addressed, and that, as I explained, there are flaws in the report that was presented to you.

500
01:05:12.270 --> 01:05:27.910
Boardroom: So my concern is that everybody's saying, oh, this is great, we're gonna put it on, we're gonna do consent, but nobody is asking the questions that haven't been asked, and that's what I want to talk about. The purpose of the local density laws

501
01:05:27.910 --> 01:05:37.849
Boardroom: that were in the report and adopted by other cities was to increase affordable housing, and that's what was in there. And yet, this one takes it away.

502
01:05:38.050 --> 01:05:47.369
Boardroom: It doesn't address the issues that seniors and family will not want to move to downtown Berkeley, or what I call CalCentral.

503
01:05:48.380 --> 01:06:11.710

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Boardroom: It's geared for the upper-middle-class single from outside the city, because they're the only ones who can afford market rate. Will it be used for absentee landlords who will then buy it, and then raise rents? What happens if it doesn't get built? Is the city going to take away their permits? They haven't so far. Is there a penalty if it converts to a rental?

504
01:06:11.970 --> 01:06:26.509
Boardroom: Those and more need to be put in an amended referral that Matt, you can't do because you're keeping it on the action calendar. What the real issue is here, are you guys

505
01:06:26.710 --> 01:06:33.380
Boardroom: Excuse me. Are you intending for equity? Are you intending for inclusiveness?

506
01:06:33.510 --> 01:06:43.749
Boardroom: This is based on a flawed report. I'm asking you to take it off the consent calendar and talk about it, and ask all those questions that you haven't asked.

507
01:06:44.080 --> 01:06:46.190
Boardroom: Thank you. Thank you.

508
01:06:52.820 --> 01:07:00.239
Boardroom: Hi, my name is Chrissy Hoffman. I think I'm here regarding item number 20, which says amendments to BMC Title Landmark Preservation Committee.

509
01:07:00.260 --> 01:07:13.450
Boardroom: Commission to Revise Procedures. Sorry, I think that that is on the action calendar. So, we're right now on consent calendar and information items only. Oh, okay, gotcha. So, if you… Okay, thank you. Yep, thank you.

510
01:07:17.450 --> 01:07:30.299
Boardroom: Hi, John Kainer, Downtown Berkeley Association. We've had no condos in downtown developed in the last 30 years. We've had 2,000 new, rental units, we have 3,000 more in the pipeline, all student rental housing.

511
01:07:30.540 --> 01:07:46.589
Boardroom: We love the students, but we need economic diversity in the downtown. We need people to move out of their homes in the hills and the

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flats. We need young professionals so they can build equity. We need economic diversity. We need to support our arts district. We need to support our restaurants and shops.

512
01:07:46.590 --> 01:07:52.080
Boardroom: Please support item 13 so people can have home ownership in our downtown. Thank you.

513
01:07:52.680 --> 01:07:53.840
Boardroom: Thank you.

514
01:07:58.330 --> 01:08:00.980
Boardroom: I see you're smiling when you hear support.

515
01:08:01.390 --> 01:08:09.560
Boardroom: I've been following the city since the olden days, you know, since I was younger.

516
01:08:09.670 --> 01:08:26.459
Boardroom: And in those olden days, the in-loo fee was… the Nexus studies were on a 5% return on investment. That's how they were calculated. But now we're looking at, 20%

517
01:08:26.580 --> 01:08:37.080
Boardroom: Return on investment for construction has kind of been the bottom line, and 30% being even better for investors, a better investment.

518
01:08:37.399 --> 01:08:42.439
Boardroom: So if we were looking at the density bonus for only the downtown.

519
01:08:42.550 --> 01:08:56.050
Boardroom: I would probably be agreeable to that, but citywide, I think it's a huge mistake, and just like so many others have said, this is really the new redlining, and…

520
01:08:56.080 --> 01:09:03.799
Boardroom: ghettoization, and as one person suggested, there should be a sunset if it's passed at all. Thank you.

521
01:09:09.960 --> 01:09:14.790

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Boardroom: Are there folks online who have public comment on consent calendar information items?

522
01:09:16.540 --> 01:09:19.529
Boardroom: We currently have 7 hands raised, this is…

523
01:09:19.689 --> 01:09:23.119
Boardroom: Public comments on consent and information items.

524
01:09:23.529 --> 01:09:26.110
Boardroom: First speaker is David Scheer.

525
01:09:32.939 --> 01:09:45.619
David Shere: Hi! I want to speak in favor of item 13, if my children will let me. This is a… this is a smart and innovative program. We are talking about tens of millions of dollars.

526
01:09:45.619 --> 01:09:59.219
David Shere: That will be spent on homeless services, that will be spent leveraging state and federal funds to build affordable housing, that will be spent on things like the Small Sites Program, that will be spent filling in the gaps, some of the gaps created by our crippling structural deficit.

527
01:09:59.539 --> 01:10:19.519
David Shere: This proposal will create hundreds, if not thousands, of more affordable for-sale units, so that people can have some stability in their lives instead of being tenants for the rest of their lives. And, you know, I think a lot of folks are gonna drive home tonight and walk into homes that cost $1.5 million, $2 million,

528
01:10:19.829 --> 01:10:29.619
David Shere: And they should think about the fact that they are talking about how building homes that cost half that is somehow comparable to redlining and Jim Crow. I think that's…

529
01:10:29.719 --> 01:10:35.629
David Shere: outrageous, and I think that this is a really great proposal, and I appreciate it, and thank you.

530
01:10:35.630 --> 01:10:36.530
Boardroom: Thank you.

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531
01:10:36.530 --> 01:10:37.370
David Shere: Hello?

532
01:10:38.110 --> 01:10:41.649
Boardroom: Okay, next is Justin Randall.

533
01:10:45.180 --> 01:10:58.409
justin randall (he/him): Hi everybody, my name is Justin Randall, I'm serving as co-president of the PTA, Sylvia Mendez, and so I just wanted to thank you all. Councilmember Ben Bartlett has been supporting our Celebracion Cutral.

534
01:10:58.410 --> 01:11:08.320
justin randall (he/him): for the last, well, this is our fourth year, and, everybody has been, very supportive of this, at the City Council level.

535
01:11:08.320 --> 01:11:09.820
justin randall (he/him): For our,

536
01:11:09.860 --> 01:11:26.269
justin randall (he/him): Last few years, and this is a great way for us to have a spring event, where we're able to celebrate the different cultures that are not necessarily related to heritage, but also just the many different ways that

537
01:11:26.270 --> 01:11:40.770
justin randall (he/him): the members of our community, express themselves. And, so if you guys are available, please come through. April 26th, between 11 and 2, we'd love to see you at, at Sylvia Mendez. We're still currently under construction.

538
01:11:40.770 --> 01:11:47.589
justin randall (he/him): But, it's still a great time to come and, and see what the Sylvia Mendez community has to offer.

539
01:11:47.590 --> 01:11:51.009
Boardroom: Thank you. Thanks so much for the invitation.

540
01:11:51.850 --> 01:11:53.820
Boardroom: Next is Pauline.

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541
01:11:54.970 --> 01:11:56.800
Boardroom: Pauline, you should be able to unmute.

542
01:11:59.040 --> 01:12:12.959
Pauline Bondonno: Hi, my name is Pauline Bondano. I'm the Director of Community Health Education Institute, and I wanted to comment on item 13. Councilmembers, I appreciate your time and attention and your hard work right now.

543
01:12:12.970 --> 01:12:25.599
Pauline Bondonno: I believe item 13 will not increase low-income housing. As it's been said before, it's market-rate housing, and we desperately need low-income housing in many areas of Berkeley.

544
01:12:25.760 --> 01:12:45.569
Pauline Bondonno: Not just market rate housing. I think there are so many unanswered questions that have come up in this session with Council that this needs to come off the consent calendar, and we need to answer some of these questions first, and think about, you know, how are we representing the people of Berkeley and all of their needs?

545
01:12:45.680 --> 01:12:52.270
Pauline Bondonno: Are we really providing them with housing that they're going to be able to afford? And I want to thank you for consideration of this.

546
01:12:53.940 --> 01:12:54.960
Boardroom: Thank you.

547
01:12:56.290 --> 01:12:58.490
Boardroom: Next is Matt.

548
01:12:58.650 --> 01:12:59.910
Boardroom: O'Brien?

549
01:13:02.620 --> 01:13:15.009
mattobrien: Yes, thank you. Many have expressed their opposition to, doing away, or, the in-lieu, having the in-lieu fee for these condo projects, because it will, foster ghettoization and

550
01:13:15.290 --> 01:13:24.769

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mattobrien: Apartment buildings full of people who can spend $4,000 and $5,000 a month, or, you know, pay market rate mortgages.

551
01:13:24.770 --> 01:13:37.809
mattobrien: And then there would be other buildings that just have low-income people, and they're in a different part of the city. And so the ghettoization and the false argument that addresses previous discriminatory housing

552
01:13:37.810 --> 01:13:48.399
mattobrien: policies is a problem, and so the public starts thinking, gosh, why are they doing this? And many have concluded that it's just another sort of giveaway to the real estate interest.

553
01:13:48.530 --> 01:14:08.389
mattobrien: to make up for the failures of all the stalled projects, the boarded-up dead zone on Center Street, and we think that we want affordable housing. We don't want our city council to just be pleasing the real estate interests. We understand, you know, they have a lot of money and a lot of influence, but we want our city council to work for the public, and we want affordable…

554
01:14:08.550 --> 01:14:12.120
Boardroom: I appreciate your comment. Next is Della Luna.

555
01:14:15.700 --> 01:14:33.470
Della Luna (she/her) Huichun: Yes, I would like to request that item 13 be pulled from the consent calendar and put on the action calendar. After hearing that this is now being proposed citywide, suddenly, that seems like a surprise, and before anything would be proposed city-wise, there should be more discussion on it.

556
01:14:33.570 --> 01:14:36.340
Della Luna (she/her) Huichun: And that has not happened.

557
01:14:37.600 --> 01:14:53.150
Della Luna (she/her) Huichun: And I think that even with the area that it's in, even if it were for students, there still are low-income students, so it doesn't seem reasonable to move the low-income units to another part of the city, presumably, or, you know.

558
01:14:53.280 --> 01:14:54.509
Della Luna (she/her) Huichun: Through the funds?

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559
01:14:54.710 --> 01:14:58.079
Della Luna (she/her) Huichun: And… I think that's it. Thank you.

560
01:14:59.320 --> 01:15:00.250
Boardroom: Thank you.

561
01:15:00.610 --> 01:15:02.130
Boardroom: Okay, next.

562
01:15:02.910 --> 01:15:07.500
Boardroom: is… Valued customer.

563
01:15:12.820 --> 01:15:18.080
Valued Customer: I'm a… I'm a valued customer, also known as Martin Nicholaos. I'm…

564
01:15:18.090 --> 01:15:29.950
Valued Customer: CEO of the Chavez Park Conservancy, and I'd like to support, the statement by Santiago Cusal and Beatrice Leyva-Cutler, in support of,

565
01:15:29.950 --> 01:15:47.460
Valued Customer: a process to, change the name of Cesar Chavez Park. I hope this goes forward fairly speedily, because, it's very itchy to be, to have the name Cesar Chavez Chavez Park Conservancy when you really don't want that name anymore.

566
01:15:47.570 --> 01:16:06.689
Valued Customer: So we hope that this goes forward in a speedy way. I also have a couple of things I want to say about items 2 and 3, which, hire out our animal services to Emeryville and Albany. It's got to bring in $1.2 million to animal services. That's terrific.

567
01:16:06.690 --> 01:16:10.860
Valued Customer: I hope that that money is used to hire additional staff.

568
01:16:10.860 --> 01:16:19.880
Valued Customer: for animal services. The couple of times that I've called Berkeley Animal Services, I've been told, oh, I can't really help you, we're running three different cities.

569

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01:16:19.880 --> 01:16:21.319
Boardroom: I think your time's up.

570
01:16:21.820 --> 01:16:24.519
Boardroom: Okay, next is David Salk.

571
01:16:28.510 --> 01:16:46.420
David Salk: Good evening, Councilmembers. I appreciate the opportunity to speak. I don't want to restate what has already been stated about the item 13 on the consent calendar. I do support that item being pulled and there being more discussion. Affordable housing is tough.

572
01:16:46.450 --> 01:16:51.229
David Salk: We all understand that. We all want affordable housing, and it's tough to make it happen.

573
01:16:51.230 --> 01:17:09.689
David Salk: But we've got to put our energy into figuring out how to make that happen, and we need to figure out how to get affordable housing into some of these neighborhoods that, it's been pointed out, we're guilty of redlining in the 40s, and we're trying to figure out ways of addressing, creating more opportunities. This is not about that.

574
01:17:09.770 --> 01:17:29.249
David Salk: This is not about that. This is going to provide market rate condominiums and or rentals in wealthy neighborhoods, and it'll create more money for the fund, which will then go out and purchase lots and build housing in less wealthy neighborhoods in Berkeley. That is not what we're trying to do. Thank you for the opportunity to speak.

575
01:17:30.820 --> 01:17:31.799
Boardroom: Thank you.

576
01:17:33.100 --> 01:17:37.300
Boardroom: Okay, that's all of the speakers on… on the Zoom.

577
01:17:38.220 --> 01:17:41.809
Boardroom: Thank you very much. I see that Councilmember Kesarwani has her hand raised.

578
01:17:44.350 --> 01:17:50.969
Rashi Kesarwani: Yes, thank you very much, Madam Mayor. I, I want to thank the public commenters for your feedback, and

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579
01:17:51.100 --> 01:18:00.880
Rashi Kesarwani: And I do want to note, as has been noted, this is a referral to… of a concept that will come back to the Council so that we can

580
01:18:00.960 --> 01:18:09.730
Rashi Kesarwani: review the details and have more, community input at that point. I also want to note that this item was heard by the land use…

581
01:18:09.730 --> 01:18:21.959
Rashi Kesarwani: committee where, we did hear from the public as well at that point, and we accepted, I think, all of the amendments that were proposed in that committee. I want to thank the

582
01:18:21.980 --> 01:18:36.940
Rashi Kesarwani: the members of the council who serve on that committee, who provided very helpful input. I also want to thank the co-sponsors of this item, Madam Mayor, Councilmember Tregrub, and I believe Councilmember Bartlett, you would also like to join this item, correct?

583
01:18:37.030 --> 01:18:42.740
Rashi Kesarwani: As a co-sponsor. Okay, so, Clerk, if you could record that, and thank you very much, everyone.

584
01:18:43.620 --> 01:18:44.920
Boardroom: Thank you.

585
01:18:45.070 --> 01:18:48.600
Boardroom: Okay, is there a motion to approve the consent calendar?

586
01:18:48.990 --> 01:18:50.000
Boardroom: So moved.

587
01:18:50.640 --> 01:18:51.540
Boardroom: A second.

588
01:18:52.920 --> 01:18:53.700
Rashi Kesarwani: Second.

589
01:18:54.060 --> 01:19:01.239

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Boardroom: Okay, thank you. Can we take the roll, please, Clerk? Okay, to approve the consent calendar, Councilmember Kesarwani?

590
01:19:01.240 --> 01:19:02.020
Rashi Kesarwani: Yes.

591
01:19:02.390 --> 01:19:03.280
Boardroom: Taplin?

592
01:19:03.280 --> 01:19:04.090
Terry Taplin: Yes.

593
01:19:04.570 --> 01:19:08.950
Boardroom: Bartlett, Yes.

594
01:19:09.280 --> 01:19:19.779
Boardroom: Yes. Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara? Yes. Humber? Yes. And Mayor Ishii? Yes.

595
01:19:19.880 --> 01:19:22.659
Boardroom: Okay, the consent calendar's adopted.

596
01:19:22.810 --> 01:19:25.059
Boardroom: Okay, thank you very much.

597
01:19:25.180 --> 01:19:32.590
Boardroom: Alright, we are moving on to the action calendar. Let me just… Scroll down…

598
01:19:33.490 --> 01:19:49.669
Boardroom: We already, by the way, moved item number 18, which was the Mills contract item, to consent, which we just passed, so I am not sure if anyone was here for that, but wanted to make sure you knew that that passed. Okay. Did you want to still give a public comment, or no? Okay.

599
01:19:49.810 --> 01:19:52.400
Boardroom: Alright, thank you. Okay.

600
01:19:52.680 --> 01:20:00.160

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Boardroom: Very good. And so, on here, as new business… actually, I really would like us to take a stretch break. We're gonna take a 10-minute stretch break.

601
01:20:00.380 --> 01:20:09.029
Boardroom: And, that will allow the city attorney's office also to set up, so… 10-minute stretch break. Thank you.

602
01:20:14.890 --> 01:20:38.180
Boardroom: Rent! Rent!

603
01:20:46.250 --> 01:20:52.809
Boardroom: Hello! I think we're ready to return. Okay. Folks!

604
01:20:54.470 --> 01:20:58.460
Boardroom: Julie, Kelly, Carol!

605
01:20:59.000 --> 01:21:00.150
Boardroom: Okay.

606
01:21:00.510 --> 01:21:01.890
Boardroom: Please have a seat.

607
01:21:02.280 --> 01:21:13.700
Boardroom: Thank you. Alright, so we are now on the action calendar for new business, so I will pass it over to the City Attorney's Office for the proposed… excuse me! Hello? Thank you.

608
01:21:14.020 --> 01:21:24.710
Boardroom: For the proposed resolution limiting use of city property to authorized uses that further city purposes and protect access to city services. All right, passing it over.

609
01:21:31.340 --> 01:21:33.330
Boardroom: Just trying to share my screen here.

610
01:22:01.820 --> 01:22:02.680
Boardroom: Oops.

611
01:22:06.800 --> 01:22:10.369

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Boardroom: No worries. Would you like me to read my introduction now, since…

612
01:22:10.880 --> 01:22:19.909
Boardroom: Maybe that will give you a little bit more time. It would be wonderful if you introduce it, and then we'll launch into the rest of it. Sure, that sounds good.

613
01:22:20.120 --> 01:22:29.859
Boardroom: So… In light of the invasions and military-like surges of federal immigration authorities in American cities last October.

614
01:22:29.860 --> 01:22:43.439
Boardroom: and since then. The City Council unanimously directed the City Manager to identify city-owned and controlled properties, and to coordinate with the City Attorney to develop a policy or ordinance that would ensure city properties and facilities

615
01:22:43.440 --> 01:22:48.849
Boardroom: Are only used for city purposes, and those purposes approved by the city manager or their designee.

616
01:22:48.850 --> 01:23:06.940
Boardroom: We asked them to draft an administrative policy or ordinance to ensure that city property is used for city purposes, restricting the use of city-owned property for civil immigrate… the use of city-owned property for civil immigration enforcement, staging areas, processing locations, or operation bases.

617
01:23:07.050 --> 01:23:27.010
Boardroom: absent lawful court orders. This policy, which is now passed in counties and cities across the Bay Area and the country, is often termed ice-free zones. We are pleased today that the City Attorney is presenting a resolution limiting use of city property to authorized uses that further city purposes and protect access to city services for our consideration.

618
01:23:36.030 --> 01:23:42.039
Boardroom: We're trying to start the first slide here, but for some reason, it's appearing on my computer, but not…

619
01:23:43.080 --> 01:23:44.180
Boardroom: Up there.

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620
01:23:47.240 --> 01:23:48.530
Boardroom: No worries.

621
01:24:24.680 --> 01:24:28.109
Boardroom: There we go. Alright, thank you. It's working now.

622
01:24:28.380 --> 01:24:29.250
Boardroom: Aye.

623
01:24:29.470 --> 01:24:41.699
Boardroom: Good evening, my name is Katrina Island, and I am the Interim Assistant City Attorney, and I'm here this evening to present on the proposed resolution limiting use of city property.

624
01:24:45.710 --> 01:24:53.329
Boardroom: As the Mayor just, gave background on, this item, is from a referral in October of 2025,

625
01:24:53.330 --> 01:25:06.540
Boardroom: Referring to the City Attorney's Office, the drafting of a potential policy, and I'm gonna go through some of the main features of the policy, and its purposes, and, some main takeaways.

626
01:25:10.850 --> 01:25:15.530
Boardroom: So… First, importantly, what would the resolution do?

627
01:25:15.560 --> 01:25:24.949
Boardroom: So, primarily, what it would do is prohibit exclusive use of city property without city authorization. And so that term is defined

628
01:25:24.950 --> 01:25:38.309
Boardroom: in the resolution, so it wouldn't be any use, it would be limited to exclusive uses, which essentially prohibit others from using the property. It would not apply to, sort of, traditional uses.

629
01:25:38.310 --> 01:25:47.359
Boardroom: And ways in which city property has always been open to the public. So this is a sort of narrow restriction on exclusive use without city authorization.

630
01:25:47.470 --> 01:26:06.300

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Boardroom: And what it would do is it would bar city employees and other city officials from approving exclusive uses of city property that would either disrupt city operations or discourage access to city services, unless that proposed use furthers a city purpose.

631
01:26:06.500 --> 01:26:26.469
Boardroom: So, that is… this all sounds kind of complicated, but essentially, it would make it so the kinds of uses that someone might propose to the city and ask for authorization that would discourage residents from being able to access city services, or in other ways, disrupt city operations in ways that would harm the city.

632
01:26:26.470 --> 01:26:34.190
Boardroom: That the city will not authorize those uses unless there's some other important city purpose that that use furthers.

633
01:26:34.390 --> 01:26:36.710
Boardroom: And in, in essence.

634
01:26:37.170 --> 01:26:45.880
Boardroom: The… the resolution also has findings, and those findings are that civil immigration enforcement disrupts city operations.

635
01:26:46.000 --> 01:26:53.729
Boardroom: And discourage… discourages access to city services, and that such enforcement operations are not a city purpose.

636
01:26:53.730 --> 01:27:11.199
Boardroom: And so, in putting all that together, in effect, it prohibits authorizing exclusive use of city property for things like immigration enforcement staging areas or operations spaces, where they would be essentially taking over or trying to exclusively use city property for their own purposes.

637
01:27:11.570 --> 01:27:33.740
Boardroom: And finally, what the resolution would do was direct the city manager to post clear signage on certain lots, identifying them as city property, and specifying that unauthorized uses are not permitted. And so this would apply to, certain city properties that aren't otherwise access-restricted, and where it may not be clear to the public that it's a city property, and that in order to use it, you would need to seek

638
01:27:33.740 --> 01:27:34.960
Boardroom: city authorization.

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639
01:27:36.240 --> 01:27:39.880
Boardroom: So… Turning to the next slide.

640
01:27:40.210 --> 01:27:48.989
Boardroom: Essentially, as the mayor mentioned, really the purpose of the resolution is to preserve city properties for city programs and services.

641
01:27:49.010 --> 01:28:00.609
Boardroom: Or to further other city purposes that are specifically authorized by the city, putting more control and making very clear what purposes are and aren't authorized.

642
01:28:00.860 --> 01:28:19.910
Boardroom: It would protect access to city services by preventing approval of certain kinds of outside uses that could disrupt city operations or discourage access. And importantly, the purpose is also to just establish guidance and clarity for when city officials may or may not authorize exclusive use of city property.

643
01:28:21.010 --> 01:28:30.290
Boardroom: So the important takeaways on this are that this is a purpose-based and use-based resolution. It governs approval for the type of use.

644
01:28:30.320 --> 01:28:42.800
Boardroom: And exclusive uses in particular, it's not about general presence or activity, and it's not targeting the identity of any particular user, it's really about the purpose of the use.

645
01:28:43.280 --> 01:29:03.230
Boardroom: It applies generally to any exclusive uses that would interfere with the city operations or access to services, and do not facilitate a city purpose, and that's a broad range of potential things. Civil immigration enforcement, takeovers of property is only one such example. It's designed to preserve the city's own use of its own assets.

646
01:29:03.230 --> 01:29:18.409
Boardroom: preserve the city's resources, and to facilitate effective service delivery. And it ensures consistent application of existing principles, and clarifies authorization requirements, and works in concert with the City's other related policies.

647
01:29:19.300 --> 01:29:26.689

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Boardroom: So with that, that is the… the presentation, the short of it, and, happy to answer any questions.

648
01:29:27.150 --> 01:29:28.550
Boardroom: Thank you very much.

649
01:29:28.980 --> 01:29:31.520
Boardroom: Are there any questions for my council colleagues?

650
01:29:34.240 --> 01:29:41.950
Boardroom: I can't see our other council members online, so, if you could just keep an eye out for me, Mr. City Clerk.

651
01:29:42.900 --> 01:29:43.790
Boardroom: Yeah.

652
01:29:43.920 --> 01:29:46.109
Boardroom: I don't see any hands. Okay.

653
01:29:46.540 --> 01:29:52.919
Boardroom: Councilmember Blackaby, did you have a question? Yeah, one quick question. Thanks to the City Attorney's Office for, for this work.

654
01:29:53.100 --> 01:30:02.960
Boardroom: And it all, you know, makes a lot of sense. I understand, kind of, how we approached it this way and tackled it this way. My main question is this issue of…

655
01:30:03.170 --> 01:30:09.430
Boardroom: exclusive versus non-exclusive access. And,

656
01:30:09.540 --> 01:30:19.229
Boardroom: Are there times, for example, if it's not a parking lot, and it's not a city building, and it's not exclusive.

657
01:30:19.380 --> 01:30:28.020
Boardroom: So, it's, you know, gathering at a park or something like that. What is our ability to,

658
01:30:28.270 --> 01:30:34.650

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Boardroom: What kind of ability do we have to regulate that use, if it's not exclusive, in a facility like that?

659
01:30:35.070 --> 01:30:53.740
Boardroom: I think that any use that would… is not exclusive would be outside of the scope of this particular resolution, and I think if it's the kind of use that would typically not require a permit, because there's certain things that already, you know, under city policy already require a permit, so there could be some regulation of that if…

660
01:30:53.780 --> 01:31:06.869
Boardroom: folks were to be using, a property in a way that currently requires a permit, and we're not doing, you know, we're doing so without a permit. But otherwise, if it's a non-exclusive use, it would be outside of the scope of this.

661
01:31:06.970 --> 01:31:20.600
Boardroom: particular policy. Got it. So we couldn't sort of say, hey, no, you can't, gather in that part of the park. You're not, you know, you're not impinging on other people's right necessarily to use the park, but we couldn't instruct people that they can't… that we couldn't instruct

662
01:31:20.920 --> 01:31:23.290
Boardroom: Immigration personnel, or any other personnel.

663
01:31:23.290 --> 01:31:47.370
Boardroom: That they could not use that space under this policy. That's right. The resolution doesn't generally restrict federal activity in public spaces, in public areas. You know, it specifically does state that the city doesn't interfere with or obstruct lawful immigration enforcement, so it wouldn't allow us to say, you know, see an officer in a particular public place and say that they were not allowed to be there.

664
01:31:47.370 --> 01:31:53.639
Boardroom: We do have our sanctuary city ordinance, which does regulate the entry of officials into

665
01:31:53.640 --> 01:32:07.379
Boardroom: private city spaces, so non-public areas of the city, and the sanctuary City Ordinance would continue to regulate that access. So, like, I wish we could. I mean, I wish we could say that, and our concern is it's…

666

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01:32:07.380 --> 01:32:14.610
Boardroom: We would run afoul of constitutional issues if we… is that where we start to cross a line that would be, that would put us at risk?

667
01:32:15.300 --> 01:32:35.069
Boardroom: I think there are important reasons to, to keep the resolution to, to sort of exclusive uses and sort of takeover of, of public property, and, you know, generally, you know, local jurisdictions are not permitted to actually interfere with.

668
01:32:35.170 --> 01:32:49.360
Boardroom: the federal government's lawful undertaking of its activities, we can choose not to use our resources to facilitate that. So even if they're using city property in a non-exclusive way, we can't…

669
01:32:50.040 --> 01:32:57.600
Boardroom: we couldn't instruct them otherwise. That would definitely be outside of the scope of this resolution. Thanks for helping me clarify. Thank you.

670
01:32:58.770 --> 01:33:09.649
Boardroom: And just to take that one step further, just to make sure, so if they took over a space at, like, a park, it would require a permit, essentially.

671
01:33:10.170 --> 01:33:25.219
Boardroom: If that particular use already would require a permit under city law, this wouldn't change that. But this would, you know, we're trying to make clear that any use of our property in these ways would require city authorization.

672
01:33:25.220 --> 01:33:34.950
Boardroom: Got it. And this… what this resolution regulates is city officials and employees' decisions around that authorization. So this directs

673
01:33:35.020 --> 01:33:40.140
Boardroom: City employees and city officials not to grant that authorization should it be sought.

674
01:33:40.340 --> 01:33:47.070
Boardroom: Thank you. There are a lot of conversations going on on this side. If you have a conversation, if you could just please take it outside.

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675
01:33:47.220 --> 01:33:52.319
Boardroom: Thank you. Okay, thank you very much for your answer. Councilmember Humbert?

676
01:33:53.660 --> 01:33:59.269
Boardroom: Yeah, I just have a quick question. It's kind of a hypothetical. I remember in Los Angeles.

677
01:33:59.400 --> 01:34:14.059
Boardroom: The federal immigration authorities were using Lafayette Park as kind of a staging ground, and it became sort of a battlefield, and they were kind of marching in phalanxes through the park, and…

678
01:34:14.450 --> 01:34:24.509
Boardroom: Rousting people. Is that something that we could, under this ordinance, or under our permitting, regulations,

679
01:34:24.900 --> 01:34:27.639
Boardroom: do something about.

680
01:34:28.340 --> 01:34:46.810
Boardroom: So I think there… it depends on the nature of the property and sort of the nature of the activities, the undertaking. I think sort of general, enforcement activity in a public place is not something that this resolution would breach, even if it,

681
01:34:46.960 --> 01:35:05.899
Boardroom: even if there were, sort of, like, multiple officers or multiple operations in a particular area, this resolution wouldn't reach, sort of, preventing, immigration enforcement from happening in a public place, on a public street, or in a public park or sidewalk. And so, it's important to understand the, sort of, relatively narrow scope.

682
01:35:05.940 --> 01:35:22.950
Boardroom: of the resolution. There… I think in Los Angeles, there were some questions at various times about what constituted federal property that, that federal officials could sort of stage on their own federal property. But I think

683
01:35:23.100 --> 01:35:31.360
Boardroom: A lot of these policies around the country are cropping up in response to situations where,

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684
01:35:32.120 --> 01:35:47.920
Boardroom: without the authorization of a particular jurisdiction, immigration officials took over parking lots, took over areas, and sort of used them for their own purposes without the city's authorization, and that's what this would be designed to get at.

685
01:35:49.550 --> 01:35:51.729
Boardroom: Thank you. Another question, Councilmember Trigger?

686
01:35:52.660 --> 01:35:54.840
Boardroom: Yeah, thank you so much.

687
01:35:55.560 --> 01:36:08.139
Boardroom: I'm aware that Alameda County is also considering, a policy, and, I'm curious if you could speak to just

688
01:36:08.810 --> 01:36:19.490
Boardroom: To the extent that you're able, if, this particular architecture of regulation how,

689
01:36:19.710 --> 01:36:25.660
Boardroom: Is it similar, or does it differ from other jurisdictions contemplating this?

690
01:36:26.330 --> 01:36:27.129
Scott Gilman: The folks that are capped.

691
01:36:27.130 --> 01:36:33.740
Boardroom: That's a good question. There are various jurisdictions in the Bay Area and across the country that have

692
01:36:33.740 --> 01:36:56.240
Boardroom: adopted policies that relate to this subject generally. Alameda County is one of them. The City and County of San Francisco is another. The County of Santa Clara, there are various jurisdictions that have adopted policies that are sort of designed or sort of get at the idea of ensuring that there is

693
01:36:56.270 --> 01:37:09.270

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Boardroom: requiring authorization for the certain uses of city property. This policy is very closely aligned to the San Francisco model, that similarly is,

694
01:37:09.680 --> 01:37:29.250
Boardroom: very purpose-based, use-based and purpose-based. Some other jurisdictions have, sort of, executive orders, they're various state executive orders, and other jurisdictions have policies that very directly say it is the, you know, the board's policy or the, you know, the county's policy not to per…

695
01:37:29.250 --> 01:37:30.250
Boardroom: permit.

696
01:37:30.250 --> 01:37:49.170
Boardroom: staging areas or, you know, particular types of enforcement activity on city property, and they're… they more… are more direct in disallowing that. This particular, resolution is not limited to, any particular type of activity. It's a… it's a…

697
01:37:49.170 --> 01:38:06.229
Boardroom: regulation of uses of city property that are inconsistent with city purposes and would cause disruptions, and, you know, that kind of immigration enforcement activity is only one such example, and there could be many others as well.

698
01:38:09.370 --> 01:38:13.529
Boardroom: Thank you. Okay, so any other questions before we move on?

699
01:38:15.650 --> 01:38:16.670
Boardroom: Okay.

700
01:38:17.450 --> 01:38:25.530
Boardroom: I see no questions. Can I take public comment on this item? Any public comment on item number 19?

701
01:38:27.770 --> 01:38:29.290
Boardroom: Anyone online?

702
01:38:30.690 --> 01:38:32.520
Boardroom: There's no hands raised.

703

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01:38:33.290 --> 01:38:36.069
Boardroom: Okay, any comments on this from my Council colleagues?

704
01:38:38.310 --> 01:38:40.479
Boardroom: Oh, I have some comments. Yeah, go ahead.

705
01:38:40.800 --> 01:38:48.999
Boardroom: Yeah, I just, I want to thank, I want to thank, the city attorney and… and Katrina as well, and the City Manager for…

706
01:38:49.270 --> 01:38:54.010
Boardroom: and their staffs for bringing this forward pursuant to Council request.

707
01:38:54.200 --> 01:39:06.309
Boardroom: I think it's very important that we make clear that our city facilities are generally safe and welcoming for all, and don't invite inconsistent, inappropriate uses.

708
01:39:06.450 --> 01:39:15.110
Boardroom: And that they… we ensure that they're not being used for activities specifically that harm anyone or undermine the public trust.

709
01:39:15.220 --> 01:39:24.350
Boardroom: So I'm proud to support this this evening. I think the approach is really a wise one, and thank you again to everybody who worked on this.

710
01:39:24.740 --> 01:39:42.799
Boardroom: Thank you very much. Councilmember Blackaby. I'll be brief, thanks again to City Attorney's Office, for bringing this forward, and for crafting it in a way that's gonna, I think, again, pass the legal and constitutional muster that we, that we need, being thoughtful about that. So, and again, making a statement that is,

711
01:39:42.800 --> 01:39:53.020
Boardroom: Very much in line with our sanctuary policy, and we're continuing to look for other ways that we can strengthen our sanctuary policy and, kind of standardize and

712
01:39:53.020 --> 01:40:00.690

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Boardroom: to, you know, basically lay out our rights as a city and how we're protecting our people. So, thank you for writing this, and I'd, move adoption of the resolution.

713
01:40:01.380 --> 01:40:10.420
Boardroom: Second. Thank you. Councilmember Lunapara? Thank you, I just really wanted to thank our, the team at the City Attorney's Office for their work.

714
01:40:11.580 --> 01:40:12.699
Boardroom: Yeah, thank you.

715
01:40:12.940 --> 01:40:17.109
Boardroom: Thank you. Vice Mayor Trega, I'm so sorry.

716
01:40:17.260 --> 01:40:18.830
Boardroom: Fine.

717
01:40:18.990 --> 01:40:30.750
Boardroom: I just want to associate myself with the previous, colleagues' comments. Thank you so much to the legal team, and…

718
01:40:31.020 --> 01:40:42.019
Boardroom: I'm very proud that Berkeley is moving forward with this. This is very much, part and parcel, a statement of our values. Thank you.

719
01:40:42.020 --> 01:41:06.440
Boardroom: Thank you very much. And I also just want to add my comments to say thank you for your work, and also I know, Paul, I appreciate your input as well. I think this is just another opportunity that the City Attorney's Office had to also work with the public, and I really want to thank you for hearing feedback as well. And thank you to Julie Sinai from my office, who I know did a lot of work to keep moving the ball forward.

720
01:41:06.440 --> 01:41:25.440
Boardroom: and get feedback from the community. I see this really as just one tool in our tool belt. There are many things that we've looked at, and I really want to thank the community. Our Sanctuary City Task Force has been meeting monthly, and this is something that came up during those conversations as well, so thank you so much to the community.

721
01:41:25.440 --> 01:41:26.360
Boardroom: Thank you!

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722
01:41:26.970 --> 01:41:33.400
Boardroom: Okay, so we have a motion on the floor, if we could take the roll, please. Okay. Councilmember Kisserwani?

723
01:41:33.400 --> 01:41:34.230
Rashi Kesarwani: Yes.

724
01:41:34.500 --> 01:41:35.530
Boardroom: Kaplan?

725
01:41:35.530 --> 01:41:36.350
Terry Taplin: Yes.

726
01:41:36.610 --> 01:41:37.610
Boardroom: Bartlett?

727
01:41:37.610 --> 01:41:38.450
Ben Bartlett: Yes.

728
01:41:38.450 --> 01:41:46.749
Boardroom: Trey Gaub? Aye. O'Keefe? Yes. Yes. Blackaby? Yes. Munapara? Yes. Humbert? Yes.

729
01:41:46.750 --> 01:41:57.399
Boardroom: And Mary Ishii? Yes. Okay, motion carries. Thank you. Thank you so much for your presentation. We will now move on to item number 20, which is Amendments to BMC Title 3.24.

730
01:41:57.400 --> 01:42:06.999
Boardroom: Landmarks Preservation Commission to revise procedures for designating landmarks, historic districts, and structures of merit and incorporate technical edits.

731
01:42:07.560 --> 01:42:14.100
Boardroom: And we will hear first a presentation from our city staff. Oh, we might need more chairs, actually.

732
01:42:15.410 --> 01:42:19.970
Boardroom: And, then we will hear a presentation from our Landmarks Commission and Chair.

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733
01:42:21.460 --> 01:42:32.750
Boardroom: Faye, if you could raise your hand on the, online, that will help them find you. And then, from there, we will take Council questions, hear from…

734
01:42:33.610 --> 01:42:51.370
Boardroom: hear from the public, and then we'll come back and do a discussion. Did you want to say something? Just wondering if we need to vote to accept my supplemental item 3 on this. Yes. Thank you very much. We do need to do that.

735
01:42:52.880 --> 01:43:02.299
Boardroom: I… I move to accept. My staff is in the back, and hopefully they can come.

736
01:43:04.160 --> 01:43:05.850
Boardroom: Take care of this.

737
01:43:07.360 --> 01:43:08.470
Boardroom: Apologies.

738
01:43:08.720 --> 01:43:09.520
Boardroom: Knowledge.

739
01:43:45.850 --> 01:43:52.539
Boardroom: And for the council members online, I believe that your SEP3 is actually already posted on the, on the…

740
01:43:53.680 --> 01:43:56.730
Boardroom: On the page, yeah, thank you.

741
01:44:13.610 --> 01:44:17.410
Boardroom: And I move to accept Supplemental 3.

742
01:44:20.730 --> 01:44:22.480
Boardroom: Second.

743
01:44:23.650 --> 01:44:26.039
Boardroom: Okay, can we vote on that, please, Clerk?

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744
01:44:28.800 --> 01:44:31.800
Boardroom: To accept the revised materials from…

745
01:44:32.430 --> 01:44:37.620
Boardroom: Vice Mayor Trigger for item 20, Councilmember Kisarwani.

746
01:44:43.170 --> 01:44:47.990
Boardroom: councilmember Kesarwani to accept, supplemental materials.

747
01:44:54.850 --> 01:44:59.439
Boardroom: She's there. Well, we'll come back. Councilmember Taplin?

748
01:44:59.760 --> 01:45:00.500
Terry Taplin: Yes.

749
01:45:01.120 --> 01:45:01.950
Boardroom: Bartlett?

750
01:45:02.680 --> 01:45:03.920
Ben Bartlett: Yes.

751
01:45:04.200 --> 01:45:07.319
Boardroom: Gregor? Aye. O'Keefe? Yeah, sure.

752
01:45:07.520 --> 01:45:09.150
Boardroom: Flacabee? Yes.

753
01:45:09.500 --> 01:45:10.619
Boardroom: Luna Parra?

754
01:45:11.240 --> 01:45:12.050
Boardroom: Yes.

755
01:45:12.290 --> 01:45:13.660
Boardroom: Humbert? Yes.

756
01:45:14.070 --> 01:45:18.009
Boardroom: Mayor Ishii? Yes. And Councilmember Kesarwani?

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757
01:45:18.260 --> 01:45:18.960
Rashi Kesarwani: Yes.

758
01:45:19.170 --> 01:45:24.759
Boardroom: Okay, the… Motion carries. Materials are accepted for consideration.

759
01:45:25.100 --> 01:45:29.940
Boardroom: Okay, thank you very much. Alright, I will turn it over to Jordan.

760
01:45:30.360 --> 01:45:35.940
Boardroom: Thank you, Mayor. Good evening, Councilmembers. Jordan Klein, Director of Planning and Development. I'm joined here.

761
01:45:35.940 --> 01:45:50.820
Boardroom: At the staff table by Faye Mingham, Assistant Planner, Ann Hirsch, Land Use Planning Manager, and Justin Horner, Principal Planner on the policy team, and also here with us is, Denise Hall Montgomery, who is the chair of the Landmarks Preservation Commission.

762
01:45:51.900 --> 01:45:58.340
Boardroom: In November, City Council adopted a referral to ask staff to

763
01:45:58.670 --> 01:46:04.140
Boardroom: make amendments to, the BMC to…

764
01:46:04.210 --> 01:46:19.879
Boardroom: Adjust the threshold for the number of signatures required to initiate a landmark designation, and also consider, establishing a limitation on designations for properties with active SB330 applications.

765
01:46:19.950 --> 01:46:25.310
Boardroom: And so we, in crafting those amendments, we also made a number of.

766
01:46:25.390 --> 01:46:34.480
Boardroom: other changes, that we're proposing this evening, and so that's the item before you tonight, and I'm going to turn it over to Faye for a brief presentation.

767

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01:46:35.570 --> 01:46:49.129
Boardroom: Thank you, Mayor Ishii and members of the City Council. Tonight, I will present proposed amendments to the Landmarks Preservation Ordinance to respond to the Council referral and supplemental materials adopted on November 10th, 2025.

768
01:46:49.250 --> 01:46:54.980
Boardroom: The proposed amendments revise procedures to designate historic landmarks and incorporate technical edits.

769
01:46:56.740 --> 01:47:06.619
Boardroom: I will begin with a summary of current effects and background, followed by the proposed ordinance amendments. After, I will share staff's recommendation and will be available for questions.

770
01:47:07.760 --> 01:47:22.369
Boardroom: Currently, a landmark designation can be initiated by the Landmarks Preservation Commission, the City Council, the Planning Commission, the Civic Arts Commission, an application from the property owner, or an application from at least 50 residents of the City.

771
01:47:22.470 --> 01:47:28.399
Boardroom: Similarly, appeals of landmarks decisions can be brought to the City Council by the same entities.

772
01:47:31.980 --> 01:47:39.630
Boardroom: The Landmarks ordinance has seen few updates since its adoption in the 1970s. Many of the procedures have remained unchanged and require updating.

773
01:47:40.070 --> 01:47:48.079
Boardroom: Outdated provisions of the ordinance pose administrative challenges relating to public hearing notice, notice of decision issuance, and permit review.

774
01:47:48.350 --> 01:47:54.069
Boardroom: Many of these procedures are out of alignment with the Zoning Adjustments Board and the City's Sunshine Ordinance.

775
01:47:54.800 --> 01:48:00.610
Boardroom: Additionally, fees for landmark designation initiation have not been updated since 1985.

776

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01:48:00.800 --> 01:48:06.670
Boardroom: These fees are currently set in the ordinance, which requires an ordinance amendment whenever a fee is updated.

777
01:48:08.980 --> 01:48:19.880
Boardroom: The November 10th, 2025 Council referral directs staff to update the procedures for initiating landmark designation and appeals on the basis that the 50 signature threshold is too low.

778
01:48:20.470 --> 01:48:30.599
Boardroom: The referral and supplemental materials propose revised designation and appeals procedures by way of an increased signature threshold, with options dependent upon owner consent.

779
01:48:31.640 --> 01:48:41.440
Boardroom: In addition to the increased signature threshold, Supplemental 2 proposed a 5-year stay of landmark initiation for development proposals vested under SB330.

780
01:48:44.880 --> 01:48:54.730
Boardroom: The referral noted that some landmark designation attempts conflict with the intent of state housing laws meant to streamline the approval of housing projects, such as SB330.

781
01:48:55.390 --> 01:49:06.279
Boardroom: A development application vested under SB 330 locks in the zoning, design, and preservation standards that are applicable at the time a complete application is filed.

782
01:49:06.550 --> 01:49:15.719
Boardroom: SB330 ensures that future changes to landmark status, zoning, or other regulations would not affect the project's vested housing development proposal.

783
01:49:16.510 --> 01:49:25.640
Boardroom: Since 2019, when SB 330 was adopted, nearly one-third of all landmark initiation attempts have responded to an SB330 application.

784
01:49:28.270 --> 01:49:38.820
Boardroom: Earlier this year, staff brought the Council referrals to the Landmarks Preservation Commission for their discussion. At that meeting, the LPC formed an ad hoc committee to formulate a statement about the referral.

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785
01:49:39.050 --> 01:49:48.560
Boardroom: The Ad Hoc Committee's recommendations were brought to the full commission and adopted at its March 5th meeting. The Commission's recommendations are included in the staff report as an attachment.

786
01:49:49.160 --> 01:49:58.860
Boardroom: The LPC's comments prompted staff to review the California Office of Historic Preservation's guidelines for landmarks ordinances, as well as the certified local government program requirements.

787
01:49:59.190 --> 01:50:05.130
Boardroom: Upon review, staff have not identified any conflicts in the proposed changes with the SHPO's guidelines.

788
01:50:05.310 --> 01:50:11.770
Boardroom: Nor do the proposed changes constitute the amendment or removal of any qualifying criteria for the CLG program.

789
01:50:15.500 --> 01:50:17.279
Boardroom: In response to the referral.

790
01:50:17.440 --> 01:50:32.720
Boardroom: The referred options for consideration. Staff have proposed two versions of BMC Section 3.24.120, designation initiation, and 3.24.300, appeals, to reflect the two policy options for signature thresholds.

791
01:50:33.040 --> 01:50:39.480
Boardroom: Alternative 1 includes 2 thresholds for initiation, with 200 required signatures with owner consent.

792
01:50:39.730 --> 01:50:42.809
Boardroom: And 400 signatures without owner consent.

793
01:50:43.360 --> 01:50:49.809
Boardroom: Alternative 2 includes a singular signature threshold at 200 signatures, regardless of owner consent.

794
01:50:50.790 --> 01:50:59.849
Boardroom: Both versions of Section 3.24.120 include an exemption which requires a 5-year delay of landmark initiation for SB330 projects.

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795
01:51:00.900 --> 01:51:12.009
Boardroom: For both alternatives, designation initiation powers are maintained for the Landmarks Preservation Commission, the City Council, the Planning Commission, the Civic Arts Commission, and the property owner.

796
01:51:14.370 --> 01:51:22.799
Boardroom: The proposed amendments to appeals reflect the referral's recommendations and mirror the changes proposed to designation procedures in the previously discussed section.

797
01:51:27.690 --> 01:51:44.389
Boardroom: The proposed technical edits are summarized on the table on the screen. These edits consist of typo corrections, sentence capitalization, updates for consistency with the City's Commissioner's and Board Members Manual, and the removal of language that is no longer relevant since adoption of the ordinance in the 1970s.

798
01:51:44.960 --> 01:51:57.689
Boardroom: For some sections, staff propose organizational changes, like renumbering for consistency and clarity, and procedural updates to align the Landmarks Preservation Commission practices with the Zoning Adjustments Board and the City's Sunshine Laws.

799
01:51:58.350 --> 01:52:02.749
Boardroom: Some sections have proposed technical edits to codify existing practice.

800
01:52:03.270 --> 01:52:07.679
Boardroom: For example, bringing LPC decisions to City Council for certification.

801
01:52:08.270 --> 01:52:14.009
Boardroom: Other sections contain proposed amendments to align Landmark's fees with Land Use Division's fee schedule.

802
01:52:14.220 --> 01:52:19.620
Boardroom: These proposed edits remove the fees set in the ordinance and reference the Council adopted fee schedule instead.

803
01:52:20.030 --> 01:52:25.800
Boardroom: This fee schedule can be more easily updated and is used to set all other land use division fees.

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804
01:52:28.350 --> 01:52:41.070
Boardroom: Staff recommends that the City Council adopt the first reading of an ordinance to amend BMC Title 3.24 to revise procedures for designating landmarks, historic districts, and structures of merit, and to incorporate technical edits.

805
01:52:41.420 --> 01:52:43.579
Boardroom: That concludes my presentation. Thank you.

806
01:52:44.250 --> 01:52:52.509
Boardroom: Thank you, Fay. Alright, I think we have a presentation also from our chair, Denise Hall Montgomery.

807
01:52:58.520 --> 01:53:02.599
Boardroom: Press it again. Okay. Oh, there we go. Presto.

808
01:53:02.890 --> 01:53:03.870
Boardroom: All right.

809
01:53:04.220 --> 01:53:22.600
Boardroom: My name is Denise Hall Montgomery, I'm the chair of the Landmarks Preservation Commission, and thank you, Council, for taking the time to hear from the Berkeley Landmarks Preservation Commission. We serve… our commissioners serve in this role as professionals dedicated to safeguarding some of our city's most important historic properties.

810
01:53:22.730 --> 01:53:38.439
Boardroom: As commissioners, we convened as a panel to reflect on our experience over the years. We found strong alignment with the City Council's goal of minimizing the risk of retaliation, whether from neighbors or those opposed to development, against individuals who initiate landmark applications.

811
01:53:38.540 --> 01:53:48.229
Boardroom: A key part of this balance is determining an appropriate threshold for signatures when an application is not initiated by City Council, the Commission, or the Civic Arts Commission.

812
01:53:48.570 --> 01:53:53.470
Boardroom: After careful discussion, we recommend setting the threshold at 100 signatures.

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813
01:53:53.470 --> 01:54:10.280
Boardroom: This represents a meaningful increase, doubling the current requirement, while still remaining achievable. Gathering 100 signatures is a significant undertaking. It requires time, effort, and direct engagement with community members, particularly given the need for individuals to provide personal information.

814
01:54:10.430 --> 01:54:29.439
Boardroom: We are concerned that raising the requirement to 200 or 400 signatures is not grounded in practical experience. These higher numbers appear arbitrary and risk creating unintended consequences. Most notably, they could effectively eliminate the ability for community members to initiate landmark applications altogether, leaving

815
01:54:29.610 --> 01:54:36.179
Boardroom: that authority only to official bodies named in the Landmarks Code. This seems at odd, this seems to us.

816
01:54:36.370 --> 01:54:40.950
Boardroom: to be at odds with Berkeley's long tradition of participatory democracy.

817
01:54:41.230 --> 01:54:55.749
Boardroom: Regarding the owner-initiated path, LPCs… LPC recommends that the process remains unchanged, and so does not require public signatures as proposed in packet number 2, or at least as we understood packet number 2. It was a little confusing to us.

818
01:54:56.030 --> 01:55:07.929
Boardroom: Regarding SB330, the LPC has, at times, been placed in the middle of differing interpretations between the City Attorney and the Planning Department about when a property may or may not be landmarked during the permitting process.

819
01:55:08.090 --> 01:55:19.550
Boardroom: Since we have received clear guidance from the City Council that properties are not eligible for landmarking while on SB330 permit is active, we will follow that policy.

820
01:55:19.550 --> 01:55:31.859
Boardroom: In that vein, LPC recommends that incorporating SB330 requirements directly into the ordinance complicates the text and also could create unintended consequences, which I'll go into in just a minute.

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821
01:55:31.980 --> 01:55:39.799
Boardroom: We recommended that stating the relevant policy with the application and the city website is a cleaner way to…

822
01:55:40.020 --> 01:55:50.550
Boardroom: get the, result that we're looking for. So part of the… part of our concern about putting the language directly into the ordinance is that the proposal is…

823
01:55:51.620 --> 01:56:12.630
Boardroom: to simply restrict landmarking designations for 5 years following the preliminary use permit application, and it lacks the necessary accountability measures as applied to SB330 projects generally. Specifically, we are concerned that the current proposal does not require the submission of a complete use permit or building permit application.

824
01:56:12.630 --> 01:56:27.819
Boardroom: And it does not mandate that construction begin within a certain time frame, and it risks inviting bad faith applications solely to block landmark initiations. And finally, allows any new preliminary application to restart the 5-year clock indefinitely.

825
01:56:28.020 --> 01:56:35.599
Boardroom: So those are our recommendations, those are our concerns, and thank you for your consideration and your commitment to thoughtful, balanced policy.

826
01:56:36.550 --> 01:56:53.659
Boardroom: Thank you very much. Thanks for the presentation, and I will see if my Council colleagues have any questions to start with. Councilmember Humbert, do you have questions? Well, I don't have questions. I wanted to present my, our SEP. Oh, yes. Oh, yes, thank you. No, you're right. Councillor Wise and myself. Please, go ahead. Okay.

827
01:56:53.660 --> 01:56:59.390
Boardroom: And I would ask Councilmember Kasarwani, since I'm a Luddite, To, put up the…

828
01:56:59.840 --> 01:57:03.079
Boardroom: the, the SUP on the screen. Thank you.

829
01:57:03.560 --> 01:57:13.519

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Boardroom: And, and, and we, prepared this up after getting, some really helpful feedback from,

830
01:57:13.950 --> 01:57:20.099
Boardroom: the Landmarks Commission, as well as, folks from, Baja.

831
01:57:20.550 --> 01:57:37.789
Boardroom: So this SUP, and I can just read it, the landmark preservation ordinance amendments in Item 20 would create the possibility of indefinitely chaining together 5-year exceptions to landmark initiation procedures through the submittal and resubmittal

832
01:57:37.910 --> 01:57:54.409
Boardroom: of SB330 pre-development applications, and that would be highly unusual, I think. I'm kind of paraphrasing here. We, but to avoid that, we've, added the proposed sections, additions to Section C.

833
01:57:54.570 --> 01:58:06.340
Boardroom: These exceptions would serve to foreclose the possibility, while ensuring that active development applications and entitled projects would continue to benefit from the protections provided by SB330.

834
01:58:06.490 --> 01:58:14.660
Boardroom: So we would add two subsections to BMC Chapter 3.24.120, Section C.

835
01:58:14.820 --> 01:58:16.480
Boardroom: The first one

836
01:58:17.140 --> 01:58:29.890
Boardroom: well, the general language, any such designation shall not be processed for 5 years following the receipt of a preliminary development application under SB330.

837
01:58:30.170 --> 01:58:34.159
Boardroom: by the City of Berkeley, unless initiated by the property owner.

838
01:58:34.360 --> 01:58:43.040
Boardroom: 1. This 5-year exception period is established at the time of the preliminary development application submittal pursuant to SB330.

839

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01:58:43.110 --> 01:58:59.029
Boardroom: the Housing Crisis Act of 2019, and may only be applied once for any property. Any subsequent preliminary development application submitted pursuant to SB 330 shall be subject to limitations on landmarking in SB330.

840
01:58:59.380 --> 01:59:15.890
Boardroom: Two, following the submittal of a formal zoning application, any landmarking designation request shall not be processed for as long as the application is active, or as long as the resulting permits and entitlements are valid, whichever is longer pursuant.

841
01:59:15.890 --> 01:59:30.249
Boardroom: to SB330. And in response to some additional comments that we received from, Isaac Warshauer very recently, we… and they were, they were good.

842
01:59:30.310 --> 01:59:33.190
Boardroom: Good points, and we accepted them.

843
01:59:35.400 --> 01:59:46.819
Boardroom: His concern, and we've heard this from others as well, his concern was that a property owner might simply

844
01:59:46.820 --> 01:59:58.059
Boardroom: use this 5-year period to demolish a residential property, as I understand it, and then… and then build, build a non-residential property.

845
01:59:58.080 --> 02:00:05.269
Boardroom: Using this, this opportunity that 330, really wouldn't, wouldn't give them, wasn't intended to give them.

846
02:00:05.410 --> 02:00:11.390
Boardroom: So, we would add this additional language to our SUP, and I will move to add it later.

847
02:00:11.440 --> 02:00:26.260
Boardroom: If the property owner submits a formal zoning application for a wholly non-residential project on the subject property during the 5-year exception period, the exception period shall immediately terminate, and the processing of any landmark designation may resume.

848

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02:00:26.830 --> 02:00:32.760
Boardroom: So, thank you. That's our presentation of our supplement… supplemental with some additional language.

849
02:00:32.890 --> 02:00:38.819
Boardroom: Thank you very much, and I'd also like that, Vice Mayor Trey Gubb introduced his supplementals as well.

850
02:00:39.440 --> 02:00:47.289
Boardroom: Thank you very much. So, it is what you see before you, so apologies,

851
02:00:47.520 --> 02:00:49.719
Boardroom: It's not on the screen.

852
02:00:50.000 --> 02:01:02.460
Boardroom: But at the outset, I'll just say that it is my, it… It appears that…

853
02:01:02.880 --> 02:01:08.290
Boardroom: My suggestions are fairly, similar to,

854
02:01:08.590 --> 02:01:25.190
Boardroom: the, Councilmember Humber Humbert-Kassarani proposal in some way. Both… I think both, came out as a result of additional conversations that we had with members of the LPC and with BACHA.

855
02:01:25.300 --> 02:01:28.000
Boardroom: I think the,

856
02:01:29.160 --> 02:01:47.100
Boardroom: So, I will just read into the record, the, suggested exception language in Supplemento 3, and that reads, any such designation shall not be processed following the receipt of a preliminary development application under SB330.

857
02:01:47.100 --> 02:01:59.249
Boardroom: by the City of Berkeley unless initiated by the property owner of record. This exception shall expire, A, if the preliminary development application is withdrawn, or B,

858
02:01:59.250 --> 02:02:08.689

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Boardroom: 30 months after the final approval of the housing development project, for which the preliminary development application was submitted.

859
02:02:08.690 --> 02:02:25.290
Boardroom: the two and a half years comes from, SB330 directly, which it appears for market rate housing. That is the… the period of, pendency, in the application, so…

860
02:02:25.320 --> 02:02:39.930
Boardroom: The 5 years, may create a, perverse, incentive to, attempt to…

861
02:02:41.180 --> 02:02:49.670
Boardroom: entitled the, do the SB330 application without, but then…

862
02:02:51.070 --> 02:03:00.280
Boardroom: If the, application is not acted upon, still have an additional two and a half years, during which,

863
02:03:00.360 --> 02:03:09.519
Boardroom: landmarking is, disallowed. So it, it conforms, that provision in SB330 around timeline.

864
02:03:09.540 --> 02:03:23.050
Boardroom: The difference between Supplemental 2, that I also submitted and Supplemental 3, is really based on a close reading of the proposal, by the,

865
02:03:23.090 --> 02:03:44.370
Boardroom: City Attorney's Office, which I'm, grateful for their close reading, and they suggested additional amendments to ensure that, this language, complies with all applicable provisions of SB330, not just, the one specific to.

866
02:03:44.370 --> 02:03:45.370
Boardroom: the timeline.

867
02:03:45.520 --> 02:03:54.609
Boardroom: I think, we probably may be able to meet in the middle and potentially combine some of these proposals. Thank you.

868
02:03:55.740 --> 02:04:02.420

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Boardroom: Okay, questions from my Council colleagues on the supplementals, or either presentation?

869
02:04:04.900 --> 02:04:13.859
Boardroom: Yes, Councilmember Blackaby. Just had two questions, one, either for the City Attorney or for, planning staff.

870
02:04:14.150 --> 02:04:17.249
Boardroom: Chair of the Landmarks Commission had referenced

871
02:04:17.370 --> 02:04:25.809
Boardroom: the idea of, rather than putting the SB330 language in the ordinance, to have it on the website and then on the application itself.

872
02:04:25.920 --> 02:04:27.729
Boardroom: What's kind of the pro and con of…

873
02:04:28.040 --> 02:04:31.690
Boardroom: Putting it in the ordinance versus not putting it in the ordinance.

874
02:04:34.950 --> 02:04:36.780
Boardroom: I would observe that, I think.

875
02:04:37.980 --> 02:04:56.689
Boardroom: there's some ambiguity in the government code as to what, municipalities are permitted to do, in terms of landmark designation. And so… for a project with an active… for a property with an active SB330 obligation.

876
02:04:58.630 --> 02:05:13.549
Boardroom: And, therefore, if the City Council wants to establish it as policy that the City will not accept or process applications for initiations of designation for properties with an active SB330,

877
02:05:13.730 --> 02:05:17.779
Boardroom: I think it's valuable for Council to codify that position.

878
02:05:18.200 --> 02:05:23.469
Boardroom: stating it on a website, or in an…

879

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02:05:23.660 --> 02:05:36.520
Boardroom: application, I think, doesn't effectively establish it as official city policy in the way that codifying it by ordinance would do. Would it… could it leave us open for something where the applicant

880
02:05:37.000 --> 02:05:40.250
Boardroom: You know, says, well, you know, it's not illegal.

881
02:05:42.030 --> 02:05:59.190
Boardroom: I'm just curious, I'm just… again, I'm trying to think about the edge cases here. I would just echo what, the planning director mentioned, that I think having it codified just makes the implementation easier and more clear and straightforward for everyone involved. Okay.

882
02:05:59.930 --> 02:06:13.740
Boardroom: Great. And my other question is back on the signature, 100, or 200, or 400, the right number. Is there a, is there a clock, under which you've got to collect the signatures, or is it pretty open-ended in terms of the time?

883
02:06:14.770 --> 02:06:28.550
Boardroom: In the ordinance, there is no, time threshold. Okay. Theoretically, they could be collected over any period of time. So that, that also, like, okay, so I mean, I'm a little less concerned of setting… I mean, again, we don't want to set a ridiculously high number.

884
02:06:28.690 --> 02:06:39.609
Boardroom: But at least it's not adding extra urgency in terms of a time clock that, like, if you don't reach that number, you can take extra time to reach that number without penalty. Okay. Thank you.

885
02:06:40.670 --> 02:06:43.440
Boardroom: Thank you very much. Councilmember Lunapara?

886
02:06:44.460 --> 02:06:49.199
Boardroom: Thank you. I wanted to ask, how other cities

887
02:06:49.570 --> 02:06:52.700
Boardroom: do this? Like, are there any other cities that…

888
02:06:52.850 --> 02:06:56.900
Boardroom: How do other cities in our area do the similar processes?

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889
02:06:57.820 --> 02:07:09.249
Boardroom: Sure, so in our research to prepare for this, we looked into a dozen or more other cities and how they initiate landmark designation, and it varies widely across the state. For example.

890
02:07:09.250 --> 02:07:25.220
Boardroom: In Sacramento, I believe it is the planning staff who initiates a landmark designation. In San Francisco, a member of the public can initiate a designation, and it is then reviewed by staff and the LPC before the designation is formally initiated.

891
02:07:25.220 --> 02:07:34.449
Boardroom: Based on our research, there were not any other jurisdictions that had a signature threshold for a petition. This is something unique to Berkeley, but it varies.

892
02:07:35.300 --> 02:07:36.600
Boardroom: Okay, thank you.

893
02:07:37.090 --> 02:07:39.100
Boardroom: Thank you very much. Councilmember O'Keefe?

894
02:07:41.210 --> 02:07:47.680
Boardroom: I was about to not have this question, but now I… based on that answer, I still do. So, okay, my question…

895
02:07:48.520 --> 02:07:57.550
Boardroom: I accept a shrug as an answer. I don't know if this is fair to ask you, but I have this curiosity. It's about the signature threshold. I don't…

896
02:07:57.750 --> 02:08:00.470
Boardroom: I don't have a sense of what is…

897
02:08:01.070 --> 02:08:11.949
Boardroom: reasonable. Like, I just… I don't… I don't know. I'm hearing… I see 200 sounds good to me. I definitely am in favor of raising it. I think it's… it's too low right now. I think we can see that from evidence, but…

898
02:08:11.950 --> 02:08:21.610

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Boardroom: You know, I'm hearing a suggestion that we do only raise it to 100, and I would personally like to raise it to something that was achievable if there was broad support.

899
02:08:21.780 --> 02:08:29.379
Boardroom: And I guess I'm wondering if you feel comfortable opining on this, is 200 reasonable, or is it very hard to meet?

900
02:08:30.250 --> 02:08:32.430
Boardroom: But I… if you… if you…

901
02:08:32.670 --> 02:08:40.059
Boardroom: I don't know, it's not a fair question, but I'm curious what your thoughts are. Yeah, it's really tough to answer that because, as Fane mentioned, there's not.

902
02:08:40.200 --> 02:08:42.630
Boardroom: There's not other communities to look at.

903
02:08:42.900 --> 02:08:46.530
Boardroom: I think a notable point here is that at…

904
02:08:47.080 --> 02:08:54.980
Boardroom: About a third of the initiations that we've seen over the last few years have been in response to SB330 applications.

905
02:08:55.240 --> 02:08:59.750
Boardroom: So… I think that's an argument that it's too low.

906
02:09:00.740 --> 02:09:05.049
Boardroom: But that doesn't really help you land on what the right number is and what's achievable.

907
02:09:05.970 --> 02:09:09.439
Boardroom: Okay, well, thanks for trying. Appreciate it.

908
02:09:10.310 --> 02:09:13.700
Boardroom: Thank you. Vice Mayor Treykop, did you have a question?

909
02:09:14.100 --> 02:09:33.979

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Boardroom: Yeah, thank you. So I thought that some of these questions that my office received might also, just for transparency and everyone's certification, be helpful if I just asked them, in daylight to the city attorney, so,

910
02:09:34.050 --> 02:09:38.160
Boardroom: The question, the first question is, is a preliminary?

911
02:09:40.170 --> 02:09:49.899
Boardroom: Is a preliminary development application withdrawn after 180 days without a complete development application for SB330, or does it simply expire?

912
02:09:49.940 --> 02:10:03.160
Boardroom: And then, the second question is if you could opine, in SB3 authority, and I, I grant that I actually, didn't realize this nuance until I took a closer…

913
02:10:03.370 --> 02:10:06.689
Boardroom: reading of the law,

914
02:10:07.040 --> 02:10:24.919
Boardroom: So, 100%… if the, SB340 project was 100% affordable housing, it would actually be protected for three and a half years, or 42 months after final approval. Can you speak to,

915
02:10:25.580 --> 02:10:38.630
Boardroom: how the, language that was suggested by the CAO and incorporated in Supplemental 3, still addresses that, or if any additional, changes are needed.

916
02:10:41.760 --> 02:10:54.040
Boardroom: I think I need to look at the question that you sent me. I hadn't really had a chance to look at it, so let me think about it, and may need to talk to my team as well. Okay, thank you. I'll give you an answer.

917
02:10:56.850 --> 02:10:58.779
Boardroom: Did you have another question?

918
02:10:58.900 --> 02:11:09.340

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Boardroom: I'll… I'll wait for an answer on those two, but I think we can go to other things. Sure, sure. Yeah, Councilmember Humber, did you have questions?

919
02:11:11.340 --> 02:11:30.199
Boardroom: Yeah, I do. Just one very quick follow-up, really, to Councilmember Blackaby's question about whether or not to include the requirement merely and simply in the application, and this would be directed to the city attorney, who's now working on another… looking at another legal issue, but this should be…

920
02:11:30.500 --> 02:11:40.959
Boardroom: relatively easy, to answer, I think. My concern about including it in the application and simply putting it on the website is that that doesn't constitute law.

921
02:11:41.120 --> 02:11:51.909
Boardroom: That might be, in my view, and maybe I'm wrong, sort of underground regulation. You know, promulgating rules and policies

922
02:11:51.950 --> 02:12:06.530
Boardroom: informally, and I think that invites a lot of, you know, potential challenges. Is that… is… what's your… what are your thoughts about… I definitely think it's a cleaner practice to…

923
02:12:06.900 --> 02:12:12.709
Boardroom: Have it codified, instead of having to refer to some other Document or website.

924
02:12:13.120 --> 02:12:15.339
Boardroom: Okay, thank you.

925
02:12:17.050 --> 02:12:20.329
Boardroom: And the less… the more clarity you have, the less…

926
02:12:20.430 --> 02:12:28.359
Boardroom: opportunities for misunderstanding and misinterpretation, so I definitely think it's a better practice to have it codified.

927
02:12:30.340 --> 02:12:42.139
Boardroom: Okay. I have questions for the supplemental authors. I'm just… I'm curious if you are both amenable to the one time only per SB330

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928
02:12:42.760 --> 02:12:46.610
Boardroom: Application.

929
02:12:47.460 --> 02:12:49.100
Boardroom: Only allowing for one time.

930
02:12:50.070 --> 02:12:55.099
Boardroom: which I think is in the Kessarwani Humbert one.

931
02:12:55.210 --> 02:13:03.260
Boardroom: So you're asking me… So I guess I'm asking you. I just mean, I have other questions for the, Yes, I am comfortable with that.

932
02:13:03.600 --> 02:13:04.380
Boardroom: Okay.

933
02:13:05.120 --> 02:13:06.370
Boardroom: And…

934
02:13:06.670 --> 02:13:25.040
Boardroom: I'm also curious to know… 30 months, by the way, is two and a half years. I feel like I've… there's so many numbers being thrown around, I just want to say that out loud. And if you could all speak to, why two and a half versus five years. I just wasn't sure if, like, two and a half was not enough, or…

935
02:13:25.200 --> 02:13:40.899
Boardroom: I know that two and a half lines with the state, but perhaps Councilmember Hubbard can address that first. Yeah, I think, you know, sort of generally, we know how long projects take, and there are many delays. There are permitting delays, there are financing delays.

936
02:13:40.900 --> 02:13:52.240
Boardroom: And two and a half years may simply just not be enough. I think five years, is an appropriate timeline for, you know, that level of protection. But then only, you know, then only the one time.

937
02:13:52.670 --> 02:14:05.129
Boardroom: Because I am concerned about a project kind of going on for too long and not being built, and I hear what your point is, for sure. I want to make sure there is enough time for a project to be… it's until the project is

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938
02:14:05.650 --> 02:14:08.950
Boardroom: complete, or until their final… Until they…

939
02:14:09.090 --> 02:14:18.609
Boardroom: submit a formal application as opposed to just a preliminary application. Once a formal application is submitted, then, you know, then it's a new game.

940
02:14:18.800 --> 02:14:19.770
Boardroom: Thank you.

941
02:14:20.000 --> 02:14:32.270
Boardroom: Go ahead, Councilmember. And I'll just say on my end, when I first submitted, my supplemental for the… as part of the referral,

942
02:14:32.580 --> 02:14:37.570
Boardroom: I, was taking,

943
02:14:38.530 --> 02:14:48.179
Boardroom: I mean, in the intervening months, I've been able to, take a much closer reading of SB330, but at the time,

944
02:14:48.480 --> 02:14:52.510
Boardroom: Five years was just something that,

945
02:14:53.620 --> 02:15:05.969
Boardroom: Appeared on its face to be a reasonable time period, but was not based on anything other than my perception of what is reasonable, and that is…

946
02:15:06.170 --> 02:15:10.680
Boardroom: how I came to the conclusion that

947
02:15:10.910 --> 02:15:30.570
Boardroom: 2.5 years for a, at least in the case of a not 100% affordable residential project, might be a more objective standard in congruence with SB 330's provisions.

948
02:15:31.570 --> 02:15:51.219

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Boardroom: Okay, thank you. Any other questions from folks? Okay. Alright, well, we will go to public comment, then, on this item. So, we are going to… May I… Sorry? Oh, yes. Please, go ahead. I think I can provide some clarity on your question. The team was able to look at the government code section.

949
02:15:51.330 --> 02:16:02.270
Boardroom: Which doesn't… it turns out it doesn't use the term withdrawn, but rather expire to cover when proponents… when the proponent doesn't submit a complete application.

950
02:16:02.440 --> 02:16:04.530
Boardroom: And,

951
02:16:05.120 --> 02:16:15.480
Boardroom: We have some proposed language that you could maybe read from the dais to clarify the issue. I can send that via email, if that's…

952
02:16:16.750 --> 02:16:20.200
Boardroom: Yeah, it would be helpful to see that language, I think, so thank you.

953
02:16:20.450 --> 02:16:28.209
Boardroom: Okay. Alright, we are taking public comment on item number 20, amendments to BMC Title 3.24, etc, etc.

954
02:16:29.790 --> 02:16:31.690
Boardroom: Okay, Kelly Hammergren.

955
02:16:31.990 --> 02:16:48.440
Boardroom: I attended the April 6th LPC meeting. I attended online, and listened to the entire discussion that evening, and that was, quite a remarkable meeting. Oh, and I do have a minute from the back.

956
02:16:48.820 --> 02:16:50.739
Boardroom: So you can change the clock.

957
02:16:51.000 --> 02:17:01.559
Boardroom: So, Berkeley is a certified local government. The staff made it sound like they dotted all of their I's and crossed their T's and did everything.

958

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02:17:01.690 --> 02:17:17.299
Boardroom: But when I listened to that meeting, and they were asked if they ever contacted the State Office of Historic Preservation, or talked to a state historical officer, they didn't do that.

959
02:17:18.070 --> 02:17:29.150
Boardroom: And so I think you all need to know that, that they did not do all of the work that seems to be implied from the presentation here.

960
02:17:29.510 --> 02:17:30.930
Boardroom: This evening.

961
02:17:31.320 --> 02:17:43.919
Boardroom: I heard a question about, do we have a ridiculous number? And I'd say 400 is a ridiculous number. It's placed there to make it difficult, if not impossible, to landmark.

962
02:17:44.389 --> 02:17:53.289
Boardroom: And in comparing Berkeley to other cities, we so often talk about Berkeley being a special place.

963
02:17:53.360 --> 02:18:07.490
Boardroom: And Berkeley is a special place, and it doesn't matter whether I'm in Minnesota, or whether I'm in Palm Desert, or whether I'm in Munich, Germany, as what happened a few years ago, and I said I was from Berkeley.

964
02:18:07.790 --> 02:18:23.940
Boardroom: people have a vision of Berkeley, no matter where they are in the world, and so landmarking this city is different than landmarking other cities, and we shouldn't be comparing it to other cities.

965
02:18:23.950 --> 02:18:29.440
Boardroom: This is important that we not erase the history that started here.

966
02:18:29.650 --> 02:18:32.700
Boardroom: And… Thank you. Thanks, Kelly.

967
02:18:38.260 --> 02:18:41.079
Boardroom: Hi, my name's Chrissy Hoffman. I'm finally at the right time!

968

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02:18:41.080 --> 02:19:03.729
Boardroom: I am really supporting, the proposal of 100 signatures that, Ms. Montgomery here, thank you so much. I was also at that meeting as one of two people present in person. I would like to invite everybody here to start coming to more of these meetings. I think that Berkeley is an exceptional place as well, and I think that the City Council and all of the experts

969
02:19:03.879 --> 02:19:28.550
Boardroom: that are on various different panels and commissions are here to help the quality of life, to help thriving in Berkeley. It needs to be holistic, there needs to be a balance between preservation and development to keep the quality of life as equally as important as providing housing that is affordable, or middle market, or

970
02:19:28.549 --> 02:19:35.779
Boardroom: expensive, whatever that may be, and so I think that, 100 signatures makes sense to me. Thank you very much.

971
02:19:36.139 --> 02:19:37.309
Boardroom: Thank you.

972
02:19:42.450 --> 02:19:49.069
Boardroom: Hi, I'm Julie Noctuy, and when I moved to Berkeley, I heard about Julia Morgan, I learned about Maybeck.

973
02:19:49.130 --> 02:20:04.879
Boardroom: I learned about John Hudson Thomas, and I learned that Berkeley, with the university since before the turn of the century, had… had turned out so many outstanding architects and so many incredible buildings and structures and

974
02:20:04.900 --> 02:20:20.209
Boardroom: these are known across the Bay Area and across the state of California as being a signature for Berkeley, respecting these architectural heritage that we have. And I definitely support Denise Hall.

975
02:20:20.210 --> 02:20:36.009
Boardroom: You choose people that you want to be in charge of something, you let them be the specialist, and you have a fantastic specialist here, and you need to listen to her, because isn't that why you appropriately have somebody in charge of the Landmark Commission?

976

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02:20:36.320 --> 02:20:47.139
Boardroom: It seems like the… it's a sort of, like, more than 100 signatures seems unreasonable to me, and so I hope you'll think that. Thank you. It's true.

977
02:20:48.340 --> 02:20:59.170
Boardroom: I could… if I… she would give me another minute if you… That's fine. If it's okay with you as the mayor, okay. So, I just wanted to say that it seems like

978
02:20:59.500 --> 02:21:02.330
Boardroom: Trying to undo this ordinance

979
02:21:02.670 --> 02:21:09.830
Boardroom: It's kind of like an underhanded way for developers to make preservation of our historical architecture much harder.

980
02:21:10.470 --> 02:21:15.919
Boardroom: And why do they want to weaken the provisions of Berkeley's much-loved architectural heritage?

981
02:21:16.040 --> 02:21:25.840
Boardroom: So you follow the money. So it's more profitable to demolish Berkeley's architectural gems and build apartment towers than it is to respect and work with

982
02:21:25.840 --> 02:21:38.579
Boardroom: what I think Denise Hall and the Landmark Preservation Commission try to establish. So I respect her, I respect her committee, her commission, and you guys for following her guidelines, I hope.

983
02:21:38.950 --> 02:21:41.240
Boardroom: That's it. Thank you, Julie.

984
02:21:47.370 --> 02:21:50.849
Boardroom: Good evening, Council. My name's Claudia Hunka.

985
02:21:51.150 --> 02:22:04.200
Boardroom: I am very concerned about this, proposal when, since 1970, no issues regarding landmarking have been changed or taken place.

986
02:22:04.340 --> 02:22:12.770

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Boardroom: And now that we have corridor zoning that's being proposed in one of Berkeley's most historic

987
02:22:12.980 --> 02:22:23.340
Boardroom: commercial districts and neighborhoods. Now, all of a sudden, we're looking at making changes to zoning for… I'm sorry, to the…

988
02:22:23.670 --> 02:22:34.519
Boardroom: landmarking requirements when nothing's been done since the 70s. I find it a little ironic that those two are happening simultaneously.

989
02:22:34.770 --> 02:22:45.680
Boardroom: I do support, the lower number of signatures, as… as proposed by the Landmarks Preservation Commission.

990
02:22:45.960 --> 02:22:48.099
Boardroom: And I'm very disappointed.

991
02:22:49.970 --> 02:22:51.900
Boardroom: Thanks. Thank you.

992
02:22:58.920 --> 02:23:18.469
Boardroom: Hi, I… so this is a… You can pull up the mic so you can… Sorry. There you go. This is actually a question for the chair. There is a speaker… there is a participant on Zoom named Leila Moncharsh, who wishes to yield a minute of time to me. If that… If she could raise her hand.

993
02:23:19.890 --> 02:23:21.169
Boardroom: Is she online?

994
02:23:21.590 --> 02:23:35.329
Boardroom: You have a… do you need just two? Because someone from the audience is gonna be giving you… Layla, are you… Layla, would you like to yield your minute to the speaker?

995
02:23:37.570 --> 02:23:38.579
Boardroom: You should be able to unmute.

996
02:23:38.580 --> 02:23:44.549
Leila Moncharsh: Yes, I cede my time to, Isaac Warshauer.

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997
02:23:44.550 --> 02:23:50.200
Boardroom: Okay. Okay. You can have 3 minutes, one from the audience, one from online. Go ahead. Thank you.

998
02:23:50.800 --> 02:23:58.009
Boardroom: Hmm, I, My name is Isaac Warshauer, I'm here to represent the Berkeley Architectural Heritage Association.

999
02:23:58.110 --> 02:23:59.529
Boardroom: And,

1000
02:24:00.030 --> 02:24:04.580
Boardroom: I'm sure you've seen my name, and you've met with… and some of you have met with me,

1001
02:24:04.880 --> 02:24:13.399
Boardroom: And I've been trying to advocate for common sense measures, when it comes to the problem identified by Council.

1002
02:24:13.490 --> 02:24:25.509
Boardroom: And, I very much appreciate the feedback, that the Council has made so far. I'd like to make some general points about preservation, and also make some points about the signature threshold.

1003
02:24:25.620 --> 02:24:27.140
Boardroom: So I think there are…

1004
02:24:27.340 --> 02:24:40.540
Boardroom: There are three misconceptions that kind of float around, or mischaracterizations that float around with relation to preservation. One is that preservation and landmarking puts things in amber. That's simply untrue.

1005
02:24:40.540 --> 02:25:00.419
Boardroom: And in fact, with state law, the limitations that it places on housing are actually very, quite small, and can't even affect density, in many cases, on a parcel. It's really about making sure that the historic, nature of the structures on the site, factor in to proposals in the future.

1006
02:25:00.420 --> 02:25:03.610

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Boardroom: The, the second is that, a property

1007
02:25:03.700 --> 02:25:13.739
Boardroom: That if a property isn't landmarked yet, and clearly isn't worthy of being landmarked, the real reason for that is that there's been very little comprehensive planning and preservation.

1008
02:25:13.900 --> 02:25:32.630
Boardroom: And often, preservationists are forced to focus on the most threatened buildings, which also happen to be the buildings that have planned developments, and that's where the conflict emerges. It doesn't imply that preservationists are cynically pursuing preservation, it's just that it's a triage-like approach to the process.

1009
02:25:32.630 --> 02:25:39.320
Boardroom: And then third, it's that rights of property owners should take precedence over, efforts to landmark buildings.

1010
02:25:39.320 --> 02:25:45.340
Boardroom: And that runs in the face of principles of land use planning in general, which are that

1011
02:25:45.650 --> 02:25:47.139
Boardroom: that there are…

1012
02:25:47.350 --> 02:26:05.040
Boardroom: resources, commons, resources that we share that need to be managed collectively, and historic preservation, historic resources are just one of those, and they should be managed for the collective good, and that the individual property owner doesn't really have the incentive, to manage those on behalf of the public.

1013
02:26:05.160 --> 02:26:14.760
Boardroom: And the last point I'd like to make is that focusing on increasing signature requirements is a really flawed strategy to addressing landmark efforts that cover for NIMBYism.

1014
02:26:14.760 --> 02:26:31.440
Boardroom: In fact, landmark petitions that easily reach, say, 400 signatures are actually precisely those that are most likely to really be… have an underlying impetus that's driven by larger political divisions and not by real preservation concerns.

1015

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02:26:31.440 --> 02:26:44.960
Boardroom: And it's those efforts by local community historians and archivists, some of which Baja has worked with, that would truly be sort of shut out of the process by an inordinately large signature requirement.

1016
02:26:45.160 --> 02:26:47.440
Boardroom: Thank you very much.

1017
02:26:48.240 --> 02:26:49.530
Boardroom: Thank you.

1018
02:26:50.270 --> 02:27:00.809
Boardroom: Okay, is there anyone online who would like to make a public comment on item number 20, which is the amendments to BMC Title 3.24? Oh, another person in person. Okay, go ahead.

1019
02:27:05.150 --> 02:27:26.920
Boardroom: I'm Steve Finnecom, I'm a member of the Landmarks Commission, speaking as an individual, I want to associate myself with, our chair's remarks tonight, which were very cogent, and I want to say that the Commission, voted unanimously in favor of the recommendations that she was presenting. On the signature requirement,

1020
02:27:26.940 --> 02:27:44.840
Boardroom: We did recommend 100. I do want to say there's not a, a huge, deluge of landmark applications. I've been on the Commission for nearly 9 years, and some years we've had zero landmarks.

1021
02:27:44.840 --> 02:27:48.150
Boardroom: 2, 3, 4,

1022
02:27:48.150 --> 02:28:04.039
Boardroom: even recently, with a lot of development, there have not been that many applications. And, I noted when I came into the room this evening, I went through a gauntlet of signature gatherers. I didn't ask them what they were gathering signatures for, but it's really hard.

1023
02:28:04.040 --> 02:28:09.780
Boardroom: to get signatures, even in Berkeley. So 100 is a reasonable number. Thank you. Thanks so much.

1024
02:28:11.940 --> 02:28:18.440

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Boardroom: Are folks online, raising their hands for comments? Yes, we have 5 hands raised.

1025
02:28:18.600 --> 02:28:20.670
Boardroom: First is Bryce Nesbitt.

1026
02:28:22.770 --> 02:28:28.730
Bryce Nesbitt: Hello, this is Bryce Nesbitt. I have two points. One, absolute support that the

1027
02:28:29.020 --> 02:28:41.950
Bryce Nesbitt: The fact that you managed to collect a certain number of signatures is not a good predictor of merit of a landmark application, so absolutely echoing what the Baja chair said there. I think you need to find a better method.

1028
02:28:42.780 --> 02:28:50.849
Bryce Nesbitt: Second, There's an opportunity In some cases, to… Move a building.

1029
02:28:51.100 --> 02:28:59.299
Bryce Nesbitt: to a place where it is at a better home. So you have a development application, there's some incompatible structures with that development on the block.

1030
02:28:59.450 --> 02:29:01.770
Bryce Nesbitt: But in recent years.

1031
02:29:02.120 --> 02:29:11.019
Bryce Nesbitt: The threshold for moving a building, in terms of the number of permits and city process, had made that all but impossible to actually achieve.

1032
02:29:11.220 --> 02:29:25.610
Bryce Nesbitt: And so you'll lose a structure that you could have preserved because of city processes. And so I think a good pair, if you're going to take this action, is to look at permitting reform for moving of structures of merit. Nobody moves.

1033
02:29:25.610 --> 02:29:26.200
Boardroom: Thank you, Brad.

1034

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02:29:26.200 --> 02:29:27.570
Bryce Nesbitt: An unworthy structure.

1035
02:29:29.250 --> 02:29:34.480
Boardroom: Okay, next is… Matt O'Brien.

1036
02:29:37.300 --> 02:29:49.839
mattobrien: Yes, I'd like to point out that Berkeley is one of the oldest cities in the Bay Area, and as such, has architecture that other cities don't have. You can't find it in Orinda, El Cerrito, Cupertino.

1037
02:29:49.840 --> 02:29:59.290
mattobrien: And it seems that we're not… our city officials, our city councils don't really appreciate that, or don't understand that the residents really appreciate that.

1038
02:29:59.290 --> 02:30:03.820
mattobrien: And so this seems to be an effort to, to, to,

1039
02:30:03.820 --> 02:30:22.719
mattobrien: encourage demolition of these gems, because money can be made. And so the public has a perception that our city council is fostering sort of this frenzy of greed, and allowing the real estate industry to make a lot of money at the expense of the quality of life.

1040
02:30:22.760 --> 02:30:41.259
mattobrien: and the beauty of the city itself, and the residents are not in agreement with a lot of these efforts that the city council is taking, that fosters a lot of money to be made by the real estate industry, but leaves the residents, poorly.

1041
02:30:42.390 --> 02:30:44.670
Boardroom: Next is Arlene.

1042
02:30:45.190 --> 02:30:46.100
Boardroom: Silk?

1043
02:30:51.440 --> 02:30:53.450
Boardroom: Arlene, you should be able to unmute.

1044
02:30:54.230 --> 02:30:58.489
mattobrien: You… you unmuted me, Matt O'Brien, I think you gotta unmute.

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1045
02:30:58.490 --> 02:31:01.720
Arlene Silk (2): Okay, there I am. I'm… I'm…

1046
02:31:01.770 --> 02:31:13.220
Arlene Silk (2): here tonight because I was… I chaired the very first public hearing of the Landmark Commission in 1975, in December 15th, when we designated the first nine landmarks. And by the way.

1047
02:31:13.220 --> 02:31:22.240
Arlene Silk (2): They were all public buildings, every one of them. There were four churches, Old City Hall, which I see Councilmember Bartlett has behind him, our beautiful building.

1048
02:31:22.240 --> 02:31:29.850
Arlene Silk (2): And 50 signatures are really, really hard to get. It's not as though you stand in front of a supermarket and collect them.

1049
02:31:30.150 --> 02:31:44.009
Arlene Silk (2): And I'm really… I suppose I support what Denise Montgomery and the Landmark Commission proposed to raise to 100, but if it's raised any higher, essentially you're gutting the landmark ordinance, and you're gutting preservation at Berkeley.

1050
02:31:44.330 --> 02:31:54.000
Arlene Silk (2): And by the way, we learned the ordinance really carefully, because it was brand new, and we held our first public hearing in Old City Council Chambers.

1051
02:31:58.970 --> 02:31:59.790
Boardroom: Okay.

1052
02:32:00.230 --> 02:32:03.640
Boardroom: Okay. Next is Janice.

1053
02:32:07.990 --> 02:32:13.500
Janis's iPhone: Thank you. I, I'm, I appreciate the conversation around the,

1054
02:32:13.890 --> 02:32:25.269

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Janis’s iPhone: the timing of the lapsed applications, as this is a common problem that we're seeing more and more, that, applications are put forward and then they are allowed to lapse.

1055
02:32:25.330 --> 02:32:38.900
Janis’s iPhone: So I appreciate that it's, that Councilmember Trey Group, or Vice Chair, is trying to reduce that, and I don't understand why we would want to double the, timeframe established by the state.

1056
02:32:39.020 --> 02:32:54.940
Janis’s iPhone: And secondly, I agree that, 100 signatures seems like a reasonable amount, and that 400 signatures would prevent any landmark, proposal from being put forward. So, I hope that you'll consider the two and a half

1057
02:32:55.070 --> 02:33:00.330
Janis’s iPhone: Years on the, the LAPS applications, thank you.

1058
02:33:01.960 --> 02:33:03.090
Boardroom: Thank you.

1059
02:33:05.360 --> 02:33:07.359
Boardroom: Next is Moni.

1060
02:33:11.600 --> 02:33:25.590
Moni Law (she/her; on unceded Ohlone Territory): Good evening, Mayor, Council, and community members. I am speaking to, support the 100 signatures as a reasonable number. That is much more difficult for a small group like Baja, which is quite a…

1061
02:33:25.590 --> 02:33:34.129
Moni Law (she/her; on unceded Ohlone Territory): formidable organization, but small versus multi-millionaire developers. Secondly, the 5-year period

1062
02:33:34.470 --> 02:33:42.350
Moni Law (she/her; on unceded Ohlone Territory): kind of stalling landmarks and making it very unclear whether we're going to protect our history is…

1063
02:33:42.350 --> 02:33:55.470
Moni Law (she/her; on unceded Ohlone Territory): harmful, counterproductive, and not essential to the growth of this city in the

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beautiful way that it should, which is to preserve our historic buildings. I've been to a meeting for a historic landmark of a building on my street. I didn't know its history.

1064
02:33:55.470 --> 02:34:15.420
Moni Law (she/her; on unceded Ohlone Territory): Until the Landmark Commission went through the fact that it was a Chinese community that was around the corner from where I live, and there are all these historic aspects to that property, which were protected as a result of our legislation. So I urge you to ensure that the Julia Morgan buildings and Maybex and all the others that are so special in Berkeley are protected and not.

1065
02:34:15.420 --> 02:34:16.030
Boardroom: me.

1066
02:34:16.030 --> 02:34:17.430
Moni Law (she/her; on unceded Ohlone Territory): to development.

1067
02:34:20.750 --> 02:34:25.079
Boardroom: Next is a phone number ending in 211.

1068
02:34:31.650 --> 02:34:37.170
1510****211: As I mentioned before… as I mentioned before, it's been working for 60… 60 years.

1069
02:34:37.420 --> 02:34:46.650
1510****211: Our beautiful old city of Berkeley is dead. It is dead. All the movie theaters are gone, all the city hall, and run by a bunch of

1070
02:34:46.780 --> 02:34:50.810
1510****211: Corrupt mega-landlords, private equity firms.

1071
02:34:51.030 --> 02:35:09.589
1510****211: and money-making machine, all of this new building built very cheap. I have PhD in nuclear engineering, mechanical engineering as well. This building all going to collapse in 7 plus magnitude as quick. Wake up, everybody. We don't really have a good situation at all. Not just the landmarks.

1072
02:35:09.650 --> 02:35:17.140
1510****211: All landmarks are gone. All the movie setters are gone. What is the hell is going on with the city hall? Corruption and incompetence.

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1073
02:35:17.590 --> 02:35:18.579
1510****211: Have a good night.

1074
02:35:20.540 --> 02:35:21.720
Boardroom: Thank you.

1075
02:35:22.930 --> 02:35:25.519
Boardroom: Next is Rebecca Mervish.

1076
02:35:26.810 --> 02:35:43.880
Rebecca Mirvish: What up, Council? I don't know what the right number of signatures is, but I have a feeling it's probably easier to get signatures, like, not during this exact, season, election season, where there's lots of people getting signatures. That is just my guess.

1077
02:35:44.500 --> 02:35:45.510
Rebecca Mirvish: Thank you.

1078
02:35:48.510 --> 02:35:50.300
Boardroom: Thanks, Rebecca.

1079
02:35:51.330 --> 02:35:53.690
Boardroom: That's it, that's the last speaker.

1080
02:35:55.910 --> 02:36:07.469
Boardroom: Okay, alright. Thank you, thank you very much, to all of the public commenters. So, I will now open it up for,

1081
02:36:08.040 --> 02:36:12.110
Boardroom: my colleagues. Okay, go ahead, Councilmember Humbert.

1082
02:36:14.060 --> 02:36:17.270
Boardroom: Thank you, Madam Mayor. My button doesn't work for some reason.

1083
02:36:17.370 --> 02:36:25.209
Boardroom: And my comments are somewhat lengthy, I'll try to get through them as quickly as I can.

1084

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02:36:25.430 --> 02:36:30.730
Boardroom: I want to thank Councilmember Kesarwani for bringing this forward to begin with.

1085
02:36:31.030 --> 02:36:41.690
Boardroom: I think these are overdue reforms to help prevent abuse of the landmarking process, encourage housing development, and help conserve city resources.

1086
02:36:41.790 --> 02:36:54.839
Boardroom: There have been multiple recent instances where landmark initiations have come before Council where I believe the most basic criteria for a landmark were not met, and it was clear that the initiations only took place

1087
02:36:54.930 --> 02:37:06.450
Boardroom: As a response to proposed housing development, and we heard some… about the percentage from, the planning, director and department earlier.

1088
02:37:06.710 --> 02:37:11.079
Boardroom: 1 out of 3 recently, the past few years.

1089
02:37:11.310 --> 02:37:19.570
Boardroom: I strongly believe that landmark preservation should be about broadly shared public benefits, not the preferences of a narrow group

1090
02:37:19.700 --> 02:37:22.660
Boardroom: Or purely for the sake of the buildings themselves.

1091
02:37:22.890 --> 02:37:35.119
Boardroom: When we landmark a building, it should be an expression of the high value we collectively place in that historic resource, and the way it contributes to our city. Right now, roughly the same group of 50 people

1092
02:37:35.120 --> 02:37:48.629
Boardroom: That's equivalent to 0.04% of the city's population can initiate landmarks, forcing the Landmarks Preservation Commission, staff, the City Council, and the people trying to build homes into a protracted process.

1093
02:37:48.730 --> 02:37:59.639

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Boardroom: I think that's anti-democratic, I think it undermines the city's housing production goals, and it frankly cheapens the entire concept of landmarking and what it's supposed to represent.

1094
02:38:00.040 --> 02:38:14.960
Boardroom: And even with Councilmember Kassarwani's proposal, we're still talking about .3% of the city's population being able to initiate a landmark. Put another way, even under the 400 signature threshold, and I'm not necessarily wedded to that.

1095
02:38:14.960 --> 02:38:23.530
Boardroom: number. This means that only one in roughly every 300 people in Berkeley needs to think a building is worth landmarking to initiate it.

1096
02:38:23.770 --> 02:38:30.210
Boardroom: And this is before we consider that the LPC and City Council can themselves initiate landmarks.

1097
02:38:30.310 --> 02:38:48.180
Boardroom: If even 100 people attended an LPC meeting to ask a certain building be landmarked, I think the LPC would at least look into it. And I guess I would ask Chair Hall Montgomery, if you got that kind of a response, would the LPC itself consider initiating a landmark?

1098
02:38:48.720 --> 02:39:05.210
Boardroom: application. Of course. Yeah. So… so if we had 100 people who were really excited about a building, I think there's a ready route, even after, if we pass this, to achieve landmark status, or at least to get the process going.

1099
02:39:05.810 --> 02:39:17.330
Boardroom: So that the notion that this proposal is somehow foreclosing a public process doesn't seem correct to me, and nothing about this proposal fundamentally decreases the opportunities for public

1100
02:39:17.430 --> 02:39:19.479
Boardroom: Involvement, or input.

1101
02:39:19.870 --> 02:39:26.419
Boardroom: With respect to the exception to the landmark initiation project following the submittal of an SB330 application.

1102

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02:39:26.550 --> 02:39:38.740
Boardroom: I appreciated the feedback that we received from the LPC and from Mr. Warshauer and Baja, and we took some of those things into account and put them in our supplemental.

1103
02:39:38.880 --> 02:39:50.399
Boardroom: Looking over Councilmember Trey Group's multiple supplementals, I think I now have an understanding of his approach, but I would still tend to favor the approach I put forward with Councilmember Kassarwani.

1104
02:39:50.870 --> 02:40:05.639
Boardroom: I would prefer to grant a longer local exception period, because I know that economic cycles can, at times, significantly delay movement on a project, and we've seen that lately, and it's kind of an unhappy result, but it happens.

1105
02:40:05.830 --> 02:40:14.060
Boardroom: And because I would also like the local protections for proposed projects beyond 5 years to be tied to the actual submittal of a formal application.

1106
02:40:14.140 --> 02:40:28.130
Boardroom: And, you know, for smaller developers, for mom and pops, you know, who aren't used to dealing with city procedures and permitting, you know, things take… things can take a long time. And so I don't think 5 years is unreasonable at all.

1107
02:40:29.670 --> 02:40:41.000
Boardroom: I think that Councilmember Trigobe's approach is also broadly reasonable, but I'm disfavored toward it, partially because it would automatically have the protection lapse at the 30-month mark.

1108
02:40:41.110 --> 02:40:59.600
Boardroom: two and a half years, Madam Mayor, regardless of the state of the entitlements. For example, if the staff and ZAB granted an extension, it seems the protection would still lapse under, Vice Mayor Trigube's version, whereas under hours of protection would last as long as the entitlement.

1109
02:40:59.690 --> 02:41:11.070
Boardroom: Anything less, I think, would be actually preempted by state law. So under the Trague version, we would still potentially see staff needing to process landmark applications that could not actually be enforced.

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1110
02:41:11.690 --> 02:41:22.139
Boardroom: I also understand the inclination to align the exception period to the length of time, I just have another paragraph, that the pre-application remains valid.

1111
02:41:22.140 --> 02:41:31.870
Boardroom: But I generally prefer to leave the longer protection, especially to account for smaller missing middle projects, for example, where the applicants may be mom and pops, as I mentioned.

1112
02:41:31.990 --> 02:41:50.699
Boardroom: I think that having the full 5-year protection from a pre-app be a one-time-per-property exception helps both to give people adequate time and to discourage people from game-playing and using frivolous SB330 pre-applications to prevent a worthy landmarking. So, that's where I come down. Thank you.

1113
02:41:52.390 --> 02:41:57.050
Boardroom: Thank you. Yes, going to Vice Mayor Treykop.

1114
02:41:58.410 --> 02:42:02.650
Boardroom: Thank you. I'm gonna try to share screen.

1115
02:42:05.490 --> 02:42:08.679
Boardroom: And then, just so you know, Councilmember Bartlett, I see you as well.

1116
02:42:10.520 --> 02:42:17.630
Boardroom: Okay, so this is for additional discussion with the city attorney,

1117
02:42:18.790 --> 02:42:23.370
Boardroom: I would like to introduce into the record,

1118
02:42:23.750 --> 02:42:30.659
Boardroom: this, the additional two words in red suggested by the city attorney, so it would now say,

1119
02:42:31.160 --> 02:42:31.880
Boardroom: Yeah.

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1120
02:42:34.620 --> 02:42:36.930
Boardroom: How is this? Yeah, that's pretty rude.

1121
02:42:38.640 --> 02:42:52.050
Boardroom: And I will read it into the record, just so that everyone is on the same page. So, exception, any such designation shall not be processed following the receipt of a preliminary development application under SB 330 by the City of Berkeley.

1122
02:42:52.050 --> 02:43:09.359
Boardroom: Unless initiated by the property owner of record. This exception shall expire A if the preliminary development application is withdrawn or expires, or B, 30 months after the final approval of the housing development project, for which the preliminary development application was submitted.

1123
02:43:09.760 --> 02:43:13.430
Boardroom: I… I think,

1124
02:43:14.200 --> 02:43:25.280
Boardroom: On this dais, and in general, I do my best to balance the three P's of housing, production, protection, preservation.

1125
02:43:25.370 --> 02:43:34.979
Boardroom: And yes, we can argue preservation of naturally occurring affordable housing, what that means, but, I, digress.

1126
02:43:36.210 --> 02:43:41.529
Boardroom: I think, I am most comfortable with the,

1127
02:43:41.670 --> 02:43:49.109
Boardroom: And by the way, I appreciate Councilmember Humber Humbert and Castarwani's efforts to,

1128
02:43:49.310 --> 02:44:05.160
Boardroom: try to find the appropriate balance, and I broadly agree with the thrust of, the rest of their, proposal, including, limiting the exception to, one time.

1129
02:44:05.950 --> 02:44:17.939
Boardroom: I do believe that going beyond alignment with, the confines of SB330.

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1130
02:44:18.200 --> 02:44:23.350
Boardroom: Introduces some risk, and introduces some objective… or some…

1131
02:44:23.630 --> 02:44:31.109
Boardroom: additional subjectivity. It also may make, the work of staff,

1132
02:44:31.330 --> 02:44:47.490
Boardroom: harder. It may be marginally harder, but trying to keep track of the different timelines, one provided by the state and another provided by us locally, may,

1133
02:44:47.610 --> 02:44:50.440
Boardroom: challenge the effort to,

1134
02:44:51.160 --> 02:45:08.969
Boardroom: try to objectively administer, this ordinance. I do, I am sympathetic to the, how long it takes to move a preliminary, application to a full SB330 application, but…

1135
02:45:08.970 --> 02:45:21.690
Boardroom: again, this is a balancing act, and I feel, quite comfortable with the language, introduced by, or, that was…

1136
02:45:23.030 --> 02:45:32.940
Boardroom: amended, at the suggestion of the city attorney's office. Which would be…

1137
02:45:34.220 --> 02:45:37.099
Boardroom: What you see on the screen. Thank you.

1138
02:45:38.380 --> 02:45:43.750
Boardroom: Thank you. Councilmember Bartlett, I can't see you anymore, but I know you had your hand up.

1139
02:45:44.890 --> 02:45:45.500
Ben Bartlett: Thank you.

1140
02:45:46.050 --> 02:46:01.360

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Ben Bartlett: Thank you, Madam Mayor, and thank you, my colleagues, for these really interesting and thoughtful suggestions. You know, it is a balancing act, and I, for one, am curious about the signature piece.

1141
02:46:01.470 --> 02:46:08.630
Ben Bartlett: The… So, can the signatures be gathered electronically? Can anyone tell me that?

1142
02:46:10.320 --> 02:46:11.000
Boardroom: No.

1143
02:46:11.310 --> 02:46:12.480
Ben Bartlett: Gatsby Hitto.

1144
02:46:12.600 --> 02:46:26.189
Ben Bartlett: Okay, so here's the issue. So, you know, I grew up as an organizer, and I've collected signatures and done things like that throughout my entire life. And, you know, I just… I see that being overly burdensome.

1145
02:46:26.190 --> 02:46:34.379
Ben Bartlett: once you get past 100 persons, or 125 or so, like, my neighbor's house is beautiful, it's from the 1800s, it's a wonderful…

1146
02:46:34.380 --> 02:46:45.299
Ben Bartlett: incredible structure. And, you know, I can't see these little ladies over here going around getting, you know, going door-to-door, like street soldiers, and organizers to get these signatures.

1147
02:46:45.530 --> 02:46:51.040
Ben Bartlett: Once you get past a certain number. And I think it kind of thwarts

1148
02:46:51.160 --> 02:46:59.670
Ben Bartlett: There's democracy in many ways, many ways. And again, there is a balancing act because it has been abused, we know this, we've covered this together as a body before.

1149
02:46:59.790 --> 02:47:09.150
Ben Bartlett: But I'm leaning towards a softer number around the 100 signatures, 125, 100. And the development timeline,

1150

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02:47:09.310 --> 02:47:12.059
Ben Bartlett: You know, looking at the realistic.

1151
02:47:12.170 --> 02:47:18.689
Ben Bartlett: economic outlook, around for the near future in the credit markets, etc. It seems…

1152
02:47:18.910 --> 02:47:22.170
Ben Bartlett: It seems kind of, sort of, ill-advised to rush

1153
02:47:22.370 --> 02:47:26.500
Ben Bartlett: The development timeline on these… on these very expensive projects.

1154
02:47:26.900 --> 02:47:34.530
Ben Bartlett: So I tend to agree with the 5-year mark, that I heard from Humbert and Kessarwani. Those are my thoughts. Thank you.

1155
02:47:36.850 --> 02:47:41.100
Boardroom: Thank you. Also, we have Councilmember Lunopara.

1156
02:47:42.290 --> 02:47:49.000
Boardroom: I have a question, for Councilmember Traeger. Do you mind pulling up your language again, quickly?

1157
02:48:01.300 --> 02:48:02.190
Boardroom: Sorry.

1158
02:48:10.810 --> 02:48:13.479
Boardroom: Thank you. Shouldn't we have…

1159
02:48:13.960 --> 02:48:22.390
Boardroom: If it… shouldn't there be, like, a clause that says which of the two is favored?

1160
02:48:22.720 --> 02:48:40.310
Boardroom: for, like, this exception shall expire, A, if this, or B if this, whichever is, sooner or later, because… or is it just… like, how do we… how do we… how does the planning department decide which one of these satisfies this requirement? Does that make sense?

1161

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02:48:41.910 --> 02:48:51.540
Boardroom: Yeah, I… I have no problem with adding that, but I wanted to defer to the city attorney.

1162
02:48:51.960 --> 02:48:54.950
Boardroom: I think it would be either, if either occurs.

1163
02:48:55.590 --> 02:48:57.020
Boardroom: Is that right?

1164
02:48:57.630 --> 02:49:03.450
Boardroom: Yes, I'm seeing knots. In that case, I'm wondering if we can add… Whichever is later.

1165
02:49:04.030 --> 02:49:07.690
Boardroom: to avoid what Councilmember Humbert was talking about, is if…

1166
02:49:08.490 --> 02:49:11.120
Boardroom: The application is extended by ZAB.

1167
02:49:11.230 --> 02:49:14.640
Boardroom: Then it can still be covered under this exception.

1168
02:49:16.250 --> 02:49:19.059
Boardroom: Up to 5 years.

1169
02:49:21.170 --> 02:49:22.100
Boardroom: Sure, yeah.

1170
02:49:25.870 --> 02:49:26.850
Boardroom: Right. Yeah.

1171
02:49:29.660 --> 02:49:35.400
Boardroom: I… I, I, I would be open to that, to try to…

1172
02:49:35.930 --> 02:49:40.610
Boardroom: You know, have a pathway to some… commonality here.

1173
02:49:41.510 --> 02:49:42.790
Boardroom: Okay, thanks.

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1174
02:49:45.030 --> 02:49:47.959
Boardroom: Okay, any other comments from my Council colleagues?

1175
02:49:54.760 --> 02:49:55.740
Boardroom: Okay.

1176
02:49:56.250 --> 02:50:02.630
Boardroom: So… I'm sorry, I'm not sure I'm completely clear on… You were saying.

1177
02:50:03.040 --> 02:50:14.290
Boardroom: So, B, instead of 30 months, would be 5 years after the final approval, or is there something you had mentioned earlier about two and a half years, and then something for ZAB? I just want to make sure I understand.

1178
02:50:25.800 --> 02:50:30.540
Boardroom: It's a question for me. Yeah.

1179
02:50:38.200 --> 02:50:44.690
Boardroom: the… Well, probably the clearest way to deal with this.

1180
02:50:46.120 --> 02:50:55.419
Boardroom: Is to say whichever… is sooner, just in the language. I've been thinking about how to make this

1181
02:50:56.090 --> 02:50:57.350
Boardroom: align.

1182
02:50:57.930 --> 02:51:00.460
Boardroom: With the 5 years proposed by…

1183
02:51:01.880 --> 02:51:06.999
Boardroom: in Councilmember Humbert's referral, and I'm not finding a way to do that.

1184
02:51:08.150 --> 02:51:11.529
Boardroom: But if someone… Has ideas. I'm open.

1185

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02:51:14.630 --> 02:51:22.219
Boardroom: Okay, alright, so it doesn't sound like you have a particular time frame in mind, then.

1186
02:51:22.970 --> 02:51:24.059
Boardroom: Is that correct?

1187
02:51:28.490 --> 02:51:29.190
Boardroom: E.

1188
02:51:29.820 --> 02:51:32.460
Boardroom: Whichever is.

1189
02:51:32.790 --> 02:51:33.850
Boardroom: Modifying.

1190
02:51:34.440 --> 02:51:35.680
Boardroom: Clause A, right?

1191
02:51:38.260 --> 02:51:41.469
Boardroom: Do you… is this what you meant?

1192
02:51:42.490 --> 02:51:49.390
Boardroom: I mean, I did… I was wondering if we could clarify. I would prefer for it to say whichever is later, but…

1193
02:51:49.740 --> 02:51:57.320
Boardroom: I did want to just be clear about which way we would… be… favoring.

1194
02:51:57.950 --> 02:51:59.140
Boardroom: the decision.

1195
02:51:59.390 --> 02:52:19.259
Boardroom: I see some movement at the staff table. Yeah, I think it might be helpful to give you a little bit of background about the SB330 preliminary application versus complete application process, because I think A and B in these cases are kind of… might be mutually, exclusive, actually.

1196
02:52:20.340 --> 02:52:31.539

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Boardroom: Yes, so the preliminary development application, is what vests the rights for the project. What we receive is the application, and effectively, a project concept.

1197
02:52:31.670 --> 02:52:36.950
Boardroom: Once that information is submitted and it's consistent with the submittal checklist.

1198
02:52:36.990 --> 02:52:50.470
Boardroom: we issue a letter that identifies the vesting date for which we've received all the materials. From that date, the applicant has 180 days to file the formal application, which is the fully developed

1199
02:52:50.470 --> 02:52:58.489
Boardroom: application that would go before the Zoning Adjustments Board. That obviously has a longer timeline because there's more exhaustive.

1200
02:52:58.490 --> 02:53:07.200
Boardroom: Review, inter-agency coordination, conditions of approval, and that… there's more variability in terms of that timeline processing.

1201
02:53:08.240 --> 02:53:16.229
Boardroom: And just to clarify, can you speak to where does this two and a half, five years fall in this process?

1202
02:53:17.170 --> 02:53:17.910
Boardroom: I think.

1203
02:53:18.640 --> 02:53:32.059
Boardroom: Yeah, so I think, correct me if I'm wrong, Councilmember Trey Group, but I think you're identifying the two and a half years from the date of the… what would be the formal application approval, is that correct?

1204
02:53:34.550 --> 02:53:36.050
Boardroom: Entitle I.

1205
02:53:38.470 --> 02:53:44.379
Boardroom: Yeah, so the government code establishes

1206
02:53:44.620 --> 02:53:58.660

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Boardroom: once you… so you have 180 days after your… the submittal of the preliminary application to submit the complete application. Then it's kind of an indeterminate number between that point and when the

1207
02:53:58.960 --> 02:54:05.840
Boardroom: property, the project is approved, or entitled, receives its entitlement, that starts the 30-month clock.

1208
02:54:06.220 --> 02:54:10.070
Boardroom: By which the permit needs to be exercised.

1209
02:54:10.640 --> 02:54:14.360
Boardroom: Beyond which… The vested rights expire.

1210
02:54:15.100 --> 02:54:23.360
Boardroom: Got it. Or 5 years, depending on which we agree on. Right, that 30 months is actually from the government code under SB330, and so…

1211
02:54:23.360 --> 02:54:41.939
Boardroom: Yeah, Councilmember Tregip's proposal is to… is to match the time period guaranteed under state law. The Councillor Wani-Hubbard proposal is to extend that to 5 years from the date of the preliminary application, but then also extending through the life of the entitlement, I believe.

1212
02:54:42.450 --> 02:54:43.110
Boardroom: Yep.

1213
02:54:46.390 --> 02:54:56.020
Boardroom: Thank you. I think that was helpful. Okay, in that case, so I would really love for someone to make emotions that we can work off of something here.

1214
02:54:56.200 --> 02:55:02.039
Boardroom: I'd like to move this conversation forward and kind of get clarity, because I know there are a few different areas of contention.

1215
02:55:05.740 --> 02:55:11.030
Boardroom: Sorry, Councilmember Taplin, did you have your hand raised?

1216
02:55:11.190 --> 02:55:16.799

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Terry Taplin: Sure, for the purpose of the discussion, I'm happy to move the Kassarwani-Humber supplemental.

1217
02:55:17.220 --> 02:55:20.639
Terry Taplin: But I was hoping to ask a question.

1218
02:55:20.990 --> 02:55:23.730
Boardroom: Sure, thank you. Is there a second?

1219
02:55:27.810 --> 02:55:31.740
Boardroom: I'll second. Thank you. Okay. Go ahead, what was your question?

1220
02:55:32.280 --> 02:55:41.840
Terry Taplin: I… and thank you all so much. I was just wondering if someone could restate what…

1221
02:55:42.440 --> 02:55:51.619
Terry Taplin: Benefit there would be to having a… Shorter window of protection than… That established by state law.

1222
02:55:52.410 --> 02:55:56.309
Boardroom: I think that's a question for Vice Mayor Trey Gubb.

1223
02:55:56.840 --> 02:55:57.640
Terry Taplin: Correct.

1224
02:55:57.640 --> 02:56:01.900
Boardroom: The benefits of two… of a shorter time period.

1225
02:56:02.530 --> 02:56:17.889
Boardroom: There's no shorter level of protection than what is established in state law under my item. It completely matches state law. Right, but, could you speak to why you'd want it to stay with state law as opposed to being 5 years?

1226
02:56:18.590 --> 02:56:35.300
Boardroom: to reduce the ability of someone to game the system, and just, submit a preliminary SB330 application, then, exercise the, final application

1227

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02:56:35.430 --> 02:56:42.590
Boardroom: But, deliber… and I'm not talking about having,

1228
02:56:42.780 --> 02:56:53.409
Boardroom: challenges in financing a project, I'm talking about just deliberately using that to foreclose the opportunity of, to

1229
02:56:53.690 --> 02:57:02.260
Boardroom: landmark the property in the future, and… no. But then not build a residential project on it.

1230
02:57:03.270 --> 02:57:04.180
Boardroom: Okay.

1231
02:57:04.400 --> 02:57:06.820
Boardroom: Did that answer your question, Councilmember Taplin?

1232
02:57:06.820 --> 02:57:16.490
Terry Taplin: Partially. It's just not clear what our mechanism would be to… address…

1233
02:57:16.880 --> 02:57:22.969
Terry Taplin: some of the market reality that Councilmembers Bartlett and Humbert spoke to earlier.

1234
02:57:25.170 --> 02:57:26.060
Boardroom: Okay.

1235
02:57:26.510 --> 02:57:37.130
Boardroom: Thank you. I have Councilmember Humbert, and then I have Councilmember Kisarwani. Yes, thank you, Madam Mayor. I… it's a question, clarification question to…

1236
02:57:37.270 --> 02:57:44.519
Boardroom: Councilmember Taplin, who moved, the Humbert-Kassarwani supplemental

1237
02:57:44.660 --> 02:57:58.879
Boardroom: My question is, did you mean to move the Humbert-Kesserwani alternative in the staff proposal along with our supplemental, along with the additional language that I read into the record to prevent game playing?

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1238
02:57:59.750 --> 02:58:00.779
Terry Taplin: Yes.

1239
02:58:01.690 --> 02:58:08.989
Boardroom: And was that also what you were seconding? Absolutely. Okay, alright, thank you very much. Councilmember Kisarwani.

1240
02:58:14.450 --> 02:58:27.930
Rashi Kesarwani: Thank you very much, Madam Mayor. I want to thank the planning staff for bringing the response to this referral back relatively quickly, and thank you to the public commenters.

1241
02:58:27.930 --> 02:58:46.000
Rashi Kesarwani: I, I think the fact that a third of the landmark initiations have been the result of SB330 applications speaks for itself, the need to, just tighten up this process. You know, we did review the, some of these applications, and the…

1242
02:58:46.040 --> 02:58:50.640
Rashi Kesarwani: And with a threshold of 50 signatures, you know, we were seeing,

1243
02:58:50.750 --> 02:59:07.849
Rashi Kesarwani: you know, almost the same group of people for a number of these applications, and so that is why we looked at increasing the signature threshold. I do want to remind folks that, gathering signatures is not the only way to initiate landmarking.

1244
02:59:07.850 --> 02:59:11.010
Rashi Kesarwani: The Landmarks Preservation Commission, as has been noted.

1245
02:59:11.100 --> 02:59:29.600
Rashi Kesarwani: can initiate a landmarking themselves. If, you know, a particular site comes to their attention, the city council can do so. If, you know, for instance, there's a site or a property in a district, and the council member becomes aware of the need to landmark it, they can do it that way.

1246
02:59:29.600 --> 02:59:47.030
Rashi Kesarwani: And… and also the property owner. Importantly, the property owner can also initiate it. What we are trying to, guard against

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is, a group of residents, you know, a relatively small group right now with 50, initiating it.

1247
02:59:47.090 --> 02:59:56.549
Rashi Kesarwani: And, and then initiating a lot of staff work and staff time, that, you know, ultimately, with some of those applications that came before the Council.

1248
02:59:56.550 --> 03:00:08.349
Rashi Kesarwani: were in conflict with the, the vested rights under SB330, and we couldn't actually enforce the landmarking, even if they warranted a landmarking, which I think in both cases they did not. So, I just wanted to…

1249
03:00:08.350 --> 03:00:11.350
Rashi Kesarwani: To, to offer that perspective.

1250
03:00:11.350 --> 03:00:21.579
Rashi Kesarwani: Having said that, I, you know, I know Councilmember O'Keefe sort of asked the question, you know, how many signatures is a good one? And I did hear Councilmember Bartlett,

1251
03:00:21.940 --> 03:00:39.430
Rashi Kesarwani: sort of say that, you know, even getting 125 signatures can be difficult, so, you know, I recognize with Councilmember Taplin's motion, it is locking in all of the Kessarwani signature concepts and the Kessarwani-Humbert supplemental, so I am open to

1252
03:00:39.430 --> 03:00:42.460
Rashi Kesarwani: You know, hearing from more colleagues about

1253
03:00:42.540 --> 03:00:48.629
Rashi Kesarwani: the signature thresholds in particular, as we land this. Thank you very much.

1254
03:00:48.630 --> 03:01:00.119
Boardroom: Thank you. Yeah, I would also like for us to kind of get… let's just narrow down what we're going to do with the signatures, and then we can talk about this two and a half versus five years piece. I will say that…

1255
03:01:00.340 --> 03:01:15.920

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Boardroom: for myself, I understand that there are many different ways to initiate this process, and it doesn't have to be through signature gathering. I also heard what folks were saying about this being a democratic process, and this being the city of Berkeley, you know, appreciating that, so I understand that.

1256
03:01:15.920 --> 03:01:39.759
Boardroom: I do feel like this 200 to 400 is quite high, and… but I would be amenable to something along the lines of, like, 150 and 300, or something like that, because, it's interesting, Rebecca, who called in earlier, she does signature gathering, like, that's a huge part of the work she's doing, and she knows how challenging it is, and also, with no time constraints.

1257
03:01:39.760 --> 03:01:56.170
Boardroom: There is the ability to gather signatures. I understand that that can be hard, but I'm just gonna say I'm… I would be favorable of 150 to 300, and just to clarify, that's 150 with support from the property owner, and 300 without.

1258
03:01:56.540 --> 03:02:00.849
Boardroom: Okay, so… Councilmember Trakup, you're next.

1259
03:02:01.350 --> 03:02:13.189
Boardroom: Thank you. If, if we're gonna separate out the discussion between timeline and signatures, which I, I support, I will say,

1260
03:02:13.390 --> 03:02:16.610
Boardroom: I, I do have,

1261
03:02:17.830 --> 03:02:32.509
Boardroom: a little bit of misgiving around, having a dual track for signature numbers. I feel like anything that introduces additional,

1262
03:02:32.600 --> 03:02:43.910
Boardroom: you know, just requirements for staff time. Now staff has to monitor to see whether the property owner is supportive or not.

1263
03:02:44.060 --> 03:02:52.509
Boardroom: I, I would support a number closer to 100 or 150,

1264
03:02:52.620 --> 03:02:58.420
Boardroom: I don't do as much signature gathering as Rebecca, but, I…

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1265
03:02:59.030 --> 03:03:02.850
Boardroom: I do enough signature gathering to…

1266
03:03:04.090 --> 03:03:12.859
Boardroom: be sympathetic to the challenges of collecting even 100 signatures. I do believe that 50 is too few.

1267
03:03:12.970 --> 03:03:25.040
Boardroom: I think 100 or 150 is, probably the right number. And I think with the SB330 application, which we will…

1268
03:03:25.270 --> 03:03:28.739
Boardroom: talk about in a little bit. I, I, I think…

1269
03:03:29.820 --> 03:03:33.199
Boardroom: It's… it's just going to reduce,

1270
03:03:33.720 --> 03:03:38.920
Boardroom: The concerns that, led to probably

1271
03:03:39.080 --> 03:03:46.529
Boardroom: you know, the Council having to act on this to begin with. Okay, thank you. Councilmember O'Keefe.

1272
03:03:47.510 --> 03:03:55.529
Boardroom: Okay, thank you, and thank you, Councilmember Treyoub, for saying that, because I was gonna say the same thing, but for different reasoning, so let me,

1273
03:03:55.770 --> 03:03:59.960
Boardroom: I'll just articulate my position. I actually really do want to have

1274
03:04:00.240 --> 03:04:10.190
Boardroom: one… one number of signatures, also. I don't… I'm not interested in differentiating between, owner consent and my reasoning, although I appreciated your reasoning, but, my reasoning is…

1275
03:04:10.510 --> 03:04:15.210

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Boardroom: Sort of like, if we step back and think about the theory of what we're doing, like, the legal theory.

1276
03:04:15.260 --> 03:04:33.499
Boardroom: Historic resources are a public good. It's not really about ownership, it's something that's for all of us. And so, if you look at it that way, it doesn't really make sense to, like, let the owner basically, like, count for 200 signatures. Like, they're just one other person. Yeah, they get to live in it, but…

1277
03:04:33.650 --> 03:04:51.980
Boardroom: I don't know, it's a public good, so I actually am more comfortable with one single number. I'm not gonna… I don't wanna bargain over 50 here and there. I think 200 is fine, that's what I would propose if I was queen for a day. And I know it can't… I hear the arguments that it's high, but I do take the points, two points have been made.

1278
03:04:52.450 --> 03:05:08.129
Boardroom: that address that. One is that, there are other ways, I think I appreciated Councilmember Humbert's point, that if, you know, they get close, but not quite, that indicates a strong public interest, and the process can be initiated other ways. And also that there's no time limit.

1279
03:05:08.380 --> 03:05:18.319
Boardroom: I think, you know, if you have enough time, you can get 200 signatures. It's not as onerous as thinking about doing that within a certain amount of time, which is what we're used to with, you know, things that go on the ballot.

1280
03:05:18.620 --> 03:05:28.479
Boardroom: Things like that. So, I really want to see one number, and I would say 200, but if people want to do 150 or something, that's fine. As I said before, I don't really know what the right number is.

1281
03:05:29.100 --> 03:05:37.210
Boardroom: Thank you. Councilmember Blackaby. Thank you, I just want to echo one number, and I'm in the 150 to 200 range, one number across the board.

1282
03:05:39.490 --> 03:05:43.650
Boardroom: Okay, where are we? Sorry, Councilmember Humbert.

1283
03:05:43.950 --> 03:05:58.999

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Boardroom: Yeah, thank you, Madam Mayor. I, you know, Councilmember O'Keefe makes a legitimate point, you know, this is for the public good, but it's for the public good that imposes a private cost on the owner of the property.

1284
03:05:59.110 --> 03:06:05.170
Boardroom: And so that's… that's a different kettle of fish than… If, if…

1285
03:06:05.600 --> 03:06:15.350
Boardroom: there are different situations where the owner agrees versus where the owner fails to agree. And in response to, Councilmember

1286
03:06:15.620 --> 03:06:20.400
Boardroom: Vice Mayor Tragube's point,

1287
03:06:21.760 --> 03:06:37.900
Boardroom: that it's difficult to determine whether the owner consents. I don't think that's true. I think all you need is an attestation or the owner's signature, so that's easy enough. I don't think it's a problem for administration.

1288
03:06:38.080 --> 03:06:41.249
Boardroom: And I would tend to agree with the Mayor's suggestion.

1289
03:06:41.390 --> 03:06:52.640
Boardroom: Of 150 and 300, that, that makes sense to me. I think that, you know, moderating our proposed figures, in that regard makes a lot of sense.

1290
03:06:52.810 --> 03:06:54.949
Boardroom: Okay, thank you, Councilmember Lenapara.

1291
03:06:55.760 --> 03:07:02.950
Boardroom: Thank you. I… I agree with Councilmember Tragov and Councilmember O'Keefe on the… on the…

1292
03:07:03.080 --> 03:07:09.039
Boardroom: two different numbers, but for different reasons than both of you. I think the owner can…

1293
03:07:09.360 --> 03:07:15.230

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Boardroom: can initiate a landmark on their own. They don't… they don't need to gather signatures, so I don't really…

1294
03:07:16.240 --> 03:07:17.420
Boardroom: Think that there's a…

1295
03:07:17.570 --> 03:07:22.560
Boardroom: Point in having this whole other number if the… if the owner can initiate it on their own.

1296
03:07:22.750 --> 03:07:29.469
Boardroom: And in terms of the number of signatures, I would like… I'm…

1297
03:07:30.310 --> 03:07:34.689
Boardroom: Indifferent from 200 to 400, but would like to see it at at least 200.

1298
03:07:38.960 --> 03:07:40.589
Boardroom: Okay, so,

1299
03:07:40.830 --> 03:07:52.520
Boardroom: Oh, I wanted to address this point of two different things. So, two different numbers. And so… so, yes, it's true. One of the things I was struggling with this afternoon morning was that,

1300
03:07:53.060 --> 03:08:03.140
Boardroom: yes, it's true that someone who's the owner could initiate, but that also involves work on their behalf. And so, to me, the reason for two is actually to…

1301
03:08:03.140 --> 03:08:26.019
Boardroom: to say, I acknowledge that I'm going to have to have an additional burden of keep maintaining this property and keeping it up, and so, you know, I'm consenting to acknowledging that that's gonna be a piece of it. And, and also, I, as a landowner, may not have the ability to go through the whole process myself, and therefore, it should be easier. So that's why I'm okay with the two different numbers, just to clarify.

1302
03:08:26.020 --> 03:08:30.599
Boardroom: And then, there are folks online, so I'm gonna go Councilmember Taplin, Kesarwani.

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1303
03:08:30.630 --> 03:08:32.329
Boardroom: And then back to Humbert again.

1304
03:08:32.890 --> 03:08:43.920
Terry Taplin: Thank you. I would like to amend my motion such that the signature threshold is 200 across, whether there's

1305
03:08:44.450 --> 03:08:47.059
Terry Taplin: Owner, consent or not.

1306
03:08:49.340 --> 03:08:51.380
Terry Taplin: 200 signatures across, period.

1307
03:08:51.380 --> 03:08:52.750
Boardroom: And I accept that.

1308
03:08:53.330 --> 03:09:03.560
Terry Taplin: And, I don't, you know, I don't love imposing additional costs, but that seems like a logical,

1309
03:09:05.270 --> 03:09:11.769
Terry Taplin: way to… synthesize what I think I'm hearing on the dais.

1310
03:09:12.580 --> 03:09:15.469
Boardroom: Okay, thank you, Councilmember Kesarwani.

1311
03:09:16.230 --> 03:09:34.769
Rashi Kesarwani: Thank you very much. So, I really appreciate hearing everyone's various perspectives on this. You know, I just want to bring it back to the referral that I authored. We included a number of case studies there, in which we deemed that the attempt to landmark was done in bad faith.

1312
03:09:34.960 --> 03:09:44.939
Rashi Kesarwani: One of those attempts was somebody's single-family home that they wanted to remodel so that they had space for their elderly mom.

1313
03:09:45.120 --> 03:09:49.939
Rashi Kesarwani: And they had their neighbors initiate a landmarking that was unwarranted.

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1314
03:09:50.160 --> 03:09:56.219
Rashi Kesarwani: with 50 signatures, so… I don't think it is appropriate to have the same number.

1315
03:09:56.400 --> 03:10:08.130
Rashi Kesarwani: We cannot have a group of neighbors who are upset about a remodel gather signatures and prevent somebody from being able to house their elderly mom.

1316
03:10:08.870 --> 03:10:14.549
Rashi Kesarwani: That is the motivation for having a differentiated signature threshold

1317
03:10:15.290 --> 03:10:18.489
Rashi Kesarwani: When you can't get the property owner's consent.

1318
03:10:18.610 --> 03:10:29.329
Rashi Kesarwani: So, you know, I would respectfully request that we go to what the mayor had proposed, which is 300 signatures if you cannot get that property owner's consent.

1319
03:10:29.670 --> 03:10:46.539
Rashi Kesarwani: And 150 if you can. And the thing is, I hear what people are saying, that the property owner can go ahead and do it on their own. They may not want to. They may not believe that their home is worthy of landmarking, but when the neighbors

1320
03:10:47.200 --> 03:10:51.579
Rashi Kesarwani: suggests that it is, and they decide, oh, okay, I'm okay with it.

1321
03:10:52.040 --> 03:10:54.580
Rashi Kesarwani: I think we should have a lower threshold then.

1322
03:10:54.720 --> 03:11:05.990
Rashi Kesarwani: if a bunch of neighbors decide, hey, we think your house is worthy of landmarking because we don't like the remodel you've proposed, I think they should have to go and get more signatures, double!

1323
03:11:06.220 --> 03:11:16.109

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Rashi Kesarwani: the number than if the property owner was supportive. That is the motivation. So I just want to respectfully request that my colleagues think about that.

1324
03:11:16.230 --> 03:11:22.759
Rashi Kesarwani: And consider the 150, if you can't get the property owner's consent, and 300

1325
03:11:23.110 --> 03:11:28.659
Rashi Kesarwani: I'm sorry, $150 if you can, if you can get the property owner's consent, and 300 if you cannot.

1326
03:11:30.770 --> 03:11:38.069
Boardroom: Okay, thank you. So, we're coming back here to Councilmember Humbert, and then Councilmember O'Keefe. I'm gonna reset this again. I think it's not working.

1327
03:11:40.850 --> 03:11:44.540
Boardroom: Yeah, I'm gonna defer to Councilmember O'Keefe and let her go first.

1328
03:11:46.700 --> 03:11:50.529
Boardroom: But I put a jelly bead in my mouth, thinking I wasn't ready.

1329
03:11:53.630 --> 03:12:07.070
Boardroom: I just want to respond quickly, to Councilmember Kastarwani. I appreciate that argument, it's certainly a compelling scenario. I just want to remind us that we, you know, we're raising it from 50, which is pretty easy to do, to 200, which has already been done.

1330
03:12:07.640 --> 03:12:17.339
Boardroom: At least considered as possibly too high a threshold, even under normal circumstances. So, I think that it's a compelling argument, but I'm gonna personally stick with the

1331
03:12:17.550 --> 03:12:23.939
Boardroom: 200 threshold, because… It's just hard for me to imagine finding 200 people

1332
03:12:24.080 --> 03:12:26.040
Boardroom: To be so vindictive as to…

1333

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03:12:26.740 --> 03:12:35.719
Boardroom: as to use it in such bad faith as was described. You know, if it was 50, that's a reasonable thing to imagine, and of course, it did happen. But 200 is high enough that I think,

1334
03:12:36.220 --> 03:12:40.220
Boardroom: We're really preventing the, sort of, bad faith weaponization.

1335
03:12:40.480 --> 03:12:41.820
Boardroom: I think it meets that goal.

1336
03:12:42.760 --> 03:12:51.440
Boardroom: Thank you. I want to let Councilmember Bartlett speak, and then I'll come back to Councilmember Humbert. He hasn't weighed in yet on the signature numbers.

1337
03:12:51.440 --> 03:13:03.940
Ben Bartlett: Thank you, Madam Mayor. Question, when we talk about the property owner's consent, are we making consideration as to whether the property owner is, like, a normal person or a business entity?

1338
03:13:06.420 --> 03:13:07.929
Boardroom: I think it doesn't matter either way.

1339
03:13:07.930 --> 03:13:09.140
Ben Bartlett: worth your consideration.

1340
03:13:13.010 --> 03:13:15.690
Boardroom: Sorry, you were saying you think that should be a consideration?

1341
03:13:15.690 --> 03:13:31.850
Ben Bartlett: Yeah, so I think… I think that's a worthy consideration because, I mean, the chances of, you know, some Chinese-owned LLC that's buying up all the block, consenting to this is gonna be, nil, right? But the… but my neighbor, who's a sweet lady.

1342
03:13:31.850 --> 03:13:40.939
Ben Bartlett: She might be into it, right? So I'm wondering, in terms of just, you know, market realities, and also, you know, our policy of creating

1343

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03:13:40.950 --> 03:13:44.199
Ben Bartlett: you know, local ownership, right?

1344
03:13:44.270 --> 03:13:53.239
Ben Bartlett: I wonder if that… I think that should be… that should be consideration in this topic. And… and I still say that, you know, a proper number for an ordinary person

1345
03:13:53.340 --> 03:14:07.220
Ben Bartlett: to succeed with work at getting signatures is in that, you know, 100 to 150 range, possibly 200 with unlimited timetable and true passion. But, 200's gonna be really hard as well.

1346
03:14:09.240 --> 03:14:12.199
Boardroom: Okay, Councilmember Humbert.

1347
03:14:24.710 --> 03:14:40.900
Boardroom: Sure, that's fine. Yeah, so just, just taking a look at, what everyone has said, it seems that there's some coalescing around this 200 number across, whether someone is,

1348
03:14:41.370 --> 03:14:46.200
Boardroom: Whether the… whether you have the consent from the property owner or not.

1349
03:14:46.540 --> 03:14:55.889
Boardroom: So I'm gonna just say that out loud. I understand that that's what's also on the motion. I would like to address this 2.5 versus 5 years piece as well.

1350
03:14:56.610 --> 03:15:02.890
Boardroom: So if we could quickly go through that, just because it's 9.34, and I know we can get this done, so…

1351
03:15:03.350 --> 03:15:04.889
Boardroom: Who would like to speak on that?

1352
03:15:05.490 --> 03:15:08.490
Boardroom: We already know where you stand, Councilmember Trey Gob.

1353
03:15:13.520 --> 03:15:25.409

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Boardroom: You're looking at me? You wanna know what I think? Oh shit, I had… sorry, excuse me, I had a, I had thoughts about this, and they've left my brain. I know I was leaning towards,

1354
03:15:25.910 --> 03:15:32.339
Boardroom: They're both reasonable… they're both, like, reasonable approaches to solve the same problem, so it's hard to sort of pick one.

1355
03:15:32.970 --> 03:15:38.240
Boardroom: I was leaning towards the Humbert-Kesterwani proposal.

1356
03:15:38.680 --> 03:15:46.860
Boardroom: Because… I did get kind of called out. Yeah, okay.

1357
03:15:48.230 --> 03:15:52.229
Boardroom: Let me… give me a minute, let me… I don't want to just… Sure, that's fine. …hyme and haw, let me think.

1358
03:15:53.240 --> 03:15:56.279
Boardroom: Anyone else on address? Okay, Councilmember Bartlett.

1359
03:15:59.370 --> 03:16:01.730
Ben Bartlett: I'm sorry, was my hand still raised? Sorry about that.

1360
03:16:01.730 --> 03:16:03.719
Boardroom: Okay, yes, Councilmember Taplin?

1361
03:16:04.710 --> 03:16:13.589
Terry Taplin: Yeah, thank you. I would support the 5 years. I think this… this phenomenon we're seeing is very real, where…

1362
03:16:13.830 --> 03:16:18.940
Terry Taplin: The economic winds shift, and people get their rug pulled out, and… and…

1363
03:16:19.090 --> 03:16:27.150
Terry Taplin: Projects stall, and things escalate, and… And… I… I…

1364
03:16:28.400 --> 03:16:39.279

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Terry Taplin: with the scale of projects we're likely to see with these, I have more confidence and faith that we'll be seeing good faith builders.

1365
03:16:43.260 --> 03:16:47.460
Boardroom: Thank you. Okay, Councilmember O'Keefe, back to you.

1366
03:16:47.840 --> 03:17:04.630
Boardroom: Yeah, I didn't have a really groundbreaking reason. I think it just, the sort of the one-time aspect of it, I think, solved the problem, and it… and I appreciated that it was a little more forgiving. I think I was moved by Councilmember Humbert's argument that, you know, weird things happen, and we should try to make… make space.

1367
03:17:04.870 --> 03:17:06.150
Boardroom: Make it as,

1368
03:17:06.360 --> 03:17:19.919
Boardroom: we don't want people to, like, have it, like, time out early, and I… the five years seems fine to me, and I think they've just solved the problem that we're looking to solve in a different way, so if I have to pick, I pick that one. Although, Vice Mayor Triggoobs is also… also very good.

1369
03:17:21.910 --> 03:17:25.620
Boardroom: Okay, thank you. Yes, Councilmember Kesarwani.

1370
03:17:26.770 --> 03:17:42.420
Rashi Kesarwani: So, yeah, so I just, I want to say that, you know, I wanted to give my rationale for the differentiation on whether you have the property owner or not, but I can live with the $200, you know, because I want us to land something and be able to…

1371
03:17:42.420 --> 03:17:52.160
Rashi Kesarwani: have some dessert, or a drink, and go to bed. So, so I just wanted to say that, and I, of course, I support my 5 years, and then,

1372
03:17:52.360 --> 03:17:56.900
Rashi Kesarwani: And extending it through the life of the… of the,

1373
03:17:57.090 --> 03:18:00.650
Rashi Kesarwani: I don't know what the term is, I think it's called

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1374
03:18:00.920 --> 03:18:08.750
Rashi Kesarwani: the… a life of the entitlement, I should say. So… so, and I believe that's all in Councilmember Taplin's motion, so…

1375
03:18:10.220 --> 03:18:15.760
Rashi Kesarwani: So I think we're ready to vote, but I don't wanna… I don't want to get ahead of anyone who might still be in the queue.

1376
03:18:15.760 --> 03:18:24.310
Boardroom: Totally, yeah. I think that, folks here are fine with this number. Go ahead, Councilmember Humbert. Yeah, I was wondering if I might ask,

1377
03:18:24.710 --> 03:18:34.460
Boardroom: Councilmember Taplin to accept a friendly amendment to have, you know, if we're gonna… it sounds like we're heading for a result here,

1378
03:18:34.600 --> 03:18:44.480
Boardroom: Whether to have staff report back in a year about our experience with the administration of the new modifications to the ordinance.

1379
03:18:45.040 --> 03:18:46.359
Terry Taplin: Yes, I will accept that.

1380
03:18:47.770 --> 03:18:50.259
Boardroom: I will also accept that. Thank you.

1381
03:18:50.750 --> 03:18:53.340
Boardroom: Very good. Okay. Councilmember Trekov.

1382
03:18:54.070 --> 03:19:09.160
Boardroom: Or Vice Mayor Traeger. Thank you. I, I appreciate all the erudite work that has been done, and to try to get closer to, consensus on this.

1383
03:19:10.120 --> 03:19:21.629
Boardroom: I can, accept the The five years with the one-time, proviso on the property.

1384

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03:19:22.490 --> 03:19:23.920
Boardroom: I have…

1385
03:19:24.460 --> 03:19:34.770
Boardroom: I continue, and I recognize, that it was, in fact, my referral that suggested 200 across the board.

1386
03:19:34.940 --> 03:19:40.529
Boardroom: Albeit that was in response to the original item.

1387
03:19:42.740 --> 03:19:49.860
Boardroom: based on the testimony that I heard today, I,

1388
03:19:49.950 --> 03:20:01.440
Boardroom: continue to feel, or I no longer feel comfortable with 200. I feel much more comfortable with something like 150.

1389
03:20:01.500 --> 03:20:10.369
Boardroom: I respect if, my colleagues want to stay at 200, I will just not be able to vote for this. Thank you.

1390
03:20:10.370 --> 03:20:21.610
Boardroom: Thank you very much. And then also for the motion makers, I know that there was some language that Councilmember Tregep had brought up that the City Attorney had recommended, so I just want to make sure that besides the

1391
03:20:21.730 --> 03:20:29.699
Boardroom: the numbers themselves, because I know we're not talking about the 30 months, we're talking about 5 years, but I just want to make sure that that would be included.

1392
03:20:32.770 --> 03:20:41.069
Boardroom: I don't think so, because it doesn't fit into our language. Oh, the initial. I guess I'd ask, Councilmember Kesarwani to… Okay.

1393
03:20:41.830 --> 03:20:47.670
Boardroom: I'm sorry, don't worry about it, that's fine. Okay, alright, there is a motion on the floor. Are there any other comments?

1394
03:20:49.420 --> 03:20:50.240
Boardroom: Okay.

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1395
03:20:50.740 --> 03:20:51.650
Boardroom: Alright.

1396
03:20:51.760 --> 03:20:54.030
Boardroom: Can we take the roll, please?

1397
03:20:54.140 --> 03:21:03.700
Boardroom: Okay, so this is, the staff recommendation with the supplemental changes from Councilmember Kastarwani and Humbert.

1398
03:21:03.980 --> 03:21:09.190
Boardroom: And also including the language introduced by Councilmember Humbert this evening.

1399
03:21:09.440 --> 03:21:16.320
Boardroom: With the change to have it be 200 signatures, as a single standard.

1400
03:21:16.450 --> 03:21:25.490
Boardroom: And a request for a report, in one year on the status of the, of the, new regulations.

1401
03:21:25.790 --> 03:21:28.210
Boardroom: So that's the motion that we have.

1402
03:21:28.310 --> 03:21:30.990
Boardroom: Councilmember Kesarwani?

1403
03:21:30.990 --> 03:21:31.750
Rashi Kesarwani: Yes.

1404
03:21:32.080 --> 03:21:33.020
Boardroom: Kaplin.

1405
03:21:33.020 --> 03:21:33.850
Terry Taplin: Yes.

1406
03:21:34.090 --> 03:21:35.360
Boardroom: Bartlett.

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1407
03:21:38.070 --> 03:21:38.910
Ben Bartlett: Yes.

1408
03:21:40.400 --> 03:21:42.080
Boardroom: Gregorb. Abstain.

1409
03:21:42.270 --> 03:21:43.980
Boardroom: O'Keefe? Yes.

1410
03:21:44.020 --> 03:21:47.509
Boardroom: Blackaby? Yes. Lunapara? Yes.

1411
03:21:47.540 --> 03:21:52.319
Boardroom: Humbert? Yes. And Mayor Ishii? Yes. Okay, motion carries. Okay.

1412
03:21:52.320 --> 03:22:09.689
Boardroom: Thank you all so much. I know that was a lot of sausage making. I really appreciate all of you very much, staff, and then, of course, our chair. Thank you very much for being here and for the public comment. Okay, so, that was our final action item, but we will take public comment on items not listed on the agenda, starting with Carol.

1413
03:22:09.690 --> 03:22:13.190
Boardroom: So, speaking of signature gathering.

1414
03:22:13.190 --> 03:22:21.750
Boardroom: Today, I saw a signature gatherer for a petition, gathering signatures on the side of the Chase Bank.

1415
03:22:21.930 --> 03:22:43.659
Boardroom: I looked at by recruiting people, by giving them energy drinks and similar other drinks that were lined up on the table. This has gotten some media attention. I looked at the text, which he was very… seemed to be very annoyed by my reading… reviewing the text. It appeared to be the competing proposition for the billionaire's tax.

1416
03:22:43.660 --> 03:22:47.340
Boardroom: This is illegal. I mean, the Penal Code states

1417

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03:22:47.480 --> 03:23:02.880
Boardroom: money or valuable compensation. Obviously, to receive a signature, you're not gonna give somebody a suitcase… a brief… a briefcase with $50,000 in it. You're going to give them a $4 or $5 energy drink. So I did go to the city clerk's office.

1418
03:23:03.040 --> 03:23:17.849
Boardroom: they referred me to the DA. I went to the police department, and the police department said, if it's not money, they're not gonna go there. I thought we should have… Thank you. The city should get the documentation. Thanks, Carol. Appreciate you bringing that.

1419
03:23:21.290 --> 03:23:22.170
Boardroom: Hello.

1420
03:23:22.390 --> 03:23:24.060
Boardroom: Kelly Hammergren again.

1421
03:23:28.680 --> 03:23:35.080
Boardroom: I found the comment at the beginning of the evening from our fire department.

1422
03:23:35.800 --> 03:23:39.520
Boardroom: And our union's very concerning.

1423
03:23:39.690 --> 03:23:47.139
Boardroom: And I know we have a budget deficit, and I took a quick scan of what's going to come to the Budget Committee.

1424
03:23:47.500 --> 03:23:49.150
Boardroom: on Thursday.

1425
03:23:49.940 --> 03:24:07.350
Boardroom: And I mentioned… I have mentioned before, and I'd like to mention again, that when I attended the Planning Department, Planning Commission meeting, and Jordan Klein, as the Director of Planning Department, spoke and explained the goals of the department.

1426
03:24:07.530 --> 03:24:16.330
Boardroom: He said how the planning department didn't have to work with the constraints of the rest of the city because of the way we have

1427

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03:24:16.360 --> 03:24:33.279
Boardroom: handled their budget, is that we have… that 74% of their budget goes to permits, and that comes to them directly. So they don't have the constraints, and they can hire as they wish, where the rest of the city that depends on the general fund

1428
03:24:33.730 --> 03:24:45.799
Boardroom: has to pay attention and has to come under those constraints, and I think it's time that we re-evaluate how the planning department is budgeted.

1429
03:24:45.990 --> 03:24:50.950
Boardroom: And that they face the same constraints as the rest of the city.

1430
03:24:51.170 --> 03:25:04.129
Boardroom: And that we are not sacrificing our emergency services for a department that says they don't have to abide by the constraints of the rest of the city.

1431
03:25:05.210 --> 03:25:13.380
Boardroom: And so, they may have… I think they almost forgot that I was in the audience, because I was the only person that stayed to the end of the meeting.

1432
03:25:14.320 --> 03:25:17.689
Boardroom: But those were the comments.

1433
03:25:18.120 --> 03:25:21.099
Boardroom: And I ask all of you

1434
03:25:21.240 --> 03:25:24.920
Boardroom: that you start paying attention. Thank you. Thank you.

1435
03:25:26.210 --> 03:25:30.829
Boardroom: Are there any public comments on items not listed on the agenda online?

1436
03:25:31.270 --> 03:25:37.489
Boardroom: There's one… Hand raised, that's… Phone number ending in 211.

1437
03:25:46.240 --> 03:25:49.999

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Boardroom: Caller with the phone number ringing in 211, you should be able to unmute.

1438
03:26:00.260 --> 03:26:16.490
1510****211: Hi, now I need to talk about this horrible situation we have in Iran. Iran is a great country. Ancient civilization. Five years, 5,000 years of civilization. Corporated, as Trump said. That is a war crime, that's a criminal. The word somatic referred to language.

1439
03:26:16.630 --> 03:26:17.480
1510****211: D…

1440
03:26:17.610 --> 03:26:32.120
1510****211: John Hopkins University made the DNA study on Israelis and Palestinians. Israelis came 0 to 2% old Hebrews. Palestinian came 78%. We need peace. Netanyahu is a criminal. He's been dreaming to bomb Iran for years.

1441
03:26:32.270 --> 03:26:43.390
1510****211: He's a thief, he's a criminal, and no difference to kill people because of their religion than to kill them because of their color. Imagine the Palestinians were black, and the Israelis were killing them because they're black.

1442
03:26:43.650 --> 03:26:46.730
1510****211: Islam, Christianity, and Judaism are

1443
03:26:47.160 --> 03:26:57.850
1510****211: Brother language, a brother religion, and the fairy tales mentioned Egypt. There are fairy tales. There is no God. You guys are just getting screwed by everybody. Have a good night.

1444
03:26:58.120 --> 03:27:01.239
Boardroom: Thank you. That's all.

1445
03:27:03.450 --> 03:27:08.139
Boardroom: Okay, is there a motion to adjourn? So moved. Second. Can we take the roll, please?

1446
03:27:08.560 --> 03:27:14.270
Boardroom: Okay, to adjourn, notes, Councilmember Kastarwani.

1447

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03:27:14.270 --> 03:27:15.030
Rashi Kesarwani: Yes.

1448
03:27:15.650 --> 03:27:16.860
Boardroom: Kaplan?

1449
03:27:16.860 --> 03:27:17.740
Terry Taplin: Yes.

1450
03:27:17.740 --> 03:27:18.730
Boardroom: Bartlett.

1451
03:27:18.730 --> 03:27:19.440
Ben Bartlett: Yes.

1452
03:27:19.640 --> 03:27:21.370
Boardroom: Aye. O'Keefe?

1453
03:27:21.610 --> 03:27:31.609
Boardroom: Yes. Blackaby? Yes. Lunapara? Yes. Humbert? Yes. And Mary Ushi? Yes. Okay, we're adjourned. We're adjourned! Thanks, everyone.

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